This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CITY OF BERKELEY

BERKELEY CITY COUNCIL REGULAR MEETING

MARCH 18, 2025

>> MAYOR A. ISHII: OKAY. HELLO, EVERYBODY. IT IS 6:19, ALMOST 6:20. SO WE ARE GOING TO CALL THIS MEETING TO ORDER. AHEM. OKAY, THANKS. WE ARE GOING TO CALL THE BERKELEY CITY COUNCIL MEETING TUESDAY, MARCH 18, 2025. IT IS 6:19 P.M. AND WE ARE GOING TO START WITH THE ROLL CALL, PLEASE.

>> CLERK: OKAY. MEMBER KESARWANI.

>> R. KESARWANI: HERE.

>> CLERK: TAPLIN.

>> T. TAPLIN: PRESENT.

>> CLERK: BARTLETT. IS COUNCILMEMBER BARTLETT ON? I SEE HIM ON THERE. WE CAN COME BACK. COUNCILMEMBER TREGUB.

>> I. TREGUB: PRESENT.

>> CLERK: O'KEEFE.

>> S. O'KEEFE: HERE.

>> CLERK: BLACKABY.

>> B. BLACKABY: HERE.

>> CLERK: HUMBERT.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> M. HUMBERT: HERE.

>> CLERK: LUNAPARRA.

>> C. LUNAPARRA: HERE.

>> CLERK: AND COUNCILMEMBER BARTLETT, ARE YOU HERE? COUNCILMEMBER BARTLETT WILL BE PARTICIPATING THROUGH AB 2449 UNDER THE JUST CAUSE EXEMPTION, SO WE WILL NEED TO GO THROUGH THE SCRIPT WHEN HE JOINS THE MEETING. OKAY. BUT WE CAN PROCEED.

>> MAYOR A. ISHII: OKAY. SURE. LET'S SEE. FIRST WE HAVE OUR CEREMONIAL MATTERS AND WE HAVE AN ADJOURNMENT IN MEMORY THIS EVENING. SO I WOULD LIKE TO READ SOMETHING FOR OUR ADJOURNMENT IN MEMORY SECTION FOR SARAH REMOSO. IF HER FAMILY IS HERE, YOU CAN COME UP HERE TO THE PODIUM, IF YOU WOULD LIKE. THANK YOU SO MUCH FOR BEING HERE. AND I THINK HER DAUGHTER MAY ALSO BE JOINING US ONLINE. OH, THAT'S GREAT. SHE'S JOINING US ON ZOOM FROM SEATTLE, I BELIEVE. THANK YOU. SO I'M GOING TO READ THIS ADJOURNMENT IN MEMORY AND IF YOU ALL WOULD LIKE TO SAY ANYTHING, I WANT TO GIVE YOU TIME TO SAY SOMETHING AS WELL. OKAY. THE CITY OF BERKELEY MOURNS THE PASSING OF SARAH RENOSO, A DEVOTED PUBLIC SERVANT, WIFE, MOTHER, AND CHERISHED FRIEND WHO PASSED AWAY PEACEFULLY AT HER HOME ON FEBRUARY 20, 2025, AT THE AGE OF 67 SURROUNDED BY HER LOVING FAMILY. BORN IN OAKLAND ON AUGUST 3, 1957, SARAH WAS RAISED IN A FAMILY THAT VALUED EDUCATION, HARD WORKER, AND COMMUNITY SERVICE. SHE EARNED HER LAW DEGREE FROM

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

UCLA LAW AFTER COMPLETING STUDIES FROM UCSC. SHE MADE A LASTING IMPACT ON INSTITUTIONS AND THE PEOPLE SHE SERVED. IN ADDITION TO THE 27 YEARS OF SERVICE TO THE CITY OF BERKELEY WHERE SHE SERVED AS STAFF ATTORNEY, THEN ASSISTANT CITY ATTORNEY, THEN AS THE DIRECTOR OF HUMAN RESOURCES FOR TWO YEARS, SARAH HELD A DEEP PASSION FOR SOCIAL JUSTICE, RIGHTS, AND MENTORSHIP. SHE WAS INSTRUMENT IN STRENGTHENING THE CITY'S WORKFORCE, ENSURING FAIR LABOR PRACTICES AND FOSTERING A CULTURE OF EQUITY AND COLLABORATION WITHIN BERKELEY'S MUNICIPAL GOVERNMENT. BEYOND HER PROFESSIONAL LIFE, SARAH WAS A DEVOTED WIFE, LOVING MOTHER, AND CARING FRIEND TO MANY. SHE MAINTAINED AND ADVENTUROUS SPIRITS, LOVED TRAVELING, AND CHERISHED THE NATURAL BEAUTY OF NORTHERN CALIFORNIA. AN AVID READER AND TALENTED COOK, SARAH OFTEN GATHERED FAMILY AND FRIENDS AROUND THE DINNER TABLE WHERE SHE SHARED NOT ONLY MALES, BUT ALSO WISDOM AND LAUGHTER. SARAH WAS KNOWN FOR HER GOAL ORIENTED APPROACH, GENEROSITY, HUMOR, AND RELIABILITY. SHE WAS A TRUSTED COLLEAGUE, MENTOR, AND ADVOCATE, ALWAYS READY TO SUPPORT THOSE AROUND HER WITH WISDOM AND KINDNESS. HER LEGACY OF DEDICATION, INTEGRITY, AND SERVICE WILL CONTINUE TO INSPIRE ALL WHO HAD THE PRIVILEGE OF KNOWING HER. THE CITY COUNCIL AND CITY STAFF EXTEND THEIR DEEPEST MY CONDOLENCES TO SARAH'S FAMILY FOR THEIR LOSS. WE ADJOURN THIS MEETING IN HER MEMORY. THANK YOU SO MUCH FOR BEING HERE. WOULD

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

YOU CARE TO SHARE ANYTHING?

>> GOOD, MAYOR.

>> MAYOR A. ISHII: SORRY. OKAY. THERE YOU GO.

>> THANK YOU, MAYOR ISHII, AND COUNCILMEMBERS AND ALL FOR ARRANGING THIS. WE'RE SADDENED AND AT A LITTLE BIT OF A LOSS BUT APPRECIATE THE CITY'S ACKNOWLEDGMENT OF SARAH. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. THANK YOU ALL SO MUCH AGAIN FOR BEING HERE AND FOR BRINGING ALSO HER GRANDCHILD, TOO. VERY SWEET THAT THE NEXT GENERATION COULD BE HERE. IT IS BABY'S FIRST CITY COUNCIL MEETING, SO. BUT NOT THE LAST APPARENTLY. OKAY. THANK YOU ALL SO MUCH. APPRECIATE IT. WE WILL MENTION THIS AGAIN AT THE END OF THE MEETING AS WELL, BUT YOU DON'T HAVE TO STAY FOR THAT PART. THANK YOU ALL. THANK YOU ALL. THANKS FOR GIVING US TIME TO DO THAT. ESPECIALLY WITH SOMEONE WHO HAS HAD SUCH A HISTORY OF LONG SERVICE HERE WITH OUR CITY. I'M REALLY GLAD THAT WE WERE ABLE TO HONOR HER MEMORY. I ALSO LIKE TO THANK MY STAFF, JULIE SINAI, WHO BROUGHT THIS UP TO MAKE SURE WE HONOR HER IN SOME WAY. AND ALSO ANTHONY AND MY STAFF WHO DID A LOT OF WORK TO MAKE SURE HER FAMILY WAS HERE AND THAT WE HAD SOMETHING TO READ. NEXT WE HAVE CITY MANAGER COMMENTS.

>> CITY MANAGER: THANK YOU, MADAM MAYOR. I WANT ALSO THANK YOU FOR ADJOURNING IN MEMORY OF SARAH'S OWNER. SHE WAS HERE FOR 27 YEARS AND HAD A BIG IMPACT ON A LOT OF STUFF HERE. THANK YOU FOR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THAT. I DON'T HAVE A LOT OF COMMENTS.

>> MAYOR A. ISHII: THANK YOU. I KNOW WE DON'T HAVE ANY CITY AUDITOR COMMENTS EITHER. I'M GOING TO MOVE ON TO PUBLIC COMMENTS ON NON-AGENDA MATTERS.

>> WHICH IS HAVE TWO CARDS FOR IN PERSON SPEAKERS. WE HAVE ANDREA PRITCHETT AND KAREN.

>> MAYOR A. ISHII: OKAY.

>> PUBLIC SPEAKER: GOOD EVENING, COUNCILMEMBERS. YOUR CHAMBER IS EMPTY BECAUSE THERE'S A. [INDISCERNIBLE] HAPPENING IN [INDISCERNIBLE] [NO AUDIO]

>> COUNCILMEMBER HUMBERT, CAN YOU HEAR THE PUBLIC COMMENT? THANK YOU.

>> MAYOR A. ISHII: SORRY, WE ARE GOING TO TAKE YOUR COMMENTS IN THE 90 COUNCILMEMBER BARTLETT IS HERE AS WELL, SO I THINK WE NEED TO READ SOMETHING OFF.

>> -- BUSINESS FIRST?

>> MAYOR A. ISHII: MR. CITY CLERK, DO WE NEED TO READ THE STATEMENT BEFORE SINCE COUNCILMEMBER BARTLETT IS HERE OR CAN WE --

>> CLERK: COUNCILMEMBER HAS JOINED THE MEETING? THERE HE IS.

>> MAYOR A. ISHII: APOLOGIES TO OUR PUBLIC COMMENTOR.

>> CLERK: VICE MAYOR BARTLETT IS JOINING THE MEETING REMOTELY PURSUANT TO THE BROWN ACT AS AMENDED UNDER THE JUST CAUSE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

JUSTIFICATION. A QUORUM OF THE COUNCIL AS PER DISSIPATING IN PERSON AT A PHYSICAL LOCATION THAT WAS PROPERLY NOTICED TO THE PUBLIC. AND VICE MAYOR BARTLETT, IF YOU COULD JUST PROVIDE A GENERAL DESCRIPTION OF THE CIRCUMSTANCES OF YOUR NEEDING TO APPEAR REMOTELY, BUT DO NOT DISCLOSE ANY MEDICAL INFORMATION.

>> B. BARTLETT: I'M FEELING SICK.

>> CLERK: IS THERE ANYONE AT YOUR REMOTE LOCATION 18 YEARS OR OLDER AND IF THERE ARE WHAT ARE THEIR RELATIONSHIP TO YOU?

>> B. BARTLETT: JUST VICE MAYOR.

>> CLERK: THEY WILL PARTICIPATE THROUGH VIDEO AND AUDIO TECHNOLOGY.

>> MAYOR A. ISHII: OKAY.

>> I WAS JUST TRYING TO SEE IF THERE WAS TWO MINUTES?

>> CLERK: THERE'S ONLY TWO ONLINE COMMENTERS, SO SINCE THERE'S LESS THAN FIVE YOU HAVE TWO MINUTES.

>> PUBLIC SPEAKER: THANK YOU. THANKS VERY MUCH. APPRECIATE IT. SO I'M HERE TO SPEAK ABOUT THE SCU. MY UNDERSTANDING IS THE CITY MANAGER DETERMINED THAT THE COUNTY WOULD RESUME PROVIDING CRISIS, MENTAL HEALTH RESPONSE AS IT IS LEGALLY REQUIRED TO DO AND THAT WE WOULD JUST TERMINATE THE SPECIAL CARE UNIT. I BELIEVE THAT'S A MISTAKE. I BELIEVE THERE'S STILL A NEED IF WE GO BACK TO WHAT CREATED THE SCU WAS A NEED TO HAVE A NONPOLICE RESPONSE TO PAUSE FOR HELP. WHEN LISA WAS HERE THAT, THEY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TARGETED MENTAL HEALTH RESPONSE BECAUSE THAT WAS ONE THING THEY KNOW HOW TO DO. THEY SAID WE WILL START THERE AND BUILD OUT. UNFORTUNATELY, WE SHOULD'VE BUILT FROM THE OTHER END. WHAT WE HAVE NOW IS THIS CITY HAS PAID FOR VANS, DECKED THEM OUT. THE FIRE DEPARTMENT, LIKE IT STARTED TO BECOME A MEDICAL MODEL. THAT WAS A MISTAKE. WHAT WE NEED IS SOMETHING SIMILAR TO CAHOOTS IN OREGON. IT'S LIKE THE HIPPIE VAN. IT'S FOLKS THAT PEOPLE TRUST THAT WHEN THERE'S A CALL, THAT WHEN YOU NEED SOMEBODY, WHEN A PERSON IS HIGH ON DRUGS AND ACTING ERRATICALLY, SOMEBODY MIGHT NOT CALL THE POLICE BECAUSE THEY WERE AFRAID THAT SOMEBODY IS GOING TO GET ARRESTED OR THERE'S GOING TO BE -- THAT'S DANGEROUS. WE NEED A NONPOLICE RESPONSE. WHY DO THEY CALL THE POLICE DEPARTMENT? SOMEBODY IS SLEEPING IN MY BACKYARD. WE DON'T NEED AN ARMED RESPONSE. IMAGINE HOW MUCH MONEY, IF SOMEWHERE OF ABOARD 70 OR 80% OF THE CALLS POLICE ANSWER IN THE CITY DO NOT REQUIRE A PERSONAL EVENT, BUT THEY KEEP US THINKING -- THAT DETERMINATION WAS MADE BY JENNY LAW AND HER AUDIT. WE NEED TO REREAD THAT. WE HAVE GOT $2 MILLION. WE CAN DO THIS. WE CAN SAVE THIS PROGRAM AND DO OUR CITY A GREAT SERVICE. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. OUR NEXT COMMENTOR.

>> PUBLIC SPEAKER: I'M ASSUMING THE HANDHELD MIC IS THE BETTER ONE? OKAY. GOOD EVENING, COUNCILMAN WAS. MY NAME IS CARA BENDS AND I AM THE CHAIRMAN ON BERKELEY'S COMMISSION ON THE STATUS OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WOMEN, ALTHOUGH I'M SPEAKING TO YOU AS A PRIVATE CITIZEN AND MOTHER OF TWO YOUNG CHILDREN. I DON'T KNOW THE LAST TIME YOU GUYS LEFT A FIVE-YEAR-OLD ALONE IN A ROOM, BUT THEN THINGS HAPPEN AND I'M HERE TONIGHT URGE YOU TO TAKE ACTION TO PROTECT AFTERSCHOOL PROGRAMMING THAT KEEP OUR CHILDREN SAFE AND SUPPORT WORKING FAMILIES. I'M AWARE THIS IS LARGELY AN ISSUE FOR THE SCHOOL BOARD, BUT I ALSO BELIEVE COUNCIL HAS A ROLE TO PLAY IN THIS ISSUE. THE LEARNS PROGRAM, OUR PRIMARY AFTERSCHOOL PROGRAM, IS ALREADY OVERWHELMED. THIS YEAR MY FAMILY WAS ONE OF THE OVER 200 FAMILIES THAT WAS LEFT ON THE WAITLIST WITHOUT CHILDCARE AND NOT INFORMED UNTIL AFTER THE SCHOOL YEAR HAD ALREADY BEGUN. YET RATHER THAN EXPAND THE CAPACITY, THE PROGRAM NOW FACES THE POSSIBILITY OF STAFF LAYOFFS. CUTTING AFTERSCHOOL COORDINATORS WHEN DEMAND IS ALREADY STRIPPING SUPPLY IS NOT JUST A BUDGET DECISION. IT'S A DECISION THAT WILL LEAVE HUNDREDS OF CHILDREN WITHOUT A SAFE PLACE TO GO WHEN THE SCHOOL DAY ENDS. THIS CRISIS DISPROPORTIONATELY IMPACTS WORKING PARENTS. ESPECIALLY MOTHERS. WHO ARE ALREADY STRUGGLING TO BALANCE JOBS AND CAREGIVING. THE PANDEMIC CERTAINLY SHOWED US THAT. WITHOUT A VIABLE AFTERSCHOOL PROGRAM, MANY WILL BE FORCED TO REDUCE WORK HOURS OR LEAVE THEIR JOBS ENTIRELY DEEPENING THE GENDER INEQUITIES IN OUR WORKFORCE. I URGE THE COUNCIL AND SPECIFICALLY COUNCILMEMBERS BLACKABY AND TAPLIN AS THE TWO-BY-TWO REPRESENTATIVES TO WORK WITH THE SCHOOL

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BOARD TO DEFEND LEARNS FROM FURTHER CUTS. I ALSO ENCOURAGE ALL OF YOU AND THE CITY MANAGER TO WORK WITH THE PARKS AND WRECKED APARTMENT TO EXPAND CITY RUN AFTERSCHOOL OPTIONS. OTHER CITIES LIKE OUR NEIGHBORS IN EL CERRITO HAVE STEPPED UP ON AFTERSCHOOL CARE WHERE THE SCHOOL DISTRICTS FELL SHORT AND I BELIEVE BERKELEY CAN AND SHOULD DO THE SAME. LET'S ACT BEFORE MORE FAMILIES ARE LEFT WITHOUT OPTIONS AND KIDS ARE TRULY PUT AT RISK. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. I THINK WE HAVE TWO FOLKS ON NINE.

>> CLERK: WE HAVE TWO -- WE HAVE TWO NON-AGENDA COMMENTERS ON ZOOM.

>> MAYOR A. ISHII: I THINK LET'S TAKE THIS ONE PERSON WHO'S HERE IN PERSON SINCE WE DON'T HAVE THAT MANY.

>> CLERK: RIGHT.

>> MAYOR A. ISHII: YES, OF COURSE. YOU'LL HAVE TO HOLD THE HANDHELD MIC, THOUGH. IS THAT OKAY?

>> PUBLIC SPEAKER: WHAT?

>> MAYOR A. ISHII: DO YOU NEED A CHAIR? OKAY.

>> PUBLIC SPEAKER: I'M DEFINITELY GIMPY, BUT I'M NOT WIMPY. ALL RIGHT. THANK YOU AND THANK YOU FOR LETTING ME SPEAK. OH. I REALLY THANK THE POLICE FOR THE WORK THAT THEY DO AND I WOULDN'T WANT THEIR JOB AND THEY PLACE THEIR BODIES AT RISK. I CARE ABOUT THEM. I CARE ABOUT EVERYONE HERE. BUT THERE MUST BE A WAY OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SEEING EACH OTHER BECAUSE AS I'VE DEALT WITH WOMEN PRIMARILY MY ENTIRE LIFE IN GANGS, ON THE STREET, PROSTITUTES, BATTERED, ABUSED, ETC., POLICE RESPONSE IS SCARY. IT'S REALLY SCARY. SO THESE ALTERNATIVES THAT WE'VE TRIED TO CREATE WHERE PEOPLE THAT ARE TRUSTED, WHICH IS THE MAJOR THING THAT'S LACKING --

>> MAKING -- PRESENTATION.

>> PUBLIC SPEAKER: WHAT?

>> MAYOR A. ISHII: SORRY.

>> PUBLIC SPEAKER: AGAIN, MAYOR, I THANK YOU BECAUSE HE REALLY DO HAVE WARMTH AND OPENNESS BECAUSE WE'RE NOT GOING TO BE ABLE TO SUCCEED WHERE EVERYONE IS OKAY WITH ALL OF THEIR DISPARATE AND OFTEN CONFLICTING NEEDS, AGENDAS, FEARS, ETC., ARE NOT GOING TO BE ABLE TO RESOLVE THIS WITHOUT COMING TOGETHER. AND I'M REALLY CONCERNED ABOUT WOMEN PRIMARILY AND ELDERS AND DISABLED BECAUSE THEY ARE THE MOST VULNERABLE AND THE MOST AT RISK IN THE CITY NO MATTER WHAT WE ARE TALKING ABOUT, NO MATTER WHAT WHETHER IT'S HEALTH, SAFETY, TRAFFIC, WALKING, WHATEVER. SO PLEASE, I AM AVAILABLE TO TRY AND HELP US FIGURE OUT WHAT WE CAN DO SO THAT THE BUSINESSES AND THE RESIDENTS AND THE CHILDREN, EVERYBODY CAN BE OKAY. BECAUSE IF WE CAN'T DO IT IN BERKELEY, HOW IS THE WORLD GOING TO DO IT? HERE'S TO US. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. I'LL TAKE THOSE TWO PUBLIC COMMENTS ONLINE.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CLERK: OKAY. FIRST COMMENT IS FROM ATTENDEE WITH A PHONE NUMBER ENDING IN 191. YOU SHOULD BE ALLOWED TO UNMUTE. PRESS *SIX TO UNMUTE. THERE YOU GO.

>> PUBLIC SPEAKER: HI, GOOD MORNING. THE NEW MAYOR IS A BREATH OF FRESH AIR. SHE'S DOING VERY GOOD. VERY DECENT WOMAN, YOU KNOW? OKAY. I HAVE TO COMMENT VERY QUICKLY AND I MAY MAKE ANOTHER ONE ON THE CONSENT CALENDAR. THE FIRST ONE. OVER 400 INNOCENT CIVILIANS WERE MURDERED IN COLD BLOOD BY ISRAEL TODAY. YESTERDAY. MORE WERE KILLED TODAY, I MEAN TOMORROW, WHENEVER. THE KILLINGS CONTINUE. THIS IS A BLOODIED SHAME IN ALL OF HUMANITY. THE BLOOD OF THE INNOCENT PEOPLE INCLUDING TODAY ALONE OVER 200 KIDS, BABIES, AND ALL OF OUR HANDS. THIS SAVAGERY HAS BEEN ON EARTH SINCE THE -- HOW WE WILL ACCEPT IT? WE SHOULDN'T. MY SECOND POINT ACTUALLY JOHN'S HOPKINS UNIVERSITY MADE A DNA GENE STUDIES ON PALESTINIANS AND ISRAELIS. PALESTINIANS CAME TO BE 78% GENE FROM ALL HEBREW BLOOD. MOST OF THE PEOPLE ARE EUROPEAN HAVE NOTHING TO DO -- ZIONISM IS -- THIS MAN IS DESTROYING THE COUNTRY. HE IS A TROJAN HORSE TO A PRISON. WHAT YOU HAVE DONE IS IMPOSSIBLE. IT'S VERY DIFFICULT TO FIRE AN EMPLOYEE. HOW DARE THIS MAN FIRE ALL OF TENS OF THOUSANDS OF FEDERAL EMPLOYEES PUTTING HUNGRY PEOPLE ON THE SIDEWALK OR THE STREET.

>> CLERK: THANK YOU --

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> PUBLIC SPEAKER: -- CONSENT ITEM. THANK YOU.

>> MAYOR A. ISHII: THANK YOU.

>> CLERK: NEXT UP IS AIMEE BALDWIN.

>> PUBLIC SPEAKER: HELLO?

>> CLERK: YES. GO AHEAD.

>> PUBLIC SPEAKER: GOOD EVENING, COUNCIL. I WANTED TO LET YOU GUYS KNOW THAT BERKELEY UNIFIED SCHOOL DISTRICT POTENTIALLY HAS THE SOLUTION TO THE CIVIC CENTER PARK ENCAMPMENT BECAUSE IT IS SITTING ON THE OLD OXFORD SCHOOL SITE, WHICH HAS BEEN VACANT FOR YEARS NOW SINCE IT STOPPED BEING USED FOR ACTUAL SCHOOL. I THINK THE CITY AND BERKELEY UNIFIED SCHOOL DISTRICT NEED TO PARTNER TOGETHER AND TURN IT INTO A SHELTER AND IF THE SHELTER WAS MODELED LIKE THE HORIZON SITE THAT WAS RUN BY NORTH THE DAY HELPS THEN IT WOULD BE REALLY, REALLY EASY AND FAST TO SET IT UP. IT WOULDN'T TAKE THAT MUCH CHANGE IN THE STRUCTURE. I HAVE TALKED TO ROBBIE MONTOYA ABOUT IT AND SHE HAS HAD NOTHING BUT GOOD THINGS TO SAY ABOUT THE HORIZONS MODEL AND SHE THINKS IT COULD POTENTIALLY WORK IN A DIFFERENT BUILDING. THERE'S A BUILDING SITTING EMPTY AND BERKELEY UNIFIED SCHOOL DISTRICT WOULD LIKE THE ENCAMPMENT CLEARED AND THEY COULD ALSO USE SOME MONEY. IT SEEMS LIKE AN EASY SOLUTION. I JUST WANTED TO MAKE SURE YOU GUYS ARE AWARE OF THAT AND I WOULD LOVE FOR YOU GUYS TO CONSIDER MAKING THAT HAPPEN. THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: THANK YOU, AIMEE. ARE THERE OTHER?

>> CLERK: WE DO HAVE ONE MORE AND THAT IS DANIEL BROWNSON.

>> PUBLIC SPEAKER: HI. IS THIS PUBLIC COMMENT?

>> CLERK: YES, FOR ITEMS THAT ARE NOT ON THE AGENDA.

>> PUBLIC SPEAKER: OKAY. WITH ISRAEL BREAKING THE CEASE-FIRE AS BLATANTLY AS THEY DID, THEY VIOLATED IT MANY TIMES, BUT WITH THEM BRAZENLY BREAKING IT AND THEIR BOMBING OF GAZA LAST NIGHT, I KNOW MAYOR ISHII HAS SAID THAT THE RESOLUTION WILL BE AGENDIZED IN THE FUTURE. PLEASE AS SOON AS THAT IS POSSIBLE. WILL BE GREAT FOR BERKELEY TO STAND ON OUR PRINCIPLES OF PEACE. THAT'S ALL.

>> CLERK: THANK YOU.

>> MAYOR A. ISHII: YES, THANK YOU. I REALLY APPRECIATE THAT COMMENT AND I HAVE A FEW WORDS TO SAY ABOUT THAT. I KNOW THAT MANY OF US HELD CAUTIOUS OPTIMISM THAT THE TWO MONTHS CEASE-FIRE DOING ISRAEL AND HAMAS WOULD HOLD, BUT AS THIS PREVIOUS COMMENTER SAID THAT ISRAELI FORCES LAUNCHED THE LARGEST AND MOST DEADLY ATTACK ON GAZA SINCE THE CEASE-FIRE WITH HAMAS BEGAN IN JANUARY. I MENTION THE LAST MEETING I'M GOING TO BE CALLING A SPECIAL MEETING IN APRIL AT A TIME THAT WE WILL BE ABLE TO DEDICATE TO DISCUSSING THIS. OUR CITY CLERK IS WORKING RIGHT NOW ON FINALIZING THE DATE. WE HAVE TO FIGURE OUT SOME LOGISTICS. UNFORTUNATELY, WE DON'T HAVE OUR OWN COUNCIL CHAMBERS, SO WE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

HAVE TO SEE IF THE SPACE IS AVAILABLE OR OTHER SPACES THAT ARE GOING TO BE BIG ENOUGH. I WANT TO BE TRANSPARENT WITH FOLKS WHERE WE ARE AT. AS SOON AS THAT DATE HAS BEEN CONFIRMED, WE WILL POST THAT OF COURSE ON THE WEB AND WE WILL ALSO POST IT ON OUR SOCIAL MEDIA ACCOUNTS AND BY THAT I MEAN OUR MAYOR ISHII SOCIAL MEDIA ACCOUNTS. I ALSO WANT TO TAKE THIS TIME TO REITERATE THAT BERKELEY IS THE HOME OF THE FREE SPEECH MOVEMENT AND WE SUPPORT THE RIGHT TO PROTEST FOR ALL OF OUR RESIDENTS, DOMESTIC OR FOREIGN BORN. I URGE THE DEPARTMENT OF NATIONAL SECURITY TO RELEASE FORMER GRADUATE STUDENT AT COLUMBIA UNIVERSITY WHOSE CONSTITUTIONAL RIGHTS WERE VIOLATED WHEN HE WAS ARRESTED FOR HIS PARTICIPATION IN CAMPUS PROTEST. HE HAS NOT BEEN CHARGED FOR THE CRIME AND DUE PROCESS HAS BEEN IGNORED SINCE HE IS IN I.C.E. DETENTION. I SUPPORT OUR PARTNERS IN STANDING UP FOR THE RIGHT TO FREE SPEECH AND ACADEMIC FREEDOM. I WANT TO HIGHLIGHT AGAIN HE WAS A LEGAL PERMANENT RESIDENT AND IF THAT CAN HAPPEN TO OUR LEGAL PERMANENT RESIDENTS WHAT DOES THAT SAY FOR OTHERS THAT ARE HERE AS WELL? THANK YOU FOR THOSE WHO COMMENTED. I APPRECIATE BEING ABLE TO HAVE THE OPPORTUNITY TO RESPOND TO THAT. WE ARE GOING TO BE MOVING ON TO THE CONSENT CALENDAR. SO I WILL TAKE PUBLIC COMMENT ON THE CONSENT -- SORRY.

>> CLERK: BEFORE WE TAKE PUBLIC COMMENT ON THE CONSENT CALENDAR, IF THERE IS COUNCIL DISCUSSION, WE SHOULD DO THAT BEFORE.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: THANK YOU FOR THAT. YES. IS COUNCILMEMBERS WOULD LIKE TO MOVE ANY ITEMS OFF OR ON THE CONSENT CALENDAR, THIS WOULD BE THE TIME TO DO THAT. OH, I SEE. I'M SORRY, FOR FOLKS WHO ARE, OUR PARLIAMENTARIAN IS WORKING, BUT I CAN'T REALLY SEE OUR OTHER COUNCILMEMBERS. IF YOU DO NEED ME I'M GOING TO HAVE TO KEEP PEEKING AROUND. BUT COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU. I WOULD LIKE TO SEE IF WE CAN MOVE ITEM 10 TO ADDRESS CURRENT SEX TRAFFICKING IN BERKELEY TO THE CONSENT CALENDAR FOR THE PURPOSE OF DOUBLE REFERRING IT BACK TO THE COMMISSION ON THE STATUS OF WOMEN AND TO THE HEALTH AND LIFE ENRICHMENT COMMITTEE. AS A NEW-ISH MEMBER, WE HAD EVERY INTENTION OF DISCUSSING IT, BUT UNFORTUNATELY MEETINGS WERE CANCELED AS IT WAS OUT OF CITY HOLIDAYS. IT WOULD BE MY INTENTION AND COMMITMENT IF THIS MOTION PASSES TO WORK WITH THE COMMITTEE TO ADDRESS THIS ITEM EXPEDITIOUSLY.

>> MAYOR A. ISHII: CAN WE JUST HAVE MAYBE OUR CITY CLERK EXPLAIN WHAT THAT WOULD MEAN IF IT'S A DOUBLE REFERRAL? JUST SO FOLKS ARE CLEAR WHAT THAT WOULD ACTUALLY LOOK LIKE?

>> CLERK: WELL, I MEAN, REFERRING IT BACK TO THE COMMISSION ON THE STATUS OF WOMEN. THAT'S PART OF THE?

>> I. TREGUB: YEAH. AND MORE SPECIFICALLY I WOULD BE INTERESTED IN REFERRING IT BACK TO THE HEALTH AND LIFE ENRICHMENT COMMITTEE, BUT I UNDERSTAND THERE WAS ALSO INTEREST IN MAYBE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

MOVING IT BACK TO THE COMMISSION AS WELL. [LAUGHTER] I CAN AMEND MY MOTION TO JUST HEALTH AND LIFE ENRICHMENT, BUT I AS A CONSENSUS APPROACH I WAS OPEN TO REFERRING IT BACK TO BOTH.

>> CITY CLERK: YEAH, YOU COULD DO THAT. WOULD BE UP TO THE COMMISSION TO DECIDE WHAT FURTHER ACTION THEY WOULD WANT TO TAKE ON THE ITEM. CERTAINLY, THE CHAIR OF THE COMMISSION COULD ATTEND THE POLICY COMMITTEE MEETINGS IF IT WAS ANY ADDITIONAL INFORMATION THAT NEEDED TO BE SHARED. YOU COULD REFER IT BACK TO THE COMMISSION ON STATUS OF WOMEN AND HEALTH AND LIFE ENRICHMENT POLICY COMMITTEE. THERE'S NO PROCEDURAL PROBLEM WITH THAT.

>> MAYOR A. ISHII: OKAY. COUNCILMEMBER KESARWANI, DID YOU WANT TO?

>> R. KESARWANI: I'M SORRY. YOU'RE CALLING ON ME BECAUSE I WAS GOING TO SPEAK UP. IN THE END YOU ARE NOT DOING THE DOUBLE REFERRAL. YOU ARE JUST PROPOSING TO MOVE THE ITEM TO THE HEALTH LIFE ENRICHMENT COMMITTEE. IS THAT CORRECT?

>> I. TREGUB: AND THE COMMISSION ON THE STATUS OF WOMEN.

>> R. KESARWANI: CONCURRENTLY. OH, SO YOU ARE DOING THE DOUBLE REFERRAL?

>> I. TREGUB: I AM, BUT I WOULD ALSO BE FRIENDLY IF, LIKE, MY PERSONAL PREFERENCE WOULD BE TO MOVE IT TO HEALTH AND LIFE ENRICHMENT, BUT I'M ALSO OPEN TO REFERRING IT BACK TO COUNCIL. I JUST HEARD PREVIOUSLY THAT THERE WAS SOME INTEREST IN MAYBE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DOING THE LATTER.

>> R. KESARWANI: OKAY. SO I WOULD PROPOSE -- I THINK IT WOULD GET A BIT COMPLICATED IF IT WAS REFERRED TO TWO BODIES AT THE SAME TIME. SO I WOULD SUGGEST, RESPECTFULLY, THAT WE ONLY REFER IT TO BACK TO THE COMMISSION AND SUGGEST THAT THEY DEVELOP A SUBCOMMITTEE TO IDENTIFY RECOMMENDATIONS OF SEX TRAFFICKING PREVENTION STRATEGIES AND TO PROVIDE THOSE RECOMMENDATIONS BACK TO THE COUNCIL. THE REASON WHY I'M PROPOSING THAT IS BECAUSE I'M VERY CONCERNED ABOUT THE ESTABLISHMENT OF A TASK FORCE THAT WOULD INVOLVE MEMBERS OF OUR POLICE DEPARTMENT THAT THAT WOULD BE A STAFFING IMPOSITION THAT I DON'T THINK WE CAN TAKE ON AT THIS TIME. SO MY PROPOSAL IS MOVE IT TO CONSENT FOR THE PURPOSES OF REFERRING BACK TO THE COMMISSION TO DEVELOP A SUBCOMMITTEE.

>> MAYOR A. ISHII: SO WAS THAT A FRIENDLY AMENDMENT TO?

>> R. KESARWANI: I GUESS, COUNCILMEMBER TREGUB, ARE YOU AMENABLE TO THAT? WE ARE DOING SOMETHING A LITTLE BIT UNUSUAL. SO.

>> I. TREGUB: YEAH. I AM CONCERNED THE MORE WE TALK ABOUT IT THE LESS IT BECOMES A CONSENT ITEM, SO MAYBE WE JUST NEED TO DISCUSS IT ON ACTION. I DO FEEL I HAVE A HIGH LEVEL OF CONFIDENCE THAT IF REFERRED BACK TO HEALTH AND LIFE ENRICHMENT COMMITTEE, THE COMMITTEE WOULD BE WELL-PLACED TO DEAL WITH THOSE CONCERNS INCLUDING AROUND STAFFING, AND THAT'S MY BOTTOM LINE OF WHAT I'M ASKING FOR IS THAT WE AT LEAST INCLUDE MOVING IT BACK TO THAT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COMMITTEE.

>> R. KESARWANI: OKAY, SO I THINK --

>> MAYOR A. ISHII: SORRY. COUNCILMEMBER O'KEEFE ALSO HAS HER HAND.

>> S. O'KEEFE: THANKS. I'M WORRIED THIS IS GOING TO MAKE IT MORE COMPLETED. I WANT TO FIND CONSENSUS, TOO. I WOULD LIKE TO MOVE IT BACK TO THE COMMISSION ON THE STATUS OF WOMEN. THERE'S SOME INTEREST THERE THAT I'M AWARE OF. I WOULD PREFER TO DO IT WITH NO DIRECTION. I THINK THEY MADE IT. THEY CAN FIGURE OUT WHAT TO DO WITH IT. I'M OPEN FOR ANYTHING BECAUSE --

>> MAYOR A. ISHII: THERE'S A COUPLE OF THINGS GOING ON HERE. I JUST WANT TO SAY YOU MADE A MOTION, COUNCILMEMBER TREGUB. I WANT TO ASK IF THERE'S A SECOND THAT MOTION FIRST. OH, SORRY. THANK YOU. I DON'T KNOW WHO WAS FIRST, BUT COUNCILMEMBER HUMBERT.

>> M. HUMBERT: NO, I DON'T HAVE A SECOND TO THAT.

>> MAYOR A. ISHII: COUNCILMEMBER BLACKABY, DO YOU HAVE A SECOND OR SEPARATE COMMENT?

>> B. BLACKABY: SEPARATE COMMENT.

>> CITY CLERK: IF THERE'S NOT AGREEMENT TO PUT IT ON CONSENT, IT WOULD BE NONACTION.

>> B. BLACKABY: I AGREE WITH COUNCILMEMBER KESARWANI. I ALSO THINK THE COMMISSION IS GOING TO HAVE THE ABILITY TO GO OUT AND DO MORE OF THE DETAILED WORK THAT'S NECESSARY RATHER THAN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

STAFFING A TASK FORCE. I WOULD SUPPORT GOING BACK. I SUPPORT PUTTING IT ON CONSENT GOING BACK TO THE STATUS OF WOMEN COMMISSION.

>> MAYOR A. ISHII: I ALSO SUPPORT PUTTING IT ON CONSENT SENDING IT BACK TO THE STATUS OF WOMEN COMMISSION. I JUST WANT TO SEE IF THERE'S OTHERS WHO AGREE WITH THAT. OKAY. SO IT SEEMS THAT THERE SEEMS TO BE CONSENSUS ABOUT MOVING IT. THANK YOU. I'M SEEING A THUMBS UP FROM COUNCILMEMBER HUMBERT AS WELL TO MOVE ITEM NUMBER 10 TO THE CONSENT CALENDAR TO BE SENT TO THE COMMISSION ON THE STATUS OF WOMEN. CORRECT. YES. OKAY. SO THAT IS WHAT WE WILL BE DOING THEN. THIS TURNING AROUND THING IS A LITTLE CHALLENGING, SO THANK YOU, COUNCILMEMBER LUNAPARRA, FOR HELPING ME. SURE. THANK YOU. ALL RIGHT. SO ANYTHING ELSE THAT WE WANT TO MOVE ON? MOVE ON OR OFF THE CONSENT CALENDAR?

>> CITY CLERK: OR ANY OTHER COMMENTS.

>> MAYOR A. ISHII: OR ANY OTHER COMMENTS. THANK YOU. COUNCILMEMBER BLACKABY.

>> B. BLACKABY: VERY QUICKLY I JUST WANTED TO COMMENT BRIEFLY ON ITEM NUMBER SEVEN, THE STREETS OVERSIGHT COMMITTEE COMPOSITION A. I'M REALLY GLAD TO SEE THIS MOVING FORWARD. B, AT A BRIEF CONVERSATION WITH THE CITY MANAGER, DEPUTY CITY MANAGER AND DIRECTOR OF PUBLIC WORKS IN RESPONSE TO SOME OUTREACH I RECEIVED FROM NUMBERS OF THE DISABILITY COMMUNITY. WANT TO MOVE FORWARD

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WITH THIS ITEM TONIGHT. I DO WANT TO LET COLLEAGUES KNOW THAT I'LL BE BRINGING BACK IN THE NEXT FEW WEEKS AND AMENDMENT TO THE ORDINANCE, POTENTIALLY AN AMENDMENT TO THIS ITEM TO MAKE A TWEAK TO THE COMMISSION MEMBERSHIP TO ALLOW A MEMBER OF THE DISABILITY, EITHER DISABILITY COMMISSION OR ADVOCATE FROM THE ADA AND DISABILITY COMMUNITY TO PARTICIPATE. I THINK THAT'S AN IMPORTANT VOICE IN THE PROCESS. NO ACTION TONIGHT. HAPPY TO FLOOR THIS ON CONSENT, BUT I WILL BE COMING BACK WITH SOMETHING ON THAT. THANK YOU.

>> MAYOR A. ISHII: OKAY. I THINK IT WOULD BE IMPORTANT TO MAKE SURE THAT YOU'RE IN TOUCH WITH OUR CLERK TO ENSURE THAT'S ALLOWED EVEN THAT'S A MEASURE. I JUST WANT TO MAKE SURE.

>> B. BLACKABY: AND DISCUSSION WITH THE CITY ATTORNEY.

>> MAYOR A. ISHII: CITY ATTORNEY. THANK YOU. COUNCILMEMBER HUMBERT, DO YOU HAVE COMMENTS?

>> M. HUMBERT: I DO. JUST VERY QUICKLY I WANTED TO SAY ALSO ABOUT ITEM NUMBER SEVEN THAT I'M REALLY EXCITED ABOUT IT AS WE MOVE FORWARD TO MAKING OUR STREETS SAFER WITH MEASURE F IF FUNDING. THIS IS A CRITICAL STEP BUILT INTO THE MEASURE. I'M THINKING IN ADVANCE THOSE COMMUNITY MINDED SOULS WHO WILL SERVE ON THIS OVERSIGHT BODY. THAT'S GOING TO BE REALLY IMPORTANT WORK. AND THEN ON ITEM NUMBER EIGHT, DISTRICT 8 OFFICE ACCOUNT WOULD LIKE TO CONTRIBUTE $250 TO COUNCILMEMBER LUNAPARRA'S ITEM.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THANKS. THAT'S IT.

>> MAYOR A. ISHII: OKAY. THANK YOU. YES. COUNCILMEMBER TREGUB.

>> I. TREGUB: THANK YOU, MADAM MAYOR. I WOULD LIKE TO BE RECORDED AS ABSTAINING ON ITEM 10, BUT I SUPPORT IT STAYING ON THIS CONSENT CALENDAR. I WOULD LIKE TO CONTRIBUTE $100 FROM MY G 13 ACCOUNT ON ITEM 8. THANK YOU. IT'S CALLED A DISCRETIONARY ACCOUNT FROM DISTRICT 4. THANK YOU.

>> MAYOR A. ISHII: OKAY. THANK YOU. COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: THANKS. I'M EXCITED ABOUT ITEM 7, TO CREATE THE CITIZEN OVERSIGHT COMMITTEE FOR SAFE STREETS. AND I'M ALSO EXCITED FOR ITEM 8, WHICH IS A DISCRETIONARY ITEM SUPPORTING CAL TRI CLUB TRIATHLON. FEATURING A SWIM IN THE SAN FRANCISCO BAY AND RUN THROUGH -- FOSTERING A WELCOMING ENVIRONMENT FOR PARTICIPANTS OF ALL SKILL LEVELS AND THE RACE SERVES AS A CRITICAL FUNDING SOURCE FOR THE TRIATHLON TEAM. WITH THE HOSTING, WITH COSTS OF HOSTING THE EVENT RISING SINCE THE BEGINNING OF THE PANDEMIC, THE TEAM HAS STRUGGLED TO BREAK EVEN EVERY YEAR. ANY FINANCIAL SUPPORT WE CAN PROVIDE WILL HELP MAKE THIS -- KEEP THIS EVENT IN THE CITY AND I AM CONTRIBUTING THE FULL $500 FROM MY OFFICE DISCRETIONARY FUND AND I WOULD BE GRATEFUL FOR ANY SUPPORT MY COLLEAGUES CAN PROVIDE. THANKS.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU. I WOULD PUSH $500. THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: JUST WANTED TO CHECK IN WITH THE OTHER COUNCILMEMBERS. SORRY, COUNCILMEMBER HUMBERT.

>> M. HUMBERT: I FORGOT TO TAKE MY HAND DOWN. THANK YOU.

>> MAYOR A. ISHII: COUNCILMEMBER BLACKABY.

>> B. BLACKABY: 250 FROM OUR OFFICE ACCOUNT FOR ITEM NUMBER EIGHT AS WELL. THANK YOU. THANKS TO COUNCILMEMBER LUNAPARRA.

>> MAYOR A. ISHII: OKAY. AND THE OTHER COMMENTS FROM COUNCIL ON THIS? OH, COUNCILMEMBER BARTLETT. I'M SORRY.

>> B. BARTLETT: THANK YOU, MAYOR. I WOULD ALSO LIKE TO CONTRIBUTE $400 AS WELL TO THE CAL TRI CLUB. CITIZENS OVERSIGHT COMMITTEE FOR MEASURE FF A SAFE STREETS, PARTICULARLY WITH REGARD TO WHAT WE LEARNED AT THE LAST MEETING WITH THE SHEER AMOUNT OF VIOLENCE DIRECTED INTO THIS ONE PART OF TOWN THAT WAS REDLINED. I CALL ATTENTION TO THIS ON THE CITIZENS OVERSIGHT COMMITTEE. THANK YOU.

>> MAYOR A. ISHII: THANK YOU, COUNCILMEMBER BARTLETT. COUNCILMEMBER KESARWANI?

>> R. KESARWANI: I MUST GIVE $100 TO THE TRIATHLON CLUB AS WELL FOR MY NONDISCRETIONARY ACCOUNT. THANK YOU.

>> I THINK I HAVE TO GIVE MONEY, TOO, BECAUSE EVERYONE ELSE DID. SEEMS LIKE I'M MAKING A POINT OR SOMETHING. $100 FROM MY ACCOUNT, PLEASE.

>> MAYOR A. ISHII: YES, I'LL BE PUTTING $500 AND FROM OUR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ACCOUNT. HAPPY TO BE SUPPORTING THIS AND THANK YOU FOR BRINGING THIS FORWARD TO OUR ATTENTION. I THINK THAT'S IT FOR COMMENTS. IS THAT CORRECT? OKAY. ALL RIGHT. GREAT. SO GOING BACK TO CONSENT. YES, I'D LIKE TO GO TO PUBLIC COMMENT NOW ON CONSENT AND INFORMATION ITEMS ONLY. OKAY, WE HAVE GOT FOLKS MOVING FROM THE AUDIENCE INTO.

>> PUBLIC SPEAKER: SO ITEM 10 WAS ALREADY EXTENSIVELY DEVELOPED ON THE COMMISSION STATUS OF WOMEN, I SPEAK AS THE POINT OF THE AUTHOR OF THE RECOMMENDATION AND FORMER CHAIR. THE ONLY REASON THAT THIS DIDN'T MOVE FORWARD IS BECAUSE IT WAS SENT BY THE AGENDA COMMITTEE TO HELP LIFE ENRICHMENT COMMITTEE AND THAT WAS IN JUNE. THIS RECOMMENDATION PASSED IN APRIL. BECAUSE IT WAS DORMANT THERE FOR SCHEDULING REASONS, IT BOUNCED BACK TO COUNCIL. IT REALLY IS APPROPRIATE TO GO BACK TO HEALTH LIFE ENRICHMENT. THE CONCEPT OF THE TASK FORCE IN ITSELF, ALL THAT CAN BE WORKED WITH. THE COMPOSITION ALSO WOULD BE SOME CHANGES NEEDED AS THE COMPOSITION HAS CHANGED SINCE THAT TIME. THERE WAS A COMMITMENT FROM CHIEF LEWIS. HER AND I TALKED ABOUT THIS EXTENSIVELY TO PUT THE TIME INTO A TASK FORCE AND THERE WAS ALSO A DISCUSSION AS TO WHO WOULD BE THE BERKELEY POLICE DEPARTMENT SPOKESPERSON ON THAT TASK FORCE. SO THE POLICE DEPARTMENT ALREADY AGREED TO THIS. SOMEONE ELSE WHO ALREADY AGREED TO THIS WAS A PERSON WHO IS AN EXPERT. THAT IS -- OF CONTRA COSTA

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COUNTY. SHE CAME IN AND SPOKE TO THE COMMISSION. HAS DECADES OF EXPERTISE. SHE WORKED WITH B.P.D. ON ONE CASE AND WAS REFERRED TO THE BEST THEY'D EVER SEEN. SHE CONTINUES TO WRITE TO ME MONTHLY ABOUT WHAT, FOR AN UPDATE. WHEN IS THIS STARTING? BECAUSE SHE WANTS TO PROVIDE INFORMATION. THIS HAS TO BE INTERDISCIPLINARY. IT HAS TO GO BEHIND, BEYOND THE COMMISSION ITSELF TO BE REALLY PROPERLY ADDRESSED. AND WE HAD THE -- WE HAD SEVERAL SPEAKERS COMING OUT INCLUDING THE FBI.

>> MAYOR A. ISHII: WE HAVE A MINUTE FROM THE AUDIENCE.

>> PUBLIC SPEAKER: AND EXEMPTION, THANK YOU. THE FBI AGENT COME OUT TO THE COMMISSION WHO IS OVER THE CITY OF BERKELEY TALKED ABOUT THE 12 OPERATIONS HE PROSECUTED IN THREE YEARS. THIS IS THE FBI SPECIAL AGENT. WE HAD AGAIN THIS EXPERT COME OUT BERKELEY WITH POLICE DEPARTMENT FOR TWO AS THE BEST IN THE BUSINESS. WE HAD A SUPPORT ORGANIZATION OUT OF OAKLAND COME OUT AND TALK TO US. WE LOOKED AT MODELS ELSEWHERE IN THE COUNTRY. SO THERE WAS A LOT OF WORK DONE. THERE WAS ALL THAT WE COULD DO UP TO THAT POINT. THE NEW COMMISSION CAN ALSO STILL PROVIDE INPUT. TO COUNCIL TAPLIN'S APPOINTEE IS GOING TO BE VERY, VERY VALUABLE ON INPUT AND THEY CAN GO TO HEALTH LIFE ENRICHMENT COMMITTEE. AGAIN, WE HAVE THESE RULES ABOUT AD HOC COMMITTEES. YOU CANNOT HAVE NONCOMMISSIONED MEMBERS ON IT. IT IS VITAL WE HAVE THE PEOPLE WITH THE BOOTS ON THE GROUND.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: I'M SO SORRY. YOUR TIME IS UP. THANK YOU.

>> PUBLIC SPEAKER: I'M BACK. HI, EVERYBODY. AS I MENTIONED EARLIER, I AM THE CURRENT CHAIR OF THE COMMISSION ON THE STATUS OF WOMEN AND I'M SPEAKING TONIGHT TO REAFFIRM OUR RECOMMENDATION FOR THE FORMATION OF A TASK FORCE. AS WAS MENTIONED, THIS WAS A FORMERLY ADOPTED BEFORE MY TENURE, BUT I WANT TO ACKNOWLEDGE CAROL FOR ALL OF HER LEADERSHIP IN BRINGING THIS FORWARD. WHILE I WAS CHAIR AT THE TIME, I DO STAND HERE TO AFFIRM THE COMMISSIONS COMMITMENT TO THIS ISSUE. I THINK AS WE ARE ALL AWARE, SEX TRAFFICKING DEMANDS URGENT -- HUMAN TRAFFICKING AND SEX TRAFFICKING AS KEY AREAS IN OUR 2025 WORK PLAN, WHICH SHOULD BE COMING TO YOU GUYS NEXT MONTH IF TOMORROW NIGHT GOES WELL. MULTIPLE COMMISSIONERS REMAIN DEEPLY COMMITTED TO THIS WORK. SO WHATEVER YOU GUYS DECIDE, I THINK IT IS IN YOUR COURT, BUT WE ARE CERTAINLY PREPARED TO SEND TWO COMMISSIONERS TO THE TASK FORCE IF THE TASK FORCE IS SO FORMED AND WOULD LOOK FORWARD TO HAVING CONTINUED INPUT. BUT AS CAROL MENTIONED, THERE'S BEEN QUITE A BIT OF WORK FROM THE COMMISSION ON THIS ISSUE.

>> MAYOR A. ISHII: THANK YOU. DO WE HAVE OTHER COMMENTS ON CONSENT ITEMS AND INFORMATION ITEMS ONLY?

>> CITY CLERK: TWO COMMENTERS ON ZOOM. ONE WITH PHONE NUMBER ENDING IN 538. TAKE IT AWAY.

>> PUBLIC SPEAKER: MY COMMENT NOW IS ABOUT SEX TRAFFICKING. I

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

HAVE A SLOGAN FOR MANY YEARS. GREAT MEN DO NOT VISIT PROSTITUTES. ALSO BORN THREE BEAUTIFUL SISTERS. ALL OF THEM WENT TO COLLEGE. ONE OF THEM BECAME HEAD OF A BIG INSTITUTION. LOT OF CRIMES. THIS AWFUL SITUATION. BUT WE DEFINITELY HAVE TO HELP THESE LADIES BECAUSE YOU GET VICTIMIZED BY OTHER AND CLIENTS AND EVEN DIE. THIS COUNTRY BROUGHT US DONALD TRUMP, A SEX CRIMINAL HIMSELF WHO WAS CONVICTED WOMAN GAVE $21 MILLION -- BUT WHATEVER YOU CAN DO, THE PROSECUTORS -- WE NEED TO CREATE JOBS, LOWER RENTS, LOWER HOUSING. THIS MORNING WITH MY SISTER, I WAS -- NOW IT'S $2 MILLION. WHAT HAPPENED? WE ARE BEING ROBBED. BUNCH OF IDIOTS DESTROY THIS COUNTRY. RONALD REAGAN WHEN HE DESTROYED THE MILLIONS OF JOBS INCLUDING ELECTRONIC, OVER 2 MILLION JOBS THAT WERE LOST. HE ALSO DID DAMAGE TO MY BUSINESS. TWO MINUTES I WAS HANDED CHECK FOR $2 BILLION FOR SONIC CORPORATIONS. I CAN SAY MORE, BUT LET'S GO FORWARD. LET'S MAKE BERKELEY A BETTER TOWN. THANK YOU SO MUCH AND HAVE A GOOD NIGHT.

>> MAYOR A. ISHII: THANK YOU.

>> CITY CLERK: AND LAST SPEAKER IS FERN WILDTRUTH.

>> PUBLIC SPEAKER: HELLO. MY COMMENT IS ON ITEM NUMBER 11. IS THAT RIGHT? IS THAT OKAY?

>> CITY CLERK: 11 IS ON THE ACTION CALENDAR.

>> MAYOR A. ISHII: YES, 11 IS ON OUR ACTION CALENDAR.

>> PUBLIC SPEAKER: SORRY. I'LL WAIT THAN.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR A. ISHII: OTHER COMMENTS?

>> CITY CLERK: THAT'S IT.

>> MAYOR A. ISHII: OKAY. I JUST WANT TO CLARIFY WHEN WE ARE MOVING ITEM 10 TO THE CONSENT CALENDAR THAT WE ARE NOT ASKING THE COMMISSION TO DO MORE WORK TO SEND IT BACK TO COUNCIL AGAIN. I BELIEVE IF THE INTENTION IS FOR THE COMMISSION ITSELF TO HAVE THE TASK FORCE AS OPPOSED TO HAVING IT BE A TASK FORCE MADE UP OF CITY COUNCILMEMBER'S AND POLICE DEPARTMENT. IS THAT CORRECT? YES. OKAY. THAT IS CORRECT. SO I JUST WANT TO MAKE SURE THAT IS CLEAR TO OUR CHAIR OF THE COMMISSION WHO SPOKE EARLIER. OKAY. ALL RIGHT.

>> CITY CLERK: COUNCILMEMBER BLACKABY HAS HIS HAND RAISED.

>> MAYOR A. ISHII: THANK YOU.

>> B. BLACKABY: THAT WAS MY CLARIFYING QUESTION, WE WELCOME THOSE QUESTIONS FROM THE COMMISSION ON STATUS OF WOMEN. THANK YOU, MAYOR, FOR CLARIFYING THAT INTENT BECAUSE THAT WAS MY INTENT AS WELL. THANK YOU.

>> MAYOR A. ISHII: GREAT. ALL RIGHT THEN. SHALL WE APPROVE THE CONSENT CALENDAR?

>> B. BLACKABY: MOVE APPROVAL OF THE CONSENT CALENDAR AS AMENDED.

>> SECOND.

>> MAYOR A. ISHII: CAN YOU TAKE THE ROLL PLEASE, CITY CLERK?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: IS.

>> B. BARTLETT: TREGUB?

>> I. TREGUB: YES, BUT WITH THE PREVIOUS ABSTENTION ON THE ONE ITEM.

>> CITY CLERK: THANK YOU. COUNCILMEMBER O'KEEFE.

>> S. O'KEEFE: YES.

>> CITY CLERK: BLACKABY.

>> B. BLACKABY: YES.

>> CITY CLERK: LUNAPARRA.

>> C. LUNAPARRA: YES.

>> CITY CLERK: HUMBERT.

>> M. HUMBERT: YES.

>> CITY CLERK: MOTION CARRIES.

>> MAYOR A. ISHII: APPRECIATE IT. WE ARE MOVING ON TO OUR ACTION CALENDAR. ALL RIGHT. AND THE FIRST ITEM IN OUR ACTION CALENDAR IS A PUBLIC HEARING. WE WENT FASTER THAN I THINK THEY WERE EXPECTING. SO.

>> CITY CLERK: HERE THEY COME.

>> MAYOR A. ISHII: THANK YOU SO MUCH. WE HAVE A PRESENTATION ON THE LOCAL HAZARD MITIGATION PLAN. WE ARE GOING TO GIVE THESE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FOLKS JUST A MINUTE TO SET UP. OKAY. WE SPENT HAVING PROBLEMS WITH THESE MICS, SO I'M HOPING THESE WILL WORK FOR YOU ALL. PLEASE MAKE SURE THESE MICS ARE PRETTY CLOSE TO YOU AND YOU ARE SPEAKING INTO IT. YOU CAN ALSO YOU MOVE THE BASE OF THE MICROPHONE CLOSER AS WELL.

>> THANK YOU.

>> MAYOR A. ISHII: OKAY. WHENEVER YOU'RE READY.

>> GOOD EVENING. THANK YOU, COUNCILMEMBERS. MY NAME IS KEITH MAY, I'M THE FIRE CHIEF FOR THE CITY OF BERKELEY. I HAVE WITH ME TODAY OUR EMERGENCY MANAGER FOR THE OFFICE OF EMERGENCY SERVICES AND EMERGENCY SERVICES COORDINATOR, JAMIE, WHO'S GOING TO GIVE YOU THE BULK OF THE PRESENTATION.

>> THANK YOU. IS THE SOUND OKAY? GREAT. THANK YOU ALL FOR HAVING ME. AGAIN, MY NAME IS JAMIE, I'M AN EMERGENCY SERVICES COORDINATE WITH THE CITY OF BERKELEY EMERGENCY SERVICES. I'M HERE TONIGHT TO PRESENT THE 2024 FINAL DRAFT LOCAL HAZARD MITIGATION PLAN. I'M HERE TASK COUNCIL TO ADOPT A RESOLUTION ADOPTING THE 2024 LOCAL HAZARD MITIGATION PLAN AND AMENDING THE GENERAL PLAN TO INCORPORATE THE 2024 LHMP. THE AGENDA FOR MY PRESENTATION TONIGHT IS AS FOLLOWS. I'M GOING TO TALK A LITTLE BIT ABOUT MITIGATION PLANS AND HOW THEY FIT INTO THE FEDERAL CONTEXT AND WHY WE DO THEM. I WILL DEFINE MITIGATION AND ITS VERY SPECIFIC DEFINITION AS TO WHAT GOES INTO THE PLAN. I WILL

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

GIVE A BRIEF OUTLINE OF WHAT IS IN THE 2024 LOCAL HOUSING MITIGATION PLAN, TALK ABOUT OUR LOCAL PROCESS, THEN TALK ABOUT THE TECHNICAL REVIEW AND APPROVAL PROCESS UP UNTIL THIS POINT, AND THEN TALK ABOUT WHY WE ARE HERE TONIGHT TO SEEK ADOPTION AND AMENDMENT. I WILL ALSO GIVE A LITTLE CONTEXT FOR SOME RELATED UPCOMING AND CURRENT GENERAL PLAN UPDATES. LOCAL HAZARD MITIGATION PLANS ARE FEDERAL REQUIREMENTS, PART OF THE DISASTER MITIGATION ACT OF 2000 UNDER THE STAFFORD ACT. THE FEDERAL MANAGEMENT AGENCY, ALSO KNOWN AS FEMA, SPECIFIES EXACTLY WHAT GOES INTO A LOCAL HAZARD MITIGATION PLAN. CALIFORNIA STATE ASSEMBLY BILL 379 THAT'S ON HERE REQUIRES LOCAL JURISDICTIONS TO ADOPT THE LHMP INTO THE SAFETY ELEMENT OF THE CITY'S GENERAL PLAN TO MAINTAIN MAXIMUM POST DISASTER AID ELIGIBILITY. SO THESE FEDERAL REQUIREMENTS ARE VERY IMPORTANT FOR US TO REMAIN ELIGIBLE FOR POST DISASTER RECOVERY MONEY AND MITIGATION FUNDS. IN THE EVENT OF A MAJOR DISASTER HAVING AN UP-TO-DATE PLAN MEANS THAT WE ARE ABLE TO SEEK FEDERAL RECOVERY DOLLARS AND WHAT CAN BE IN TONS OF BILLIONS OF DOLLARS. WE ARE ALSO ELIGIBLE FOR WHAT IS KNOWN AS HAZARD MITIGATION FUNDS. THESE KINDS OF FUNDS ALLOW FOR PROGRAMS SUCH AS OUR SEISMIC RETROFIT PROGRAMS THAT ALLOW PEOPLE TO MAKE CHANGES TO THEIR HOMES TO MAKE THEM MORE SAFE IN THE EVENT OF AN EARTHQUAKE. THE LOCAL HAZARD MITIGATION AGAIN IS AN APPENDIX TO THE SAFETY ELEMENT OF THE CITY'S GENERAL PLAN TO.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THIS ASSEMBLY BILL DOES REQUIRE THAT IT IS ADOPTED INTO THE SAFETY ELEMENT IN ORDER TO MAINTAIN THE MAXIMUM AMOUNT OF FEDERAL RECOVERY DOLLARS. WE FIRST ADOPTED A LOCAL HAZARD MITIGATION PLAN IN 2004. IT WAS ABOUT TO BEGIN IN 2014 AND THEN AGAIN IN 2019. IT IS A FEDERAL REQUIREMENT TO DO IT EVERY FIVE YEARS. SO WE ARE BACK HERE FOR THE 2024 LOCAL HAZARD MITIGATION PLAN. THE 2019 PLAN DID EXPIRE ON DECEMBER 10, 2024. SO WE ARE CURRENTLY OUT OF COMPLIANCE, WHICH IS WHY IT'S IMPORTANT TO COME HERE TONIGHT AND SEEK ADOPTION AND AMENDMENT TO OUR GENERAL PLAN. SO A LITTLE BIT ABOUT HAZARD MITIGATION. HAZARD MITIGATION IS REALLY DESIGNED TO BREAK THE CYCLE OF DAMAGE BY TAKING ACTION NOW TO REDUCE IMPACTS LATER. IT'S THE WORK THAT WE DO BEFORE DISASTER THAT WILL PROVIDE SOME KIND OF PASSIVE PROTECTION WHEN A DISASTER OCCURS. MITIGATION ACTIVITIES PROTECT US BY PREVENTING DAMAGE FROM HAPPENING IN THE FIRST PLACE. SO IN THE EVENT OF A DISASTER THERE'S REALLY NOTHING TO TURN ON OR NOTHING TO DO. AN EXAMPLE OF THIS IS A PARKING GARAGE THAT HAS BEEN SEISMICALLY RETROFITTED. DURING AN EARTHQUAKE, THIS MITIGATION ACTIVITY PROVIDES THAT PASSIVE PROTECTION DURING THE DISASTER AND IT PROVIDES THAT PROTECTION TO THE STRUCTURE AND TO THE PEOPLE INSIDE. OFTEN TIMES, PEOPLE CONFUSE DISASTER MITIGATION AND DISASTER PREPAREDNESS, WHICH IS ANOTHER KEY PART OF DISASTER READINESS. PREPAREDNESS IS REALLY AROUND TAKING CLASSES, DOING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TRAININGS, GIVING EMERGENCY NOTIFICATIONS. SO YOU WILL NOT FIND THESE KINDS OF ACTIONS IN OUR LOCAL HAZARD MITIGATION PLAN. THE ACTIONS IN THIS PLAN ARE REALLY AROUND THIS PASSIVE ACTION THAT WE CAN TAKE NOW. IT'S REALLY FOCUSED ON THINGS LIKE VEGETATION MANAGEMENT, STRENGTHENING STRUCTURES, BIG INFRASTRUCTURE IMPROVEMENTS WE CAN MAKE AHEAD OF TIME. MITIGATION IS REALLY IMPORTANT AND SAVES A LOT OF MONEY. EVERY DOLLAR, THERE'S A FEDERAL STATISTIC THAT EVERY DOLLAR YOU SPEND ON MITIGATION SAVES SIX DOLLARS LATER. IT'S A REALLY IMPORTANT PART OF THE DISASTER LIFECYCLE AND SOMETHING THAT WE SPEND A GREAT DEAL OF TIME ON IN DOING THIS PLAN AND THINKING ABOUT WHAT STEPS WE ARE TAKING TO BE COMMITTING TO OUR MITIGATION PROGRAMS AND PROJECTS. AGAIN, TO JUST REITERATE, MITIGATION ACTIVITIES, THESE ARE THINGS LIKE HOME HARDENING, STRENGTHENING STRUCTURES, MAKING LAND-USE DECISIONS THAT WILL REDUCE VEGETATION IN HIGH FIRE AREAS, STRAPPING DOWN WATER HEATERS. THESE ARE ALL EXAMPLES OF THINGS YOU WILL FIND IN THE MITIGATION PLAN. I REITERATE ALL OF THIS BECAUSE OFTEN TIMES WHEN FOLKS HEAR THE TYPES OF ACTIVITIES IN THE PLAN THEY ARE LIKE WHAT ABOUT THIS AND WHAT ABOUT THIS. THESE ARE ALL THINGS WE ARE DOING AND THE COMMUNITY IS DOING, BUT PER F.E.M.A.'S DEFINITION THEY DON'T REALLY GO INTO THIS PLAN. TO TALK ABOUT OUR 2024 LOCAL HAZARD MITIGATION PLAN, HERE'S AN OUTLINE OF WHAT THE PLAN LOOKS LIKE. I'VE BROUGHT IT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WITH ME. IT'S A VERY LONG 400 PAGE DOCUMENT THAT FOLLOWS THE TRANSACTING REQUIREMENTS AND OUTLINES FOR HOW IT'S SUPPOSED TO WORK THERE FOR THE FIRST IS CALLED ELEMENT A, THE PLANNING PROCESS, WHICH IS HOW WE CREATED THE PLAN, HOW WE ENGAGE THE PUBLIC. I WILL TALK MORE ABOUT THE PUBLIC ENGAGEMENT PROCESS LATER. ITEM B IS REALLY THE BULK OF THE PLAN OR ONE HALF OF THE BULK OF THE PLAN. IT GOES INTO EVERY HAZARD, NATURAL HAZARD AND SOME MAN-MADE HAZARDS THAT CAN HAPPEN IN BERKELEY. WHAT THE IMPACTS MAY BE, HOW IT WILL, WHAT IT MIGHT COST, WHAT AREAS OF THE CITY MIGHT BE MOST IMPACTED. AND IT REFLECTS THE LATEST SCIENCE IN LOOKING AT TALKING WITH HAZARD EXPERTS IN OUR OFFICE. TAKES GREAT PRIDE IN DOING THIS WORK OURSELVES AND TO UNDERSTAND THE LATEST SCIENCE AROUND WHAT OUR RISK IS IN BERKELEY. ITEM C IS A MITIGATION STRATEGY, WHICH IS THE LIST OF ACTIONS THAT THE CITY IS TAKING TO REDUCE RISKS ASSOCIATED WITH EVERY HAZARD THAT'S IN THE MITIGATION PLAN. SO THAT IS REALLY WHERE YOU WILL SEE WHAT THE CITY IS DOING. ELEMENT E IS THE PLANNED MAINTENANCE. HOW ARE WE GOING TO KEEP THIS UP-TO-DATE? HOW WE WENT ABOUT THIS UPDATE PROCESS, PLAN ADOPTION IS WHAT WE ARE DOING RIGHT HERE KIND OF HOW IT GETS ADOPTED IN THE LOCAL JURISDICTION. ELEMENT G IS THE YOU KNOW, WE ARE BERKELEY, SO WE ALWAYS PUT OUR OWN SPIN ON THINGS. ITEM G IS COMMUNITY EDUCATION. THIS IS NOT A FEDERAL REQUIREMENT, BUT SOMETHING WE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

TOOK A GREAT DEAL OF TIME DOING THIS ROUND IS TRYING TO TRANSLATE THIS PLAN INTO SOMETHING THE COMMUNITY COULD REALLY UNDERSTAND AND TAKE WITH IN THEIR OWN LIVES. IT'S FOCUSED ON MITIGATION ACTIONS THAT HOUSEHOLDS AND INDIVIDUALS CAN TAKE AND DO TAKE EVERY DAY TO CONTRIBUTE OUR COLLECTIVE MITIGATION GOALS. IT'S A PLACE WHERE FOLKS CAN GET THE LATEST RECOMMENDATIONS ON HOW THEY CAN MAKE THEIR HOUSEHOLDS SAFER AND IN TURN BERKELEY SAFER. THE HAZARDS OF CONCERN THAT ARE IN OUR RISK ASSESSMENT OF THE PLAN ARE LISTED ABOVE. THERE'S QUITE A LOT OF THEM. THE TWO MAIN ONES THAT WE TALK A LOT ABOUT OUR EARTHQUAKE AND WILDLAND URBAN INTERFACE. POOR AIR QUALITY, HIGH WIND, LANDSIDE, AND INFECTIOUS DISEASE. THE FOCUS OF THE MITIGATION PLANS HAS OFTEN BEEN ON NATURAL HAZARDS, BUT WE INCLUDED A LOT OF KIND OF MAN-MADE HAZARDS BECAUSE THEY COME UP FOR A LOT OF PEOPLE IN THEIR MINDS. THE LAST TIME WE WROTE THIS PLAN WAS IN 2019. WE HAD A GLOBAL PANDEMIC. WE HAD A LOT OF UTILITY INTERRUPTION DUE TO WILDFIRE SEASONS. SO WE FELT LIKE THOSE WERE IMPORTANT HAZARDS TO INCLUDE AS THEY DO IMPACT PEOPLE'S LIVES AND THAT'S WHAT THEY THINK ABOUT WHEN THEY THINK ABOUT HAZARD MITIGATION. SEA LEVEL RISE USED TO BE INCLUDED IN WHAT WAS CALLED THE CLIMATE CHANGE SECTION. WE NOW SPLIT THAT OUT. REALLY FOCUSED ON SEALEVEL RISE AND INTEGRATED -- TO SUMMARIZE, OUR MITIGATION STRATEGY WE HAVE 34 ACTIONS IN THE PLAN. THE FOCUS REALLY IS CURRENT WORK WITH

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FUNDING SECURED THAT WE CAN ACHIEVE IN THE NEXT FIVE YEARS. IT REALLY FOCUSES ON IMPROVEMENTS TO BUILDINGS, INFRASTRUCTURE, AND A LOT OF WILDFIRE MITIGATION. THERE ARE NEW ACTIONS AND ACTIVITIES RELATED TO THE NEW HAZARDS. POOR AIR QUALITY, INFECTIOUS DISEASE, ALTHOUGH WE DID INCLUDE BEFORE YOU HAVE TO HAVE AN ACTION ASSOCIATED WITH NEW. THERE'S ALSO SOME ACTIONS AROUND UPCOMING GENERAL PLAN UPDATES TO THE SAFETY ELEMENT AND NEW ENVIRONMENTAL JUSTICE ELEMENT, WHICH ARE BIG LONG PLANNING PROCESSES THAT ARE JUST STARTED AND WILL BE GOING ON FOR THE NEXT COUPLE OF YEARS WHERE THERE'S A LOT OF WORK REALLY AROUND THESE TOPICS AND AN EXCITING PLACE TO PLAN A LOT OF VISION. TO TALK ABOUT OUR COMMUNITY ENGAGEMENT PROCESS. WE SPLIT THIS INTO A COUPLE OF SECTIONS. THIS IS A LONG PLANNING PROCESS OF ABOUT 2 AND A HALF YEARS. AND THE DRAFTING STAGE OF THE LOCAL HAZARD MITIGATION PLAN, WE DID PRESENTATIONS AT THE PLANNING COMMISSION. WE WENT TO BOTH OF THOSE TWICE. WE DID IN PERSON OUTREACH AT COMMUNITY EVENTS LIKE NATIONAL NIGHT OUT. WE DID PRESENTATIONS AT COMMUNITY EVENTS. THERE WAS A WINTER WEATHER WORKSHOP AND JUST A GENERAL MITIGATION PLAN WORKSHOP WHERE WE INTERACTED WITH FOLKS AND ASKED THEM THEIR THOUGHTS ON WHAT BELONGS IN THE PLAN. WE DID MAKE YOUTUBE VIDEOS ASSOCIATED WITH EVERY HAZARD SO FOLKS COULD FOLLOW ALONG IN THEIR OWN TIME AND GOT COMMENTS VIA EMAIL. WE HAD A LOT OF CONVERSATIONS TO DEVELOP

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

AND DRAFT THE PLAN. FOR THE FIRST DRAFT PLAN, IT WAS OPEN FOR PUBLIC REVIEW FROM MAY TO AUGUST 8, 2024. WE GAVE PRESENTATIONS AT PUBLIC MEETINGS AGAIN AT THIS DISASTER FIRE SAFETY COMMISSION, PLANNING COMMISSION, AND COUNCIL OF PUBLIC SAFETY COMMITTEE. WE HELD SOME PUBLIC WORKSHOPS AT THE CENTRAL LIBRARY AND SOUTH BRANCH LIBRARY. WE RECEIVED OVER 20 LETTERS WITH OVER 100 COMMENTS AND QUESTIONS. WE HAD 50+ COMMENTS AND OUR PUBLIC WORKSHOPS. I JUST WANTED TO SAY IN THIS SECTION WE DEVOTED A LOT OF TIME TO OUR COMMUNITY OUTREACH PROCESS FOR THIS PLAN. NOT TO SAY THIS ABOUT OTHER JURISDICTIONS, BUT I THINK WE ARE VERY RARE AND THAT WE ARE A SMALL CITY THAT WRITES ITS OWN PLAN IN-HOUSE. A LOT OF OTHER LOCAL JURISDICTIONS HIRE CONSULTANTS TO WRITE THIS PLAN. WE TAKE A GREAT PRIDE IN DOING THAT OURSELVES AND HAVING THAT CONNECTION WITH THIS WORK. WE ALSO WANTED TO USE THIS AS AN OPPORTUNITY TO NOT CHECK A BOX, BUT ALSO TO REALLY BE OUT THERE WITH THE COMMUNITY. A LOT OF LOCAL HAZARD MITIGATION PLANS USE SURVEYS TO INTERACT WITH FOLDS AND WE REALLY FOCUSED ON A COMBINATION OF IN PERSON AND VIRTUAL CONTENT, SO I'M REALLY PROUD OF THAT. SOME TRENDS AND RESULTING PLAN CHANGES AS A RESULT OF PUBLIC FEEDBACK. THERE WAS A LOT OF COMMENTARY ON HAZARDOUS VEGETATION. SO IN THE WILDLAND URBAN INTERFACE SECTION OF THE PLAN, MANY COMMENTERS SAID THAT THERE WASN'T ENOUGH ATTENTION PAID TO THE HAZARDOUS MITIGATION IN BERKELEY THAT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CONTRIBUTES TO WILDFIRE RISK. WE DID ADD A SECTION TO THE PLAN ABOUT HAZARDOUS VEGETATION WHERE WE TALK ABOUT THE IMPORTANCE OF VEGETATION MAINTENANCE AS WELL AS PLANT SPECIES THAT MIGHT BE A LITTLE MORE BURNY THAN OTHER TYPES OF PLANS. AS WELL AS THINK ABOUT WHERE IT'S PLACED IN COMPARISON TO STRUCTURES. SO THERE IS A NEW SECTION THAT DESCRIBES THAT AND THERE ARE A TON OF ACTIONS IN THE MITIGATION STRATEGY AROUND THE WORK THE FIRE DEPARTMENT IS DOING TO MANAGE VEGETATION IN THE BERKELEY HILLS. THERE WERE ALSO A NUMBER OF COMMENTS ABOUT CONCERNS OF EVACUATION IN THE BERKELEY HILLS WHICH IS VERY UNDERSTANDABLE. THERE IS A LOT OF WORK CURRENTLY UNDERWAY THAT THE CITY IS DOING ON OUR EVACUATION TIME AND RESPONSE STUDY WITH THAT REPORT COMING TO COUNCIL I BELIEVE IN MAY. I THINK THERE'S A LOT OF THIS WILL CONTINUE TO BE A CONVERSATION IN THE COMING MONTHS AND YEARS AND AS A BIG PIECE OF WORK ONGOING IN THE CITY. THERE WERE ALSO COMMENTS AROUND LAND USE CONTROL IMPACTS ON EMERGENCY SERVICES. THINGS LIKE HOW DOES INCREASING DENSITY IN THE HILLS OR ADDING HIGH-RISES IMPACT THINGS LIKE THE FIRE DEPARTMENT AND EMERGENCY SERVICES. I WANTED TO ACKNOWLEDGE FOLKS COMMENTS ON THIS AND WE DID ADD A NEW ACTION INTO THE PLAN THAT REALLY REFLECTS THE ONGOING WORK BETWEEN THE LAND-USE DIVISION AND FIRE DEPARTMENT AND REITERATES THE ROLE THE FIRE DEPARTMENT PLAYS AND HAVING THE CHANCE TO EVALUATE ANY TYPE OF DENSITY DECISIONS THAT WOULD

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

IMPACT EMERGENCY SERVICES IN BEING ABLE TO PROVIDE THE RECOMMENDATION TO COUNCIL. AND THEN LASTLY THIS PLAN IS A LONG PDF DOCUMENTS. MANY COMMENTS ON THE FIRST DRAFT PLAN THAT THE MAPS WERE HARD TO READ AND PEOPLE WANTED TO ZOOM IN AND SEE WHERE THEIR HOME MIGHT BE IN CONNECTION TO THE VARIOUS HAZARDS. SO WE PUT TOGETHER A STORY MAP USING OUR GIS THAT YOU CAN SEE ON THE WEBSITE, BERKELEY CA.GOV/MITIGATION WHERE YOU CAN SEE A NUMBER OF MAPS FROM THE PLAN IN A MORE INTERACTIVE FORM IF YOU'RE INTERESTED. THERE IS ON OUR WEBSITE BERKELEY CA.GOV/MITIGATION, THERE'S A SUMMARY OF CHANGES AS A RESULT OF THE FIRST DRAFT PLAN THAT YOU CAN SEE IF YOU'RE INTERESTED IN MORE CHANGES, BUT THOSE ARE THE ONES THAT COME UP A LOT. SO TO TALK MORE ABOUT THE TECHNICAL REVIEW AND APPROVAL PROCESS. THIS PLAN GOES THROUGH A THOROUGH REVIEW BY THE CALIFORNIA OFFICE OF EMERGENCY SERVICES. ONCE WE ARE FINISHED ABOUT -- WITH WRITING IT, THEY TAKE IT FOR 45 DAYS. THEY APPROVED IT IN NOVEMBER 2024. AFTER THEY APPROVE IT, THEY -- IN JANUARY, JANUARY 13, 2025, F.E.M.A. ISSUED A PLANNING ADOPTION, BUT THEY ARE WAITING ON THE LOCAL JURISDICTION TO ADOPT IT FOR OUR LOCAL JURISDICTION PROCESS. AGAIN, THAT'S WHY WE ARE HERE TONIGHT TO FINISH THE PROCESS, GO BACK TO F.E.M.A., AND SAY WE ADOPTED IT INTO OUR LOCAL JURISDICTION AND GENERAL PLAN. AFTER IT WAS APPROVED BY -- TO ADOPT THE PLAN AS WELL AS THE PLANNING COMMISSION TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

RECOMMEND TO COUNCIL TO ADOPT THE PLAN OF WITH THEY BOTH DID. SOME OF THEIR COMMENTS AND VOTES. AND THEN WE ARE HERE TODAY AND TODAY IS THE SECOND PUBLIC HEARING. AND THEN WE WILL GO BACK TO F.E.M.A. FOR FINAL APPROVAL. THEN I WANTED TO ADDRESS THE TECHNICAL AMENDMENTS TO THE GENERAL PLAN. AS I MENTIONED AT THE BEGINNING OF THE PRESENTATION, TO BE ELIGIBLE FOR THE MAXIMUM AMOUNT OF FEDERAL RECOVERY DOLLARS, YOU DO HAVE TO AMEND THIS INTO YOUR GENERAL PLAN. IT'S A VERY SMALL EDIT, WHICH BASICALLY CHANGES THE YEAR OF THE MITIGATION PLAN FROM 2019-2024 SO YOU CAN SEE THE EDIT UP ON THE SCREEN. YEAH. REALLY MINOR EDIT TO THE GENERAL PLAN THAT WILL MAKE SURE WE ARE ELIGIBLE FOR THOSE DOLLARS. THESE ARE THE FINDINGS ASSOCIATED WITH THE GENERAL PLAN AMENDMENT. IT'S IN THE GENERAL INTEREST. IT IS CONSISTENT AND COMPATIBLE WITH THE REST OF THE GENERAL PLAN. HAVE BEEN DETERMINED NOT TO BE DETRIMENTAL TO PUBLIC HEALTH, SAFETY, OR WELFARE. WE ARE TALKING ABOUT PUBLIC INTEREST CONSISTENT WITH THE GENERAL PLAN. THIS IS REALLY ALL ABOUT ENSURING WE HAVE ACCESS TO THESE FUNDS AND TRYING TO MITIGATE OUR RISK TO DISASTERS AND NATURAL HAZARDS. THIS IS EXEMPT FROM SEQA, SO THAT IS FINDING NUMBER FOUR. THAT IS THE END OF MY PRESENTATION. HAPPY TO TAKE QUESTIONS.

>> MAYOR A. ISHII: THANK YOU. I LIKE TO OPEN THIS IS A PUBLIC HEARING JUST TO MAKE SURE WE DO THAT AND TAKE COUNCIL QUESTIONS.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

I SEE THAT COUNCILMEMBER TAPLIN HAS HIS HAND RAISED. OH, OKAY. SORRY. ARE THERE QUESTIONS FROM COUNCIL BEFORE WE TAKE PUBLIC COMMENT. LET'S TAKE PUBLIC COMMENT ON THIS ITEM. SORRY, FOLKS, I KNOW THERE'S SOME SPEAKING IN THE AUDIENCE. IF YOU CAN MAYBE MOVE YOUR CONVERSATION OUTSIDE. THANK YOU. ANY PUBLIC COMMENTS? ANYTHING ONLINE?

>> CITY CLERK: NO COMMENTERS PARTICIPATING REMOTELY.

>> MAYOR A. ISHII: OKAY. SO THEN WE NEED A MOTION TO CLOSE THE PUBLIC HEARING. AND I THINK WE HAVE TO TAKE A VOTE.

>> CITY CLERK: TO CLOSE THE PUBLIC HEARING, [ROLL CALL]

>> MAYOR A. ISHII: OKAY. THANK YOU SO MUCH. MOVING ON TO COUNCIL DELIBERATION, WE WILL GO TO COUNCILMEMBER TAPLIN.

>> T. TAPLIN: EACH TIME I HEAR THIS I LEARNED SOMETHING NEW. I REALLY APPRECIATE THIS. I APPRECIATE -- IT IS A HUGE PRIORITY OF MINE ALONGSIDE ENSURING STRUCTURES ARE RESILIENT TO DISASTER. WITH THAT, I MOTION.

>> I. TREGUB: SECOND.

>> T. TAPLIN: THANK YOU.

>> MAYOR A. ISHII: OKAY. WE HAVE GOT SOME MORE COMMENTS.

>> I. TREGUB: THANK YOU. I WANTED TO ECHO THE COUNCIL MEMBERS' COMMENTS. I REMEMBER THE 2014 PORTION WHEN I WAS ON THE HOUSING ADVISORY COMMISSION I FEEL LIKE THIS IS LIKE HERE'S AHEAD. NOT TO MINIMIZE THE EFFORT THAT WAS DONE THEN. I THINK WE ARE IN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

VERY CHALLENGING TIMES WHERE EVERY LOCAL JURISDICTION IS REQUIRED TO DO MORE WITH LESS AND I THINK YOU HAVE FAR AND AWAY EXCEEDED THAT MANDATE. YOU'VE TAKEN IT ABOVE AND BEYOND. I APPLAUD YOU. I THANK YOU AND I'M HAPPY TO SUPPORT. I THINK THE MOTION WAS TO MAKE THOSE FOUR FINDINGS, BUT WITH THAT ONE CHANGE THAT WAS REQUESTED. CORRECT?

>> MAYOR A. ISHII: YES. COUNCILMEMBER TAPLIN IS NODDING HIS HEAD YES. I KNOW THAT COUNCILMEMBER BLACKABY AS THEIR HAND RAISED.

>> B. BLACKABY: IF I RECALL CORRECTLY FROM OUR BRIEFING WITH OUR OFFICE WITH COUNCILMEMBER TAPLIN, I BELIEVE CAL OES GAVE KUDOS FOR HER THOROUGHNESS OF THE DOCUMENT IN THE REPORT. REALLY APPRECIATE ALL THE HARD WORK AS FAR WELL AS FIRE MARSHAL RIGS. WE KNOW HOW IMPORTANT FIRE PREPARATION IS. WILDFIRE IN THE HILLS, SEA LEVEL RISE, OTHER PARTS OF BERKELEY. JUST REALLY WANT TO AGAIN THANK YOU AND GO HOW IMPORTANT THE WORK IS AND WE APPRECIATE IT AND OUR CITY IS WELL SERVED BY THE WORK YOU DID. SO THANK YOU.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER HUMBERT.

>> M. HUMBERT: I WILL ASSOCIATE MYSELF WITH ALL THE COMMENTS HERETO FOR MY FELLOW COUNCILMEMBERS. I WANT TO THANK CHIEF SPRAGUE, CHIEF MAY, JAMIE, ALL THE MEMBERS OF THE CORE PLANNING TEAM AND OUR DISASTER AND FIRE COMMISSIONERS FOR THIS TREMENDOUS WORK THAT YOU ALL PUT IN TO DEVELOPING AND REVIEWING THE PLAN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

AND DOING ALL THE PUBLIC OUTREACH. THIS PLAN CONTAINS A WEALTH OF DATA. AMAZING, REALLY. OUR VARIOUS MAN-MADE AND NATURAL HAZARDS ADVERSITY FACES. WE FOUND WILDFIRE. WE'VE GOT TSUNAMI. WE'VE GOT EARTHQUAKE. WE'VE GOT MUCH MORE THAN THE TRIFECTA. IT'S AN INCREDIBLY COMPREHENSIVE AND SOBERING DOCUMENT. IT'S SOMETHING WE SHOULD REALLY LOOK AT AS COUNCIL AS WE PRIORITIZE VARIOUS POLICIES AND PROGRAMS IN THE COMING YEARS. THANK YOU.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER LUNAPARRA.

>> C. LUNAPARRA: I WANTED TO ECHO THE COMMENTS OF MY COLLEAGUES. AS YOU PROBABLY KNOW, WE HAVE A SMALL EARTHQUAKE VERY CLOSE BY YESTERDAY AND EVERY TIME THAT HAPPENS IT ALWAYS REMINDS ME OF HOW PRECARIOUS ALL OF THIS IS AND ALSO HOW MUCH WORK IS GOING INTO PREPARING OUR COMMUNITY IN CASE OF, YOU KNOW, WHEN BIG DISASTER DOES HIT. THANK YOU SO, SO MUCH FOR EVERYTHING YOU ARE DOING AND SUCH AN INCREDIBLE PLAN. THANKS.

>> MAYOR A. ISHII: COUNCILMEMBER BARTLETT, DID YOU HAVE COMMENTS? JUST WANT TO MAKE SURE BECAUSE I CAN'T SEE.

>> B. BARTLETT: NO, THANK YOU.

>> MAYOR A. ISHII: I JUST WANT TO SAY THANK YOU FOR THE PRESENTATION AND ALL YOUR HARD WORK. EVERY DOLLAR SPENT IN HAZARD MITIGATION SAVES SIX DOLLARS DOWN THE LINE. THAT'S AMAZING. ESPECIALLY WANT TO HIGHLIGHT THAT FOR FOLKS ESPECIALLY AS WE WERE TALKING ABOUT REZONE ZERO WORK AND MITIGATION WHEN IT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COMES TO FIRE DANGER IN THE HILLS. AND ALSO JUST LOVE THAT COMMUNITY EDUCATION IS NOT REQUIRED BUT THAT YOU ALL ARE DOING IT, THAT YOU ALL HAVE DONE SUCH EXTENSIVE EDUCATION BECAUSE WHAT'S THE POINT OF HAVING THESE PLANS IF WE DON'T MAKE SURE THE PUBLIC HAS THEM OR KNOWS WHAT TO DO OR WHAT THEY SHOULD BE DOING. THANK YOU FOR TAKING THE FEED MAP AND IMPROVES THE MAPS. THAT SHOWS THAT YOU MADE ADJUSTMENTS AND CHANGES. I WANT TO SAY THANK YOU FOR THAT. THERE IS A MOTION. I THINK WE'VE ALREADY HAD A FIRST AND SECOND. IF YOU COULD PLEASE TAKE THE ROLL, MR. CITY CLERK.

>> CITY CLERK: TO APPROVE THE RECOMMENDATION, COUNCILMEMBER KESARWANI.

>> R. KESARWANI: YES.

>> CITY CLERK: TAPLIN.

>> T. TAPLIN: YES.

>> CITY CLERK: BARTLETT.

>> B. BARTLETT: YES.

>> CITY CLERK: TREGUB.

>> I. TREGUB: YES.

>> CITY CLERK: O'KEEFE.

>> S. O'KEEFE: YES. [ROLL CALL] MOTION CARRIES.

>> MAYOR A. ISHII: ALL RIGHT. THANK YOU ALL SO MUCH. I WANT TO JUST CHECK IN REALLY QUICKLY WITH THE COUNCIL TO SEE IF YOU

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WOULD LIKE TO BREAK BECAUSE WE DID A PRETTY QUICK BREAK. YES. I'M SEEING YES. 10 MINUTES? 15 MINUTES? 10. WE ARE GOING TO TAKE A 10 MINUTE BREAK AND WE WILL BE BACK IN 10 MINUTES. THANK YOU ALL. [BREAK]

>> CITY CLERK: OKAY. WE ARE READY.

>> MAYOR A. ISHII: OKAY. OKAY. WE ARE GOING TO CALL THIS MEETING BACK TO ORDER. THANK YOU ALL. I'M GLAD WE GOT A CHANCE TO TAKE THAT BRIEF BREAK. WE ARE MOVING ON. JUST SO FOLKS KNOW IF YOU MISSED THIS EARLIER, WE MOVED ITEM 10 TO CONSENT AND WE ARE MOVING TO ITEM 11. WE HAVE A PRESENTATION FROM OUR CHIEF. PLEASE, I WILL LET YOU PRESENT.

>> THANK YOU VERY MUCH. FIRST, I WANT TO THANK MAYOR AND COUNCIL FOR ALLOWING US TO COME PRESENT ON THIS ITEM TONIGHT AND FOR YOUR CONSIDERATION ON THIS ITEM. AS I KNOW WE LEANED INTO HEAVILY AND TALKED ABOUT EARLIER TODAY IN OUR ANNUAL REPORT PRESENTATION, WE HAVE A STRONG COMMITMENT TO PROVIDING THE HIGHER -- WITH A FOCUS ON DATA-DRIVEN APPROACHES, LEVERAGING TECHNOLOGY TO IMPROVE OUR RESPONSES AND ADJUST FOR THE STAFFING CHALLENGES THAT WE ARE FACED WITH. SO WE PRESENTED AN ITEM AND THERE'S A LOT OF DETAIL IN IT. I WANT TO GIVE A LITTLE BIT OF A TIMELINE ABOUT HOW WE LANDED IN THIS PLACE TO MEET THIS RECOMMENDATION IN THIS ITEM. WE'LL TALK A LITTLE BIT ABOUT DATA PRIVACY AND PROTECTION AND I'M HAPPY TO ANSWER QUESTIONS AS THEY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COME. SO CONSIDERING TWO TECHNOLOGIES WE HAVE BEEN TALKING ABOUT. ONE OF THEM IS FIXED SURVEILLANCE CAMERAS AND ONE OF THEM IS AUTOMATED LICENSE PLATE READERS OR A.L.P.R.'S. THESE LOCATIONS WERE SELECTED BY THE DEPARTMENT IN PARTNERSHIP -- SORRY, IS THAT OKAY STILL?

>> MAYOR A. ISHII: YEAH.

>> OKAY. WERE SELECTED LOOKING AT THE TIME THEY WERE GOING TO BE THE ONLY CAMERAS PROVIDING THIS VIEW AND LOCATIONS WERE SELECTED BASED ON MAJOR THOROUGHFARES INGRESS AND EGRESS IN THE CITY. RESET 10 LOCATIONS WITH THOSE PARAMETERS IN MIND. TO DATE, WE'VE ONLY BEEN ABLE TO INSTALL ONE OF THOSE AT SIXTH AND UNIVERSITY. IN 2023, COUNCIL APPROVED 52 LOCATIONS FOR AUTOMATED LICENSE PLATE READERS, A.L.P.R.'S. AGAIN, WE LOOKED TO WHERE WE WOULD BEST BE ABLE TO USE THIS TECHNOLOGY. AGAIN, WE LOOKED TO THOROUGHFARES. WHERE VEHICLES TRAVEL IN USING THAT DATA. IN JANUARY 2024, A SECOND FIXED CAMERA ITEM WAS BROUGHT FOR THAT APPROVED SIX ADDITIONAL LOCATIONS USING THOSE SAME TYPES OF PARAMETERS AS WELL AS EIGHT ADDITIONAL LOCATIONS WHEN FUNDING ALLOWED. SO THAT GOT US TO THE TOTAL NUMBER OF 24, AND AS I SAID WE INSTALLED ONE TODAY. FAST-FORWARD TO NOVEMBER 2024 WE ROLL OUT LIVE WITH OUR A.L.P.R. TECHNOLOGY. WE LEARNED A LOT FROM THAT TECHNOLOGY. ONE, WE LEARNED THAT THE EFFICACY WAS THERE. IN A SHORT NUMBER OF TIME WE WERE MAKING A HIGH LEVEL OF ARRESTS,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

GATHERING EVIDENCE FOR SEARCH WARRANTS AND BEING ABLE TO MAKE USE OF THAT TECHNOLOGY. WHAT WE ALSO REALIZED LOOKING AT THE LOCATIONS WE HAD LOCATED THE A.L.P.R.'S ALONG WITH FIXED CAMERAS WE HAD CREATED INADVERTENTLY CREATED REDUNDANCIES IN TECHNOLOGY. WE ALSO DISCOVERED THAT THE A.L.P.R.'S WERE THE SUPERIOR TECHNOLOGY FOR GATHERING VEHICLE TRAFFIC. BE ABLE TO CAPTURE LICENSE PLATES, USE THAT DATABASE TO LOOK AT THAT DATA. WHAT WE ALSO REALIZED WAS THAT WE HAD A GAP WHERE WE WERE GIVING BROAD COVERAGE OF TECHNOLOGY TO OUR CITIES AND THAT THE FIXED CAMERAS COULD BE BETTER UTILIZED TO CAPTURE PEDESTRIAN HEAVY AREAS WHERE THERE WERE BOTH A LOT OF PEDESTRIANS AND HIGHER CRIME RATES. SO WE KNEW THAT THE TWO SYSTEMS COULD WORK TOGETHER AND ALLOW US TO BOTH HAVE INVESTIGATIVE AND DETERRENT EFFECTS ON AREAS THAT HAVE VEHICLE TRAFFIC AS WELL AS PEDESTRIAN TRAFFIC. SO WE BROUGHT THIS ITEM FOR A COUPLE OF REASONS. ONE IS I BELIEVE VERY STRONGLY IN SPENDING MONEY WISELY, USING TECHNOLOGIES THAT ARE SAFE, THAT ARE THE RIGHT TECHNOLOGY FOR WHAT WE ARE TRYING TO ADDRESS. AND, YOU KNOW, LEARNING FROM THE CHALLENGES WE HAD GETTING THE TECHNOLOGY IN PLACE. SO FIXED SURVEILLANCE CAMERAS WE WERE CHALLENGED BY PERMITTING ISSUES, STAFFING ISSUES, BUT ALSO FROM INFRASTRUCTURE ISSUES RELATED TO THAT TECHNOLOGY. WE WERE NOT USING THE RIGHT KIND OF CAMERA FOR THAT LOCATION. AT THE TIME, TECHNOLOGY WERE NOT IN THE SAME PLACE THEY ARE NOW.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NOW WE CAN LOOK INTO SOLAR POWERED CAMERAS, CAMERAS THAT CAN INTEGRATE WITH SYSTEMS WE ALREADY HAVE. WE HAVE A BETTER TECHNOLOGY. AS MUCH AS I REGRET WE HAVE NOT FULFILLED THE COUNCIL DIRECTION ALREADY THAT IS IN PLACE WHERE WE HAD A SMARTER USE OF BOTH THE RESOURCES THAT WE HAD AND EXISTING FUNDING. SO THE ITEM IN FRONT OF US, IN FRONT OF YOU TONIGHT, ASKS FOR A COUPLE OF THINGS. ONE, PURSUANT TO THE SURVEILLANCE ORDINANCE, TECHNOLOGY ORDINANCE, WHICH IS CODIFIED BMC 2.99. IN ORDER FOR US TO SEEK GRANT FUNDING FOR TECHNOLOGY LIKE THIS, WE NEED PERMISSION. SO WE ARE SEEKING COUNCIL PERMISSION TO TECHNOLOGY LIKE THIS PAID FROM THE GRANT FUNDS. WE ALSO -- IN THE FIXED CAMERA ITEMS TO NEW LOCATIONS THAT WE PROPOSE LOOKING AT A NUMBER OF DIFFERENT THINGS. ONE IS OUR TRANSPARENCY HUB DATA AROUND WHERE WE SEE CRIMES MUST OCCURRING WHERE WE KNOW ANECDOTALLY AND HISTORICALLY AND FROM CONVERSATIONS WITH OUR BUSINESS DISTRICTS AND OBSERVATION WHERE PEDESTRIANS GATHER IN HIGHER VOLUMES AND, YOU KNOW, KIND OF PULL THOSE INFORMATION TOGETHER. COMMUNITY MEETINGS, DISTRICT MEETINGS, CALLS FOR SERVICE DATA ID THIS NEED. THE OTHER THING WE SEEK IS PERMISSION TO ENTER INTO THE SURVEILLANCE TECHNOLOGY ORDINANCE PROCESS TO SWITCH FROM THE EXISTING VENDOR THAT WE HAVE FOR FIXED CAMERAS TO EXPLORE THE BLOCK TECHNOLOGY THAT IS COMPATIBLE WITH OUR A.L.P.R. READERS AS A REPLACEMENT TECHNOLOGY. WHAT THAT MEANS IS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WE WILL GO THROUGH ALL OF THE STEPS AS REQUIRED BY THE SURVEILLANCE TECHNOLOGY ORDINANCE, WHICH INCLUDES SIGNIFICANT REVIEW TIME IN CONVERSATIONS WITH THE POLICE ACCOUNTABILITY BOARD, AND THEN ULTIMATELY A REFERRAL COMING TO COUNCIL TO REVIEW AND APPROVE WITH AN ACQUISITION REPORT A USE POLICY FOR HOW THAT TECHNOLOGY IS USED BEFORE WE WERE ABLE TO MOVE TO NEXT STEPS OF THIS PROCESS. I KNOW THERE'S A LOT OF QUESTIONS AROUND HOW WE PROTECT AND SECURE OUR DATA, HOW WE USE OUR DATA, HOW WE SHARE OUR DATA. SO ARLETTE WAS GOING TO SPEAK TO SOME OF THE DATA PROTECTION PIECES.

>> ABSOLUTELY, A PART OF COMMUNITY SAFETY IS SAFEGUARDING PRIVACY. ESPECIALLY FROM MISUSE BY THE FEDERAL GOVERNMENT AND IMMIGRATION ENFORCEMENT. SO THE FLOCK CAMERAS AND PLATFORM ARE DESIGNED SPECIFICALLY WITH THIS IN MIND. SOME STATEWIDE CONTEXT, FIRST, CALIFORNIA STATE LAW UNDER SENATE BILL 54 EXPLICITLY PROHIBITS SHARING SURVEILLANCE DATA FOR FEDERAL IMMIGRATION ENFORCEMENT. WE HAVE AUDITING PROCEDURES IN PLACE TO MAKE SURE WE ARE COMPLIANT. ADDITIONALLY, PHLOX STANDARD TERM OF AGREEMENT FOR BIG DATA SHARING WITH FEDERAL IMMIGRATION AGENCIES AND IF FEDERAL AUTHORITIES EVER REQUEST ACCESS THEY WILL GIVE US A NOTIFICATION IMMEDIATELY. THAT GIVES THE CITY AN OPPORTUNITY TO INTERVENE AND BRING COMMUNITY OVERSIGHT TO THAT REQUEST. THE SECURITY EXTENDS TO THE TECHNOLOGY ITSELF. ALL THE FLOCK CAMERA

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DATA IS ENCRYPTED, IN TRANSIT, INTEREST, USING THE MOST SECURE POSSIBLE. THE DATA IS STORED ON AWS CLOUD, WHICH IS A PLATFORM THAT MEETS THE STRICTEST GOVERNMENT SECURITY STANDARDS. AND IMPORTANTLY THE DATA IS NOT KEPT INDEFINITELY. WE SET A RETENTION PERIOD FOR THE DATA, WHICH REDUCES ANY RISK WITHIN, ASSOCIATED WITH ANY UNAUTHORIZED USE. SO WE ARE DOING OUR DUE DILIGENCE TO MAKE SURE THERE IS THE CAPACITY FOR DATA PRIVACY WITH THIS TECHNOLOGY THAT WE'RE REQUESTING AND REQUESTING TO START THIS S.T.O. PROCESS. AND SO WE'LL HAVE MULTIPLE OPPORTUNITIES AS WELL TO REQUEST MORE DETAILED INFORMATION FROM FLOCK OR OTHER VENDORS AND GET WHATEVER ASSURANCES WE NEED AS A CITY TO MAKE SURE THE DATA WILL BE PROTECTED AND STORED IN A SECURE WAY.

>> MAYOR A. ISHII: ANYTHING ELSE YOU WANT TO ADD? I JUST WANT TO MAKE SURE.

>> NO. I'M SURE THERE'S QUESTIONS WE ARE HAPPY TO ANSWER.

>> MAYOR A. ISHII: WE ARE GOING TO TAKE INITIAL QUESTIONS FROM FOLKS. I'M GOING TO START WITH COUNCILMEMBER TAPLIN.

>> T. TAPLIN: THANK YOU. CAN YOU SAY A BIT MORE ABOUT WHY YOU CHOSE THE NEW LOCATIONS IN PARTICULAR? WHAT KINDS OF CRITERIA? WHAT KINDS OF THINGS ARE WE SEEING THAT WOULD INFORM THE SELECTION OF THOSE LOCATIONS.

>> THE LOCATIONS FROM THE ORIGINAL ITEM ARE BASED ON INGRESS AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EGRESS ROUTES IN THE CITY. NOW THAT WE HAVE THOSE INGRESS AND EGRESS ROUTES COVERED BY LPR TO COVER VEHICLE TRAFFIC AS VEHICLES MOVE IN AND OUT OF THE CITY, WE SAW THAT WE WOULD GET MORE VALUE OUT OF SURVEILLANCE CAMERAS IN LOCATIONS WHERE THERE'S A HIGH PEDESTRIAN VOLUME. SO WE USED CRIME DATA TO LOOK AT CRIMES COMMITTED AGAINST PEDESTRIANS OR CRIMES THAT ARE TYPICALLY OCCUR OUT IN THE OPEN IN STREETS, AND THEN AS THE CHIEF MENTIONED, IN CONJUNCTION WITH INPUT FROM OUR BUSINESS DISTRICTS AND COMMUNITY LIAISONS IN THE POLICE DEPARTMENT WHERE WE KNOW THERE ARE MOMENTS OF PEAK PEDESTRIAN VOLUME ON CERTAIN OCCASIONS LIKE AN EVENT OR A GAME WHERE THOSE CAMERAS ARE GOING TO BE ABLE TO PROVIDE THE MOST PUBLIC SAFETY VALUE.

>> T. TAPLIN: THANK YOU.

>> MAYOR A. ISHII: THANK YOU. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANK YOU. I HAVE TWO QUESTIONS. ONE IS DOES THIS VENDOR HAVE ANY OPTIONS REGARDING HOW THE DATA IS STORED? FOR INSTANCE, IS IT POSSIBLE TO CONFIGURE IT SO THAT THE DATA IS STORED ON THE LOCAL SERVER INSTEAD OF IN THE CLOUD?

>> ONE OF THE ADVANTAGES, IN FACT, OF THIS VENDOR IS WE HAVE THE OPTION TO STORE IT IN THE CLOUD BECAUSE OF THE MAINTENANCE THAT LOCAL STORAGE WOULD REQUIRE AND THE ADDITIONAL COST. PURCHASING SERVICE, WHICH IS PART OF THIS ORIGINAL PLAN WITH THE ORIGINAL VENDOR, A, IS EXPENSIVE. B, REQUIRES REGULAR UPKEEP. C, PRESENTS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ITS OWN RISK OF FAILURE IF THOSE SERVERS GET DAMAGED. SO WE ACTUALLY SEE THE CLOUD STORAGE OPTION AS AN ADVANTAGE AND HELPS US OVERCOME THE ENERGY, LIKE THE REQUIREMENTS, THE LIMITATIONS THAT WE OUTLINED IN THE ITEM AROUND OUR CONTRACTS WITH PG&E, AND LARGE ENERGY REQUIREMENT ARE THOSE SERVERS.

>> S. O'KEEFE: THANK YOU FOR THAT. I HEAR YOU SAYING YOU PREFER SOUNDS LIKE YOUR POSITION AS YOU PREFER THE CLOUD STORAGE. BUT IS IT AN OPTION? IS IT POSSIBLE IS MY QUESTION.

>> WE CAN CERTAINLY CHECK IN WITH FLOCK AND SEE IF IT'S SOMETHING THEY OFFER.

>> S. O'KEEFE: I HAVE A SECOND QUESTION. FORGIVE ME IF YOU MENTIONED THIS IN YOUR PRESENTATION, BUT WILL THERE EVER BE LIVE MONITORING? LIKE A PERSON MONITORING THE SCREENS OR IS IT JUST TO RECORD AND GO BACK. FOR USE WITH READERS?

>> IT'S AN INTERESTING CONVERSATION. A LOT OF AGENCIES AND JURISDICTIONS ARE LOOKING AT REAL-TIME MONITORING AND HOW THAT COULD HELP THE MORE DETERMINED OR PREVENTATIVE NATURE. CURRENTLY, WE DON'T LIVE MONITOR ANY MATERIALS AND OUR POLICIES ACTUALLY FORBID THAT. INTERESTINGLY ENOUGH, IN A COMPANION MEMO THE POLICE BOARD WROTE FOR OUR SECOND FIXED CAMERA ITEM, THEY DID KIND OF POINT TO THAT AND SUGGEST THAT LIVE MONITORING WOULD BE THE WAY TO MAKE THESE CAMERAS MORE EFFECTIVE. I THINK NEXT ROUNDS AS WE LOOK AT THE TECHNOLOGY AND VALUE AND BECOME

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COMFORTABLE WITH THE TECHNOLOGY AND HOW IT'S HELD, I STILL THINK I WOULD LIKE TO SEE PARAMETERS AROUND MONITORING IT. WE WOULD LIKE TO SEEK CRIMES IN PROGRESS, AN EVENT OCCURRING, SOME CONNECTION TO IT VERSUS THE IDEA THAT WE WOULD EVER BE IN THE CITY WHERE WE WOULD JUST ACTIVELY MONITOR CAMERAS WITHOUT SOME REASONABLE SUSPICION OR INFORMATION BASED NEED TO ASSESS IT. …CHANGE TO REGULATIONS WOULD HAVE TO COME THROUGH COUNCIL. YOU AREN'T ALLOWED TO DO LIVE MONITORING. IS THAT CORRECT?

>> YEAH, THE WAY THE ORIGINAL CAMERA ITEM WAS WRITTEN, INCLUDED A PROVISION AGAINST THAT.

>> S. O'KEEFE: I THINK I KNEW THAT. BUT I WANT THE PUBLIC TO UNDERSTAND, IF THAT RULE WERE TO CHANGE, IT WOULD HAVE TO COME BEFORE THIS BOARD. THANK YOU FOR CLARIFYING.

>> MAYOR ISHII: COUNCILMEMBER LUNAPARRA. AND I ALSO SEE COUNCILMEMBER BLACKABY AND THEN WE WILL TWO TO COUNCILMEMBER TREGUB.

>> C. LUNAPARRA: THANK YOU. I HAVE ONE QUESTION. THE YEARS THAT YOU REVIEWED WHEN SELECTING THESE PROPOSED LOCATIONS WERE 2022-2024, RIGHT, FOR THE CRIME DATA? MY QUESTION IS IN TODAY'S SPECIAL MEETING PRESENTATION, THE DATA ANALYSIS SHOWED POST COVID CRIME RATES IN 2022 AND 2023 WERE HIGH AND OUTLIERS WITH 2024 RETURNING TO HISTORICAL NORMS. I'M CURIOUS WHY WE ARE USING THE 2022-2023 DATA WHEN IT ISN'T NECESSARILY REPRESENTATIVE OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THE STANDARD.

>> THE VOLUME CERTAINLY IS DIFFERENT, BUT THE COMPOSITION OF THE CRIMES AND THE GEOGRAPHICAL DISTRIBUTION OF THE CRIMES HASN'T CHANGED GREATLY. THAT WIDE RANGE OF DATA GIVES US A LITTLE MORE CERTAINTY AND A LITTLE LESS VARIANCE THAN JUST LOOKING AT A SINGLE YEAR'S WORTH OF DATA. BUT ANALYSIS WOULDN'T CHANGE IF WE WERE JUST LOOKING AT 2024 DATA.

>> C. LUNAPARRA: THANK YOU, I KNOW WITH SOUTH SIDE SPECIFICALLY, NOISE DISTURBANCES ARE A HIGH NUMBER OF THE REASON PEOPLE CALL THE POLICE DEPARTMENT IN THE FIRST PLACE. AND I'M CURIOUS IF THAT WAS AT ALL TAKEN INTO CONSIDERATION, AS PART OF THE DATA?

>> YEAH, AS PART OF THE DATA CONSIDERATION, WE FILTERED FOR SPECIFIC CRIME TYPES. CASE REPORTS THAT WE THOUGHT WOULD BE POTENTIALLY CAPTURED BY A CAMERA. THAT WOULD BE MORE LIKE A PHYSICAL DISTURBANCE OR ASSAULT, OR ROBBERY OR BLUR GARRY. BURGLARY.

>> C. LUNAPARRA: IS THERE A WAY TO ACCESS THAT DATA?

>> YEAH.

>> MAYOR ISHII: MOVING ONTO COUNCILMEMBER BLACKABY?

>> B. BLACKABY: TWO BRIEF ONES, ARLO, I APPRECIATE YOUR COMMENTS ABOUT THE DATA RETENTION COMPONENT. IF WE THINK OF THIS, YOU KNOW, THERE'S OBVIOUSLY THE SECURITY OF THE DATA THAT'S BEEN COLLECTED AND THE STORAGE OF THAT DATA, THERE'S THE SHARING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CONSIDERATIONS WHICH WE ARE EXPRESSING. BUT ANOTHER BIG FACTOR HERE, IF YOU ARE ONLY KEEPING SO MUCH DATA AUTOMATICALLY ERASING AND DELETING STUFF PAST A CERTAIN TIME PERIOD, THERE'S NOT LIKE A TREASURE TROVE OF DATA ARCHIVED FOR INFINITY, IT'S LIMITED, BUT THAT'S ALSO A VERY IMPORTANT PRONG I WANTED TO HIGHLIGHT. CAN YOU REMIND ME UNDER THE A.L.P.R. POLICY AND PREVIOUS FIXED POLICY WHAT IS THAT DATA RETENTION LENGTH AND WOULD YOU ANTICIPATE CHANGING THAT MOVING FORWARD?

>> ABSOLUTELY. AND THANK YOU FOR RAISING THAT UP. AND ABSOLUTELY, IT LIMITS THE OVERALL LIABILITY IN THE WORST-CASE SCENARIO. CURRENTLY THE RETENTION PERIOD FOR THE ALPR DATA IS 30 DAYS AND RETENTION PERIOD IN OUR DATA POLICY FOR CAMERA DATA IS 180 DAYS. AND WHAT WE ARE BALANCING HERE IS THE EVIDENTIARY VALUE OF THE INFORMATION WE ARE COLLECTING, VERSUS THAT RISK MITIGATION. OBVIOUSLY THE MORE, THE FURTHER BACK OUR DETECTIVES CAN GO TO FIND THE LEADS THAT THEY ARE LOOKING FOR, OR PUT TOGETHER THE CASE THEY ARE WORKING ON, THE MORE PUBLIC SAFETY VALUE WE WILL GET OUT OF HAVING THOSE CAMERAS IN THE FIRST PLACE. BUT OBVIOUSLY, LIKE YOU SAID, THE COUNTER POINT THEN IS HOW MUCH LIABILITY ARE WE ACTUALLY EXPOSING OURSELVES TO, IN THE WORST-CASE SCENARIO THAT THERE WAS SOME BREACH.

>> B. BLACKABY: RIGHT. AND THERE'S A PROVISION, IF IT'S PART OF AN ACTIVE INVESTIGATION, YOU CAN PULL IT, ONLY IF IT'S NOT BEING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

USED IN AN INVESTIGATION YOU HAVE TO ERASE IT, CORRECT?

>> THAT'S CORRECT. BUT IT COULD BE A DETECTIVE BECOMES AWARE OF A SERIES, NEW INFORMATION, THEN THEY NEED TO GO BACK AND FIND THAT.

>> B. BLACKABY: THAT MAKES SENSE.

>> JUST TO CLARIFY THAT FURTHER TOO, IF WE HAD INFORMATION ON THE ALPR SYSTEM OR FIXED CAMERA SYSTEM WE LEARNED BECAME EVIDENCE OF A CRIME, WE WOULD TAKE THAT DATA OFF THAT LOCATION, UPLOAD IT INTO OUR EVIDENCE COLLECTION SYSTEM. IT WOULD NOT BE RETAINED INDEFINITELY ON THE FLOCK SYSTEM OR OTHER SYSTEM. WE TAKE IT AND HOLD ONTO IT.

>> B. BLACKABY: IT KIND OF CONNECTS TO COUNCILMEMBER O'KEEFE, YOU WOULD MOVE THAT INTO THE LOCAL ENVIRONMENT, EVEN IF THE CLOUD ENVIRONMENT IS DELETED AFTER THAT 30 DAYS OR WHATEVER? OKAY. SECOND QUESTION, AS WE ARE THINKING ABOUT AGAIN HOW TO PROSCRIBE AND CONSTRAIN THE ABILITY OF SHARING PERSONAL DATA WITH FEDERAL AUTHORITIES, THERE IS SOME VALUE COORDINATING WITH NEIGHBORING JURISDICTION. SO I WANT TO BE MINDFUL OF, WE DON'T SHARE WITH I.C.E. OR AUTHORITIES OUTSIDE THE STATE OF CALIFORNIA. BUT IF YOU ARE TRACKING A SUSPECT GOING FROM EMERYVILLE TO BERKELEY OR BERKELEY TO EL CERRITO AND THEY ARE USING, CAN YOU TELL US HOW THAT WORKS WITH TRUSTED LOCAL NEIGHBORING JURISDICTIONS, WHICH IS DISTINCT FROM I.C.E. AND

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

SOME OF THESE OTHER PIECES.

>> YEAH, THAT'S GREAT. THAT'S ONE OF THE PROTECTIONS WE ARE GIVEN BY STATE LAW, THIS IS THE WAY YOU CAN AND CAN'T USE THAT INFORMATION. IT WOULD BE VERY CHALLENGING TO OUR ABILITY TO PROVIDE REGIONAL PUBLIC SAFETY IF WE DIDN'T HAVE THE ABILITY TO TALK TO OUR NEIGHBORS ABOUT SUSPECT DESCRIPTIONS, VEHICLE DESCRIPTIONS, INFORMATION AROUND CRIMES THAT ALLOW US TO MAKE CONNECTIONS AND EVENTUALLY SOLVE AND HAVE CHARGEABLE CASES. THE BENEFIT WE HAVE IS THAT A LOT OF OUR SURROUNDING AGENCIES RAISE UP THE SAME PROTECTIONS THAT OUR CITY VALUES AND OUR POLICIES VALUE TO PROVIDE THOSE PROTECTIONS.

>> GREAT, THANK YOU VERY MUCH.

>> MAYOR ISHII: I HAVE COUNCILMEMBER TREGUB AND THEN COUNCILMEMBER BARTLETT. JUST A REMINDER FOR FOLKS SINCE NOT EVERYONE CAN SEE YOUR HEAD NODS, VERBALIZE YES SO FOLKS ONLINE CAN HEAR AS WELL.

>> I. TREGUB: THANK YOU SO MUCH. I KNOW THAT WE HAVE BEEN SPENDING SOME TIME DISCUSSING THIS POLICY OVER THE LAST FEW DAYS. I JUST WANTED YOU TO SEE IF WE CAN GET CONFIRMATION ON A COUPLE OF THINGS. ONE IS, COULD YOU COMMENT ON IF THERE IS CURRENTLY A POLICY SHOULD THESE CAMERAS BE IMPLEMENTED OF WARNING, NOTIFICATION THAT THESE ARE, IN FACT, CAMERA LOCATIONS?

>> SORRY, WAS THE QUESTION --

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: WILL THOSE CAMERAS BE SOMEHOW --

>> I. TREGUB: WILL THERE BE NOTICING AVAILABLE AFTER THE LOCATIONS.

>> THAT'S CORRECT, THE CAMERAS ARE UP, THERE'S SIGNS BELOW THAT SAY THESE ARE UNDER ACTIVE SURVEILLANCE. IT WOULD BE ANY LOCATION WHERE WE PUT A CAMERA.

>> I. TREGUB: OKAY. CAN YOU SPEAK TO THE BEST OF YOUR KNOWLEDGE OF FLOCK'S CURRENT POLICIES AROUND WHO HANDLES THE DATA ONCE IT GOES, IT IS COMPARTMENTALIZED IN FLOCK'S DATABASE?

>> YEAH. ONCE THE SYSTEM IS SET UP, LIKE I SAID, THE DATA IS ENCRYPTED AS IT GOES FROM THE CAMERAS TO THE SERVERS AND ONCE IT'S THERE. THERE'S NOT ANY, TO MY KNOWLEDGE, ANY ACTIVE ABILITY OF FLOCK TO GO IN AND ACCESS THAT DATA.

>> I. TREGUB: AND LASTLY, CAN YOU JUST CONFIRM IF THIS ITEM WAS TO MOVE FORWARD TONIGHT, THIS WOULD ONLY BE THE FIRST STEP? AND COULD YOU DETAIL THE ADDITIONAL STEPS THAT WOULD THEN NEED TO BE TAKEN?

>> YEAH, THAT'S EXACTLY RIGHT. THIS WOULD JUST BE THE BEGINNING OF US EMBARKING ON THE SURVEILLANCE TECHNOLOGY ORDINANCE PROCESS. WHICH REQUIRES US TO PUT TOGETHER AN ACQUISITION REPORT, A USE POLICY, AND THAT INCLUDES DETAILS IN THE SPECIFICATIONS OF THE TECHNOLOGY, AS WELL AS HOW WE WOULD USE IT. SO THAT WOULD GO, WE WOULD WORK WITH THE POLICE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ACCOUNTABILITY BOARD ON THOSE REPORTS AND THEN THAT WOULD COME BACK TO COUNCIL FOR FINAL APPROVAL. BEFORE WE WOULD EVEN BEGIN TO NEGOTIATE A CONTRACT WITH FLOCK.

>> I. TREGUB: THANK YOU SO MUCH.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANK YOU. THIS REFLECTS, OF COURSE, COUNCILMEMBER TAPLIN LEADING THE CHARGE IN THIS ISSUE, OVER FOUR YEARS NOW, MEETINGS. AND I THINK THE PRIVACY DOCTRINES THE CITY HAS ADOPTED TEND TO BE ROBUST. BUT OF COURSE, LIKE EVERYONE ELSE HERE, I SEE THE WRITING ON THE WALL. THE CURRENT ADMINISTRATION IN D.C. HAS SOME TROUBLING TENDENCIES THAT WE WANT TO BE CERTAIN THAT OUR CAMERAS AREN'T MISUSED AGAINST THE PEOPLE. I'M CURIOUS TO HEAR ABOUT AS WELL, ABOUT THE ONSITE STORAGE, THE POSSIBILITY OF REMOVING FROM THE CLOUD AND STORING IN A CONTAINER THAT WE CAN CONTROL. I THINK THAT'S A STRONG DEFENSIVE MECHANISM THAT COULD BE USEFUL. THE STATE SOUNDS GREAT. BUT WHAT WE SEE IN THESE CORPORATIONS, THEY ARE OFTEN BUCKLING UNDER THE PRESSURE OF THE ADMINISTRATION. AND FROM MEDIA, TO SECURITY, TO TECHNOLOGY, PARTICULARLY A.W.S. AND AMAZON AND GOOGLE AND META AND OUR OTHER SILICON VALLEY GIANTS. I'M NOT EXACTLY CERTAIN WE COULD TRUST THE PROVIDER TO BE ABLE TO WITHSTAND THAT KIND OF PRESSURE. SO WE SHOULD TAKE STEPS TO PROTECT OURSELVES.

>> MAYOR ISHII: THANK YOU. ARE THERE ANY OTHER QUESTIONS? OH

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

YES, COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: THANKS FOR COMING BACK AROUND TO ME. JUST TWO QUESTIONS. I WANT TO ACKNOWLEDGE, WHAT I THINK, WHAT I HOPE IS CLEAR, IS THAT THE USE, WHEN WE ARE TALKING ABOUT THE USE OF THESE CAMERAS, THE USE POLICY IS GOING TO COME BACK. WE AREN'T DECIDING THAT TONIGHT. BUT MY QUESTIONS ARE KIND OF AROUND THAT ANYWAY, TECHNOLOGY AND USE POLICY. DO THESE CAMERAS HAVE THE ABILITY TO RECORD SOUND?

>> YES, THEY DO.

>> S. O'KEEFE: AND CAN YOU TURN THAT OFF?

>> I WOULD IMAGINE, I HAVEN'T CONFIRMED. BUT YES, I IMAGINE THAT'S A STANDARD FEATURE WE COULD TURN OFF.

>> S. O'KEEFE: THAT WOULD BE A CONVERSATION FOR THE USE POLICY. COULD YOU JUST STATE WHAT IS THE POLICY ON A.I. FACIAL RECOGNITION, WHICH IS ALSO NOT PART OF THIS BUT PART OF THE GENERAL SURVEILLANCE ORDINANCE.

>> THAT'S NOT A TECHNOLOGY WE ARE SEEKING FOR THIS. IT'S CURRENTLY PROHIBITED BY THE POLICY. SPECIFICALLY PROHIBITED.

>> S. O'KEEFE: OKAY.

>> MAYOR ISHII: I THINK SOME OF THESE QUESTIONS ARE ALSO TO GET CERTAIN INFORMATION OUT THERE. SO I APPRECIATE THAT. I THINK I WANT TO OPEN IT UP TO PUBLIC COMMENT NOW THAT WE HAVE ASKED OUR QUESTIONS. IS THERE ANY PUBLIC COMMENT ON THIS ITEM? IF SO,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PLEASE WALK UP HERE TO THE PODIUM. COME ON, FOLKS. WHO'S COMING UP?

>> COUNCILMEMBERS, I HOPE WE ALL KNOW WHAT TIME IT IS. IT'S JUST FOOLING YOURSELVES TO THINK IF YOU COLLECT, IF YOU ALLOW THE COLLECTION OF THIS DATA THAT IT WON'T BE ACCESSED BY THE FEDERAL GOVERNMENT. AND TO THINK THAT FLOCK IS GOING TO SOMEHOW DEFEND OUR RIGHTS IS JUST SORT OF MAGICAL THINKING. IF YOU READ THE GUARDIAN ARTICLE FROM MARCH 11, 2025, I.C.E. ACCESSED CAR TRACKER INFORMATION IN SANCTUARY CITIES THAT HELPS IN I.C.E. RAIDS. MARCH 11TH, THE GUARDIAN. JUST A WEEK AGO. IT'S ALREADY HAPPENING. WE DON'T HAVE TO WAIT. BUT IF WE GATHER THAT INFORMATION, WE'RE DOING I.C.E.'S WORK. WE ARE DOING THE WORK OF HOMELAND SECURITY. WE ARE DOING WORK OF THE SECRET SERVICE. AND THIS IDEA IT'S IN THE CLOUD, BUT THEN WE WILL DOWNLOAD IT AND SOMEHOW THEY WON'T HAVE ACCESS? THEY ARE GOING TO GO RIGHT TO FLOCK. THEY AREN'T GOING TO ASK YOU OR THE STATE OF CALIFORNIA. I MEAN, LOOK AT WHO GOT DEPORTED THIS WEEKEND, ILLEGAL DEPORTATION.

>> MAYOR ISHII: THANK YOU, YOUR TIME IS UP. THANK YOU FOR YOUR COMMENT.

>> HI, I'VE BEEN CEDED TIME BY, IS IT JACK? JACK? ART, SORRY, CLOSE.

>> MAYOR ISHII: SO YOU'VE GOT TWO MINUTES. GO AHEAD.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> I'M CONFIDENT THAT THE COUNCIL WILL VOTE TO REMOVE THE TELEGRAPH INTERSECTION FROM THE LIST OF CAMERA LOCATIONS TONIGHT, AS YOU VOTED UNANIMOUSLY TO DO LAST YEAR. I'M SURE YOU WILL DO THIS BECAUSE YOU WANT TO KEEP YOUR WORD TO YOUR CONSTITUENTS AND BECAUSE YOU WANT TO RESPECT THE REQUEST OF YOUR COLLEAGUE. SO I WILL FOCUS ON THE LARGER ISSUE OF THE ENTIRE PROGRAM OF GOVERNMENT SURVEILLANCE ON CIVILIANS. STUDIES HAVE NOT SHOWN THAT CAMERAS ARE EFFECTIVE IN PREVENTING CRIME. IT'S NICE THAT THE DATA WILL BE ENCRYPTED, IT'S NICE THE CITY WON'T GIVE IT UP WILLINGLY, BUT TO THINK THIS PROTECTS OUR PEOPLE IS TO LIVE IN A FOOL'S PARADISE, NO OFFENSE. EVERYONE KNOWS THERE'S NO CHECK ON THE TRUMP ADMINISTRATION, EVERYONE KNOWS THEY HAVE NO REGARD FOR THE LAW OR CONSTITUTION AND FOR THEM DATA INFORMATION, OFTEN MISINFORMATION IS THEIR MOST EFFECTIVE WEAPON. USERS OF SOCIAL SECURITY WILL HAVE TO COME IN PERSON TO SHOW UP TO GET THEIR BENEFITS. EDWARD SNOWDEN WARNED US IN 2015 THAT BULK DATA COLLECTION WAS RAMPANT IN THE NATIONAL SECURITY STATE AT THAT TIME. ALL THE DEPARTMENT LAID OUT IN THE PRESENTATION WOULD BE LAUGHABLE IF THIS WASN'T SUCH A SERIOUS ISSUE. THE FEDS WILL ROLL OVER YOU, THE WAY THEY ARE ROLLING OVER WASHINGTON POST, WASHINGTON D.C., FEDERAL TRADE COMMISSION AND PEACE OFFICE TODAY AND PRACTICALLY EVERY OTHER INSTITUTION NAS ALLEY. A RETIRED LIBRARIAN YOU MAY BE FAMILIAR WITH

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

EXPLAINED WHAT HER COLLEAGUES DID WHEN F.B.I. CAME AROUND CHECKING RECORDS OF PEOPLE WHO CHECKED OUT CONTROVERSIAL BOOKS. THEY STOPPED COLLECTING THE DATA. IF YOU BUILD THE DATABASE, THEY WILL COME FOR IT. I WILL USE KAMALA HARRIS'S WORDS HOW DO YOU PROTECT THE PUBLIC FROM THE FASCIST ADMINISTRATION.

>> MAYOR ISHII: FINISH YOUR SENTENCE.

>> THAT MEANS STOP ENGAGING INFORMATION WITH THE INTELLIGENCE FUSION CENTER AND NCRIC, STOP WORKING WITH OASI (?) AND IF YOU COLLECT VIA BULK DATA IT WILL GO TO MAGA. THERE WAS NO PERIOD. THERE WAS NO WAY TO DO THIS SAFELY. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. FOLKS WHO ARE NEW TO COMING TO COUNCIL, SINCE I'VE BECOME MAYOR, I'M STRICT ON TIMING. I TRY TO BE REALLY CONSISTENT ABOUT THAT.

>> HI. MY NAME IS BEN. I'M A U.C. BERKELEY STUDENT. AND I AM COMING HERE TO OPPOSE THE CAMERA AT THE TELEGRAPH AND DURANT INTERSECTION, IN PART BECAUSE IT'S NOT, IT'S AGAINST THE WISHES OF THE VAST MAJORITY OF STUDENTS AT BERKELEY. WE DON'T WANT TO BE RECORDED ALL THE TIME. AND I WOULD ALSO LIKE TO ADD ABOUT THE PROGRAM IN GENERAL THAT WE VALUE PUBLIC SAFETY LIKE CIVIL LIBERTIES LIKE THE RIGHT TO PRIVACY ARE FUNDAMENTAL AND WE HAVE TO BALANCE THOSE AGAINST OTHER NEEDS LIKE THAT OF PUBLIC SAFETY. AND I KNOW THE STATE OF CALIFORNIA HAS A LAW THAT SAYS THAT, I THINK PRIVATE PEOPLE CANNOT JUST RECORD SOMEONE WITHOUT THEIR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CONSENT. AND IF A PRIVATE PERSON CAN'T RECORD SOMEONE WITHOUT THEIR CONSENT, I DON'T UNDERSTAND WHY A PRIVATE CORPORATION SHOULD BE ABLE TO RECORD PEOPLE WITHOUT THEIR CONSENT. AND GOING OUT IN PUBLIC IS NOT CONSENT. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HELLO, MY NAME IS EVAN FLORES, I'M A RESIDENT AND EMPLOYEE OF A NONPROFIT ORGANIZATION IN BERKELEY'S DISTRICT 7. I UNDERSTAND IN THE CITY OF BERKELEY SAFETY IS ONE OF OUR PRIORITIES. BUT THE ORDINANCE TO PUT UP SURVEILLANCE CAMERAS BETWEEN DURANT AND TELEGRAPH IS AN OVERREACH OF THE CITY'S POWER. INTRUSION TO THE PRIVACY OF THE CITY'S RESIDENTS. PRIVACY ESPECIALLY DURING THESE TRYING TIMES IS CRUCIAL TO KEEPING PEOPLE SAFE. WHAT IS MOST WORRISOME IS THESE CAMERAS CAN FALL NOT IN THE HANDS OF U.C.P.D. OR B.P.D. BUT FEDERAL GOVERNMENT AND I.C.E. WHO SEEK TO ROOT OUT CITIZENS DOCUMENTED AND UNDOCUMENTED PEOPLE. THEY ARE PUTTING OUR RESIDENTS IN DANGER OF FEDERAL INTRUSION. ESPECIALLY AS THE FEDERAL GOVERNMENT SEEKS TO OVERRIDE STATE LAW AND SEIZE SURVEILLANCE INFORMATION. I ASK THE CITY OF BERKELEY TO CHANGE THEIR MIND PUTTING CAMERAS ON TELEGRAPH AND DURANT. YOU SHOULDN'T LET THESE CAMERAS BE INSTALLED. THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> GENERALLY I FAVOR CAMERAS, AS A LAW ENFORCEMENT TOOL. I SEE IT HAS DNA THAT IT ACTUALLY PROVES OR EXONERATES THE INNOCENT AS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WELL AS PROVES THE GUILTY. HOWEVER, WE ARE CLEARLY MOVING TOWARDS A DICTATORSHIP. WE HAVE A PRESIDENT THAT DOESN'T HONOR COURT ORDERS AND DEPORTS PEOPLE WITHOUT DUE PROCESS. SO I AM DEEPLY CONCERNED, ARE WE GOING TO BE ABLE TO HAVE THE SAFEGUARDS? OR CAN THE DOGE KIDS THAT ARE HIGH TECH BUT SOULLESS HACK INTO US? WE ALL GET HACKED ALL THE TIME. IS THIS REALLY HACK-PROOF? AND I'M CONCERNED ABOUT THE SOUND FACTOR THAT WAS JUST ANNOUNCED. I DON'T SEE HOW THAT'S LEGAL TO HAVE SPEECH RECORDED THAT MAY BE OTHERWISE PRIVILEGED.

>> MAYOR ISHII: THANK YOU. OUR NEXT COMMENTER?

>> CAN I HAVE ANOTHER MINUTE TOO?

>> MAYOR ISHII: YES. TWO MINUTES FOR THIS SPEAKER FROM SOMEONE IN THE AUDIENCE.

>> THANK YOU, MY NAME IS LINDSAY, I'M A CURRENT U.C. BERKELEY STUDENT AND PRESIDENT OF CAL BERKELEY DEMOCRATS. I'M DEEPLY CONCERNED AND DISAPPOINTED BY THE INCLUSION OF TELEGRAPH AND DURANT INTERSECTION IN THIS PROPOSAL. I'M A D-7 RESIDENT AND I LIVE NEAR THIS PROPOSED LOCATION. BECAUSE OF THAT I ENCOURAGE COUNCIL TO EITHER REMOVE THIS SITE FROM THE LIST OF CAMERAS OR VOTE NO ON ITEM 11 OVERALL IF IT CAN'T BE REMOVED. STUDENTS, PARTICULARLY STUDENTS OF COLOR AND IMMIGRANT STUDENTS AMONG OTHER FOLKS HAVE EXPRESSED THEIR DISAPPROVAL OF THIS. TELEGRAPH AND DWIGHT INTERSECTION. THIS TIME NO STUDENTS WERE CONSULTED

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WHICH IS UNACCEPTABLE, WHEN THE PROPOSED CAMERA LOCATIONS ARE LOCATED IN HIGH STUDENT LOCATIONS AND SPECIFICALLY LIKE THIS LOCATION IN A 95% STUDENT COUNCIL DISTRICT. I CAN PERSONALLY SAY THIS LOCATION MAKES ME FEEL MORE UNSAFE AND I REJECT THE CLAIM THAT SURVEILLANCE IS NECESSARY TO INCREASE PUBLIC SAFETY. AS A STUDENT ACTIVIST I FEEL THESE ARE ANOTHER TOOL TO SUPPRESS STUDENT VOICES CONTRIBUTING TO THE TROUBLING TREND OF INCREASING SURVEILLANCE UNDER THE TRUMP ADMINISTRATION. I DON'T SEE THIS TELEGRAPH AND DURANT SURVEILLANCE CAMERA LOCATION, AND I DO ADMIRE PROPOSAL'S INCLUSION THAT BANS LIVE MONITORING BY A HUMAN PERSON BUT I AM A LITTLE TROUBLED BY THE CHIEF OF POLICE'S INHERENT DESIRE TO IMPLEMENT LIVE MONITORING IN THE FUTURE. OR IF THE PROPOSAL WERE TO BE CHANGED. AND THE COMMITTEE IS ALSO DISPROPORTIONATELY TARGETED BY VIOLENCE SHOULDN'T BE MADE TO FEEL MORE UNSAFE IN THEIR NEIGHBORHOODS. THIS ERODES TRUST. IT BRINGS US ONE STEP CLOSER TO LIVING UNDER A FULL SURVEILLIAN (?) STATE. I URGE YOU TO REMOVE TELEGRAPH AND DURANT.

>> MAYOR ISHII: THANK YOU. COME ON UP.

>> MY NAME IS PETER TOMA, I'M A PH.D. STUDENT IN MECHANICAL ENGINEERING AT U.C. BERKELEY. AND I'VE COME HERE TO SPEAK AGAINST THE PROPOSED CAMERA INSTALLATION. OUR SOCIETY IS MOVING INTO TECHNO FEUDALISM WHERE TECH CORPORATIONS CONTROL EVERYTHING AROUND US. OUR LIVES ARE NOT OUR OWN AND I ASSURE YOU THAT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THERE'S DETAILS ABOUT THIS SYSTEM THAT THE COMPANY IS NOT TELLING YOU ABOUT THAT COULD POTENTIALLY STEAL OUR PRIVACY AND OUR LIVES. I URGE YOU TO VOTE AGAINST TECHNO FEUDALISM AND NOT INSTALL THIS CAMERA SYSTEM. OKAY, THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI, MY NAME IS ASHMITA, I'M A PUBLIC HEALTH STUDENT AT BERKELEY. I WANT TO SAY CAMERAS DON'T KEEP US SAFE, WE KEEP US SAFE. THIS ISN'T WHAT MAKES OUR COMMUNITIES SAFE, THIS WILL ENDANGER THE IMMIGRANTS IN OUR COMMUNITY AND ALSO HELP WITH THE TRUMP ADMINISTRATION'S CRACKDOWN ON FREE SPEECH LIKE WHAT HAPPENED WITH MAHMOUD KHALIL. HE IS A LEGAL RESIDENT. BUT EVEN OUR UNDOCUMENTED COMMUNITY DESERVE TO BE PROTECTED. AND OVER POLICING AND OVER SURVEILLANCE ARE GOING TO PUT THEM IN DANGER. SO WE, IF YOU STAND AGAINST TRUMP'S ANTI IMMIGRANT POLICE STATE, AND BERKELEY RESIDENTS DO, THEN YOU WILL VOTE AGAINST THIS. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> HI, MY NAME IS LILY SIMONSON FROM DISTRICT 3. IT'S CLEAR WE ALL VALUE A RIGHT TO PRIVACY. AND WE ALL VALUE PUBLIC SAFETY, SO WE REALLY NEED TO CONSIDER POTENTIAL TRADE-OFFS BETWEEN THE TWO. AND I AM NOT GOING TO REITERATE WHAT ALL THE FELLOW COMMENTERS SAID. I REALLY APPRECIATE THE CHIEF SHARING THE TIMELINE. AND I JUST THINK WE SHOULD CONSIDER WHERE WE STARTED, WHICH WAS

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

LOOKING AT VEHICLE-RELATED CRIME AND TRAFFIC. AND THAT, GETTING IN A VEHICLE IS ALREADY A HIGHLY REGULATED ACTIVITY. SO THAT IS A CERTAIN LEVEL OF SURVEILLANCE THAT WE ALL KIND OF INHERENTLY CONSENT TO. BUT GOING OUT ON THE STREET IN OUR OWN NEIGHBORHOOD, WE AREN'T INHERENTLY CONSENTING TO BE SURVEILLED. I THINK WE SHOULD MAYBE RETURN TO, WITHOUT REDUNDANCIES FINDING VEHICLES, LOOKING AT THAT INSTEAD. THANK YOU.

>> MAYOR ISHII: THANKS FOR YOUR COMMENT. I THINK YOUR MINUTE WAS GIVEN TO GEORGE. YOU, OF COURSE, CAN SPEAK. I JUST WANTED TO MAKE SURE IT WAS CLEAR.

>> MY NAME IS LOREN. EVEN THOUGH YOU GUYS ARE WORRIED ABOUT THE CAMERA THING, I THINK YOU CAN USE THAT MONEY IN A WHOLE ANOTHER MATTER THAT IS REALLY A PROBLEM AND PEOPLE AREN'T SAFE, THE PEOPLE UNHOUSED AND HOMELESS AND SO FORTH. THAT SHOULD BE USED FOR THAT MATTER, NOT INVADING PEOPLE'S PRIVACY. IT WON'T DO ANYTHING, YOU HAVE ENOUGH CAMERAS AS IS AND IT'S NOT DOING ANYTHING. PEOPLE ARE UNHOUSED, THERE'S A LOT OF WOMEN THAT HAVE DIED BEING ON THE STREETS. THERE'S A LOT OF PEOPLE BEING HURT ON THE STREETS. THAT'S AN ISSUE THAT SHOULD BE ADDRESSED. IF YOU USE THE MONEY, USE IT TOWARD THAT, KEEP YOUR PEOPLE SAFE. I THINK THAT'S THE PROBLEM AND NEEDS TO BE ADDRESSED, RATHER THAN A CAMERA IN AN INTERSECTION. I HOPE THAT MAKES ANY SENSE. SO. THAT'S ALL I HAVE TO SAY. YES.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: THANK YOU. THANK YOU FOR YOUR COMMENTS. ARE THERE COMMENTS ONLINE?

>> CITY CLERK: YES, THERE'S CURRENTLY 16 HANDS RAISED. FIRST IS NATHAN MIZELL.

>> THANK YOU, MADAM MAYOR AND COUNCIL, CAN YOU HEAR ME?

>> MAYOR ISHII: YES.

>> THIS IS NATHAN MIZELL. FORMER P.A.B. MEMBER. I WOULD JUST ASK THE COUNCIL TO HONOR MUCH OF ITS WORD LAST YEAR TO REMOVE THE CAMERA ON TELEGRAPH AND DURANT. CERTAINLY IF YOU REMOVE ONE ON TELEGRAPH AND DWIGHT, THE REMOVAL OF TELEGRAPH AND DURANT IS UNDERSTANDABLE. 30 SECONDS I DON'T HAVE TIME TO GET INTO IT. COURTS HAVE LOOKED AT THIS. LOOK AT UNITED STATES VERSUS SANCHEZ, 8/21, FEDERAL REPORTER, PAGE 248. THERE'S A LOT OF CASE LAW, EVEN IN CASES WHERE A WARRANT IS PROCURED HOW INVASIVE THIS TYPE OF SURVEILLANCE CAN BE. THE COURT, DARE I USE THE WORD ORWELLIAN TO DESCRIBE 60 DAYS OF SURVEILLANCE OF A SPECIFIC SUSPECT. 160 DAYS OF VIDEO AND AUDIO SURVEILLANCE IS INCREDIBLY INVASIVE.

>> MAYOR ISHII: YOUR TIME IS UP.

>> CITY CLERK: NEXT IS REN FITZGERALD.

>> HELLO, THIS IS REN FITZGERALD, SPEAKING ON MY OWN BEHALF, I OPPOSE THE USE OF SURVEILLANCE CAMERAS SPECIFICALLY DURANT AND TELEGRAPH. THE BERKELEY POLICE DEPARTMENT IS ATTEMPTING TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

INSTALL THROUGH SHADY WAYS. B.P.D. IS BLATANTLY DISREGARDING THE WILL OF THE SURROUNDING COMMUNITY. JUST A MONTH AGO YOU VOTED TO NOT INSTALL A CAMERA AT TELEGRAPH AND DWIGHT, TWO BLOCKS FROM THE CURRENT PROPOSAL. THE INCLUSION OF THIS INTERSECTION -- I HAVE CONCERNS REGARDING THE COLLECTION AND USE OF DATA AROUND THESE CAMERAS. B.P.D. SAY THEY EXPERIENCED NO DATA BREACHES YET THE VENDOR'S OWN WEBSITE DISCLOSES MULTIPLE BREACHES. LASTLY, MOST IMPORTANTLY, THIS PROPOSAL CANNOT BE CONSIDERED WITHOUT ACKNOWLEDGING THE INTERNATIONAL THREAT OF FASCISM'S IMPACT ON SECURITY.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: NEXT IS -- SORRY, CAN WE TAKE A PAUSE FOR A SECOND. THERE ARE A LOT OF THINGS THAT HAVE BEEN ASKED. AND I WANT TO ADDRESS SOME OF THEM BEFORE MOVING ON. I FEEL WE ARE GOING TO LOSE TRACK OF THEM, AND I DON'T WANT TO STACK UP A LOT OF THINGS AT THE END. I JUST WANT TO CLARIFY THERE WAS A QUESTION, THERE ARE MANY CAMERAS. I WANT TO CONFIRM HOW MANY CAMERAS ARE CURRENTLY OUT THERE. COULD YOU ADDRESS THAT, POLICE CHIEF?

>> THERE'S CURRENTLY FIXED CAMERAS AT THE MARINO, AT SAN PABLO PARK, LONG-TIME CAMERAS APPROVED FOR FIXED SURVEILLANCE WE REPORT ON ANNUALLY IN OUR SURVEILLANCE TECHNOLOGY REPORT AND WE HAVE THAT ONE CAMERA AT UNIVERSITY AND SIXTH.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: I WANT TO MAKE SURE THAT FOLKS KNOW THAT. AND THEN I'M SORRY, I KNOW I'M TAKING PRIVILEGES, BEING IN MY SEAT TO ADDRESS THESE THINGS BUT I WANT TO MAKE SURE WE ADDRESS THEM BEFORE MOVING ON, IN CASE SOME OF THE COMMENTERS ARE CURIOUS ABOUT SOME OF THESE OTHER THINGS. THERE'S A COMMENT, A COUPLE COMMENTS ABOUT A PRIVATE COMPANY DOING THIS WORK. IF YOU COULD BRIEFLY SPEAK TO WHY IT'S A PRIVATE COMPANY THAT WE ARE WORKING WITH TO DO THIS? AS OPPOSED TO MAYBE DOING IT IN-HOUSE?

>> WE NEED TO CONTRACT WITH A PRIVATE COMPANY TO PROCURE THE EQUIPMENT, THE CAMERAS, AND THE SERVICES OF MAINTAINING THE DATABASE. AND GIVING US ACCESS TO THAT INFORMATION. IT'S A LOT OF TECHNOLOGICAL CAPACITY THAT WE JUST DON'T HAVE IN-HOUSE. I DON'T THINK MANY CITY GOVERNMENTS DO.

>> MAYOR ISHII: THANK YOU. AND THERE WAS SOME CONCERN AROUND THE LEGALITY OF SPEECH BEING RECORDED. COULD YOU SPEAK TO THAT AS WELL, PLEASE?

>> YEAH, THERE'S PROHIBITIONS AND STATE LAW AROUND RECORDING SOMEONE WITHOUT THEIR KNOWLEDGE OR CONSENT. ONE OF THE THINGS YOU DO WHEN YOU SIGN BY BEING IN THIS LOCATION YOU ARE UNDERSTANDING YOU ARE BEING FILMED. THAT'S WHAT THAT SIGN DOES, IS PREVENT THAT UNKNOWN RECORDING FROM OCCURRING. WHAT I WANT TO POINT OUT, WHAT'S WRITTEN IN OUR CURRENT USE POLICY AROUND THE FIXED CAMERA WE HAVE, SPECIFICALLY CALLS OUT THAT WE DO NOT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

RECORD SOUND. IT ALSO SPECIFICALLY SETS OUT THE TIMES AND THE WAYS WE ACCESS THAT DATA, NOT LIVE MONITORING, THAT'S BUILT INTO THE USE POLICY, THE PLACES AND SPACES WE DEFINE WE AS A CITY WANT TO ACCESS, HOLD AND USE THAT TECHNOLOGY REALLY GETS BAKED IN AS WE WORK THROUGH THOSE PROCESSES.

>> MAYOR ISHII: THERE ARE A LOT OF CONCERNS ABOUT THE FEDERAL ADMINISTRATION GETTING ACCESS TO THIS DATA. IF YOU COULD PLEASE JUST ADDRESS, PERHAPS THE RIGHT TIME WOULD BE TO BE LOOKING AT PROTECTIONS? BECAUSE I THINK RIGHT NOW WE ARE HAVING A CONVERSATION ABOUT ACCESSING POTENTIAL GRANT FUNDING AND MOVING FORWARD ON THIS PROCESS, AS OPPOSED TO TALKING ABOUT POLICIES AND PROTECTIONS. I AM DEFINITELY CONCERNED ABOUT THOSE THINGS AS WELL.

>> YEAH, ABSOLUTELY. SO LIKE WE MENTIONED, THIS IS THE BEGINNING OF A LONGER PROCESS. SURVEILLANCE TECHNOLOGY ORDINANCE. COUNCIL WILL HAVE ANOTHER OPPORTUNITY TO SEE THE USE POLICIES THAT WE WILL PROPOSE AND ACQUISITION REPORT WITH ALL THE TECHNICAL SPECIFICATIONS OF THE TECHNOLOGY THAT WE ARE ASKING FOR. THAT WILL COME AFTER HAVING -- THAT WILL COME WITH A RECOMMENDATION AND A REVIEW FROM THE POLICE ACCOUNTABILITY BOARD AS WELL.

>> MAYOR ISHII: JUST TO CONFIRM ALSO, IF WE ARE NOT HAPPY WITH THAT, IF WE DON'T FEEL IT FULLY PROTECTS OUR PEOPLE, WILL WE BE ABLE TO SCRATCH THIS PLAN AND NOT PUT THE CAMERAS UP?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> ABSOLUTELY. YOU COULD HAVE A USE POLICY IN FRONT OF YOU AND SAY THIS SPECIFIC LANGUAGE COULD BE STRUCK. THE LANGUAGE THAT WE CURRENTLY HAVE IN OUR FIXED SURVEILLANCE USE POLICY AROUND SHARING WITH FEDERAL GOVERNMENT TALKS ABOUT VIDEO SURVEILLANCE SYSTEMS AND RECORDINGS ARE SUBJECT TO BERKELEY POLICE DEPARTMENT'S IMMIGRATION LAW POLICY AND HENCE MAY NOT BE SHARED WITH FEDERAL IMMIGRATION ENFORCEMENT OFFICIALS. WE PUT LANGUAGE LIKE THAT IN OUR USE POLICY, WE BUILD INTO THE CONTRACT VERY SPECIFIC EXPECTATIONS WHICH FLOCK HAS AS PART OF THEIR NORMAL OPERATING AGREEMENTS, IN TERMS OF AGREEMENT IT'S NOT SHARED FOR THOSE PURPOSES.

>> MAYOR ISHII: THANK YOU. I REALLY APPRECIATE THAT. AND I ALSO JUST WANT TO CLARIFY THAT CHIEF, YOU WERE SAYING IF THERE WERE LIVE MONITORING YOU WOULD WANT TO SEE ADDITIONAL PARAMETERS. NOT THAT YOU ARE ADVOCATING FOR LIVE MONITORING, I WANT TO MAKE SURE THAT'S CLEAR.

>> YES, THAT'S ABSOLUTELY CORRECT. WHAT'S IN OUR USE POLICY IT SPECIFIES VERY SPECIFIC TIMES AND WAYS WE USE IT. IF WE WERE TO STEP IN THE SPACE AT SOME POINT IN THE TIME IN THE FUTURE FOR LIVE MONITORING, MY EXPECTATION WITH THE SAME PARAMETERS OF SAFETY AND NEED AND REASONABLE SUSPICION TO BE CLEARLY IDENTIFIED TO OUR PUBLIC, AND FOR COUNCIL AND POLICE ACCOUNTABILITY BOARD AND POLICE DEPARTMENT TO TALK AND HAVE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CONVERSATIONS WHAT BALANCE IS AND LIMITS WE WANT ON THE ABILITY TO HAVE THAT KIND OF ACCESS.

>> MAYOR ISHII: THANK YOU. AND THAT REALLY HIGHLIGHTS ANOTHER THING I WANTED TO TOUCH ON BEFORE WE FINISH THE REST OF OUR PUBLIC COMMENTS. THERE ARE MANY MORE STEPS LEFT HERE WE WILL GET OPPORTUNITIES TO REVIEW. AND YOU ALSO WILL BE SPEAKING WITH P.A.B. AND MEMBERS OF THE COMMUNITY BEFORE PLACING THESE CAMERAS UP THERE. I WANT FOLKS TO UNDERSTAND IT'S NOT THAT WE ARE TRYING TO PULL ONE OVER, THIS IS JUST PART OF THIS PROCESS. WE HAVE A VERY STRICT PROCESS IN PLACE TO PROTECT PEOPLE'S RIGHTS. SO THANK YOU.

>> THAT'S CORRECT.

>> MAYOR ISHII: I APOLOGIZE FOR TAKING US OFF TRACK A LITTLE BIT BUT I WANT TO MAKE SURE IN CASE FOLKS HAD QUESTIONS ON THE ZOOM THAT THOSE WERE ANSWERED. MR. CITY CLERK, I'M SORRY, COULD WE GO BACK TO PUBLIC COMMENT. I JUST WANTED TO GIVE YOU AN OPPORTUNITY TO ADDRESS SOME OF THOSE THINGS. BLESS YOU. SOMEONE IN THE AUDIENCE IS SNEEZING.

>> CITY CLERK: OKAY, NEXT COMMENT IS BRYCE MILLER.

>> GOOD EVENING, COUNCIL. MY NAME IS BRYCE MILLER, I'M A STUDENT AND PRESIDENT FOR TELEGRAPH FOR PEOPLE ON CAMPUS. I'M SPEAKING ON ITEM 11, INSTALLING SURVEILLANCE CAMERAS. TELEGRAPH FOR PEOPLE VOTES YOU VOTE AGAINST TELEGRAPH AND DURANT. TELEGRAPH

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FOR PEOPLE'S CORE MISSION IS SPELLED OUT IN OUR NAME TO CREATE A TELEGRAPH THAT SERVES PEOPLE. WE BELIEVE THAT CARS DO NOT BELONG ON TELEGRAPH AND NEITHER DO SURVEILLANCE CAMERAS. THERE ARE A MILLION OTHER SOLUTIONS TO PUBLIC SAFETY LIKE INVESTING IN DISINVESTING COMMUNITIES AND HARM REDUCTION. WE WEREN'T CONSULTED WHICH IS APPALLING, WE DON'T WANT SURVEILLANCE CAMERAS IN OUR DISTRICT THAT IS 95% STUDENTS. NO LEVEL OF POLICY WILL MAKE THESE CAMERAS A GOOD IDEA. PLEASE REMOVE TELEGRAPH AND DURANT FROM THE LIST OF SITES OR VOTE NO ON ITEM 11. THANK YOU.

>> MAYOR ISHII: THANKS, BRYCE.

>> CITY CLERK: OKAY. NEXT UP IS DINO. YOU SHOULD BE ALLOWED TO TALK.

>> THANK YOU VERY MUCH, I JUST WANT TO VOICE MY SUPPORT TO ALLOW LAW ENFORCEMENT TO DO THEIR JOB. I'M WHOLEHEARTEDLY IN FAVOR TO MAKE SURE WE PUT SAFEGUARDS IN PLACE TO PROTECT IMMIGRANT COMMUNITIES AND PEOPLE THAT SHOULD NOT HAVE ACCESS TO THIS INFORMATION AT THE FEDERAL LEVEL. HOWEVER, I DO SUPPORT THE IDEA OF SAFETY AND SECURITY IN OUR DOWNTOWN AREA, I'M THE FRANCHISEE OF MCDONALD'S AT UNIVERSITY AND SHATTUCK AND I WOULD LOVE TO PROVIDE A SAFE AND SECURE ENVIRONMENT FOR OUR PUBLIC AND CREW MEMBERS THAT PASS BY. I'M IN SUPPORT OF GIVING LAW ENFORCEMENT THE TOOLS THEY NEED TO DO THEIR JOBS.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: OKAY, NEXT IS DAVID BULLITT.

>> YES, HI. DAVID FROM -- ITALIAN. IT'S DISAPPOINTING TO ME, FOR THREE PLUS YEARS WE ALREADY HAVE A PROGRAM FOR CAMERAS AND ONLY ONE HAS BEEN DEPLOYED. SO A LOT OF THE WORK HAS ALREADY BEEN DONE, WE SHOULDN'T HAVE TO REDO IT ALL FOR NEW CAMERAS. WE CAN TALK ABOUT WHERE THEY SHOULD BE PLACED. BUT I'M IN FULL SUPPORT OF ADDING CAMERAS, WE SHOULD SUPPORT THE POLICE AND GIVE THEM THE ABILITY TO TRACK AND SUPPORT THOSE PEOPLE WHO ARE DOING THINGS THAT ARE INAPPROPRIATE IN OUR CITY. AND THIS SHOULD GO FORWARD, WITH SOME NUANCED ADJUSTMENTS BUT FULL SUPPORT FOR CAMERAS TO REDUCE CRIME IN THE CITY.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, NEXT IS JOHN CANER.

>> HI, COUNCIL, THIS IS JOHN CANER, DOWNTOWN BERKELEY ASSOCIATION. B.P.D. IS ASKING FOR 16 CAMERAS. THE CITY OF SAN FRANCISCO NOW HAS 2,000 CAMERAS, OAKLAND HAS 500 PLUS CAMERAS. THEY ARE ADDING MORE IN HAGEN BERGER. THIS IS A STANDARD OF TECHNOLOGY BEING USED TO DETER, TO CAPTURE AND PROSECUTE CRIMINAL ACTIVITY. NOT ONLY IS THIS PROTECTING OUR PROPERTY, IT'S PROTECTING OUR MERCHANTS AND OUR VISITORS FROM BODILY HARM. WE ARE HAVING MERCHANTS ASSAULTED REGULARLY. THEIR EMPLOYEES, THEY ARE AFRAID TO HIRE NEW PEOPLE. AND WE NEED PROTECTION TO MAKE OUR DOWNTOWN, OUR COMMERCIAL STRICT SAFE. DISTRICT SAFE.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

PLEASE, PLEASE PROVIDE TOOLS FOR THE B.P.D. TO DO THEIR JOB.

THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, NEXT SPEAKER IS DANIEL BROWNSON.

>> SO I WOULD JUST LIKE TO ECHO WHAT GEORGE AND ANDREA SAID EARLIER. THE FEDERAL GOVERNMENT THESE DAYS IS BLATANTLY IGNORING FEDERAL COURTS. YOU THINK THEY CARE ABOUT THE RULES AND POLICIES OF THE CITY OF BERKELEY? ALSO, YOU SAW HOW ALL THE TECH BARRONS WERE LINING UP TO KISS THE RING. EVERY CORPORATION SO FAR HAS FOLDED LIKE A DAMN DECK CHAIR. FURTHERMORE, ANY DATA WE STORE IN THE CLOUD CAN BE ACCESSED JUST BY THE FEDERAL GOVERNMENT DEMANDING IT. THE CORPORATIONS WILL GIVE IT TO THEM. THE ONLY WAY IT'S SAFE IS IF IT'S A LOCAL SERVER WITH A KILL SWITCH. WE SHOULDN'T BE GIVING B.P.D. ANY MORE MONEY UNTIL WE GET TO THE BOTTOM OF --

>> MAYOR ISHII: YOUR TIME IS UP. THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: NEXT SPEAKER IS FERN WILDTRUTH.

>> HI, THANK YOU. SO I DON'T BELIEVE IT WOULD BE JUSTIFIED TO INCREASE ALLOCATIONS FOR THIS PROJECT WITH NO EMPIRICAL EVIDENCE YET OF PUBLIC BENEFIT AND THERE'S GREAT RISK OF PUBLIC HARM. I'M ALSO CONCERNED ABOUT THIS PROJECT OVER SEEN BY ELECTED OFFICIALS AND I'M CONCERNED THAT I DIDN'T SEE CLEAR JUSTIFICATIONS FOR PLACING CAMERAS IN THESE PARTICULAR AREAS AND WHY THEY ARE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

NEEDED. AND I FEEL STRONGLY THAT WE SHOULDN'T BE FUNNELING HUNDREDS OF THOUSANDS OF DOLLARS TO EDGE TELEWORK AND FLOCK, PRIVATE COMPANIES THEY USE PRIVATE SURVEILLANCE COMPANY THAT'S CAN DISPROPORTIONATE MISIDENTIFY PEOPLE BASED ON RACE. I'M ALARMED GIVEN THE RAPID MOVEMENT OF OUR FEDERAL GOVERNMENT TOWARD AUTHORITARIAN, OPPRESSIVE FASCISM. THIS IS EXACTLY NOT WHAT WE WANT TO DO AT THIS TIME WHEN ANY INFORMATION COULD BE EXPLOITED AND USED TO ATTACK POLITICAL DISSENT.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. SORRY, YOU'RE OUT OF TIME.

>> CITY CLERK: NEXT IS THE SPEAKER WITH A PHONE NUMBER ENDING IN 538.

>> CAMERAS AT DURANT AND TELEGRAPH CAUGHT A BURGLAR AND STABBING ABOUT TEN YEARS AGO. THE POLICE, B.P.D. -- HARD DRIVE. NOT ONLY [INDISCERNIBLE] PEOPLE, MURDER KILLED ANOTHER GUY WHO WAS IN BUSINESS. [INDISCERNIBLE] I GOT A CALL FROM THE LAWYERS [INDISCERNIBLE] ANYWAY, CAMERAS ARE A MUST, PRIVACY IS NEXT TO SAFETY AND BY ALL MEANS WE HAVE TO KEEP THAT IN MIND, ESPECIALLY WITH SO MANY STUDENTS, SO MUCH CRIME, WE NEED CAMERAS. PLEASE VOTE FOR IT. PRAY FOR PEACE. ISRAEL IS THE WORST GENOCIDE --

>> MAYOR ISHII: I'M SORRY. YOUR TIME IS UP.

>> THANK YOU.

>> MAYOR ISHII: THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: NEXT IS MARIA HASSID.

>> HELLO, I'M THE EXECUTIVE DIRECTOR AT THE DAVID BROWER CENTER IN DOWNTOWN BERKELEY. WE ARE OPEN TO THE PUBLIC AND AS A VALUED MEMBER OF THE DOWNTOWN WE WELCOME ALL TYPES OF PEOPLE IN OUR FRONT DOORS. THIS MEANS WE OFTEN HAVE TO DEAL WITH ERRATIC BEHAVIOR, THREATS OF VIOLENCE OR EVEN CRIMINAL INCIDENTS. I KNOW FROM OUR OWN EXPERIENCE AT THE BROWER CENTER, AFTER CONCERNING INCIDENT OUR CAMERA SYSTEMS HAVE BEEN INVALUABLE TOOLS. THEY HAVE ALLOWED US TO IDENTIFY PEOPLE OF INTEREST AND FOCUS EFFORTS ON MANAGING THESE THREATS SPECIFICALLY AND KEEPING OUR BUILDING OPEN TO THE PUBLIC. CAMERA FOOTAGE ALLOWS US TO WORK WITH B.P.D., PROVIDING THEM WITH EVIDENCE. OUR COMMUNITY IS DIVERSE. IN THE PAST FEW MONTHS WE HAVE SEEN AN UPTAKE OF RETAIL VIOLENCE, AND THEFT IN THE NEIGHBORHOOD AND AFFECTED OUR ABILITY TO ATTRACT CLIENTS AND TENANTS TO OUR CENTER.

>> MAYOR ISHII: SORRY, YOUR TIME IS UP. CAN YOU TELL ME HOW MANY COMMENTS WE HAVE LEFT SO I CAN KEEP AN EYE ON THE TIME.

>> CITY CLERK: SEVEN MORE.

>> MAYOR ISHII: SEVEN MORE. THANK YOU.

>> CITY CLERK: NEXT IS BETH ROSSNER.

>> GOOD EVENING, MAYOR AND COUNCIL, THIS IS BETH ROESSNER FROM THE BERKELEY CHAMBER OF COMMERCE. I WOULD LIKE TO EXPRESS OUR STRONG SUPPORT FOR THE RESOLUTION TO TRANSITION THE EXTERNAL

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FIXED CAMERA PROGRAM OVER TO FLOCK SAFETY. THIS PROPOSAL IS A POSITIVE STEP TOWARD ENHANCING SAFETY IN KEY BUSINESS DISTRICTS. BY FOCUSING ON HIGH PEDESTRIAN AREAS IT RESPONDS TO FEEDBACK FROM LOCAL BUSINESSES. THE NEW CAMERA PLACEMENTS AT CRITICAL INTERSECTIONS WILL HELP IMPROVE SAFETY FOR BOTH BUSINESSES AND THE COMMUNITY. AND WE ALSO APPRECIATE THAT THE PLAN ACCOUNTS FOR LOGISTICAL CHALLENGES AND INCLUDES EFFORTS TO SECURE GRANT FUNDING TO MINIMIZE COSTS. SO ON BEHALF OF THE CHAMBER AND THE BUSINESS COMMUNITY, I ASK THAT YOU PLEASE APPROVE THIS RESOLUTION AND SUPPORT EFFORTS TO MAKE BERKELEY SAFER. THANK YOU.

>> MAYOR ISHII: THANK YOU.

>> CITY CLERK: OKAY, NEXT IS KELLY HAMMARGREN.

>> THANK YOU. POLICIES MAY COME WITH THE BEST OF INTENTIONS, BUT THE POLICE DEPARTMENT, THE CITY OF BERKELEY DO NOT HAVE THE ULTIMATE CONTROL OF THE DATA. POLICIES TO NOT PROTECT THE DATA THAT IS STORED BY AN EXTERNAL COMPANY. IT SEEMS FOOLISH TO BELIEVE ANY COLLECTIBLE SURVEILLANCE DATA IS NOT GETABLE. IF THEY WANT IT, THEY CAN GET IT. THE PROPERTY OWNERS WANT TO HAVE SECURITY CAMERAS LET THEM. BUT I HOPE THAT YOU WILL SAY NO TO THIS FIXED SURVEILLANCE PROGRAM AND PUT IT ON THE BACK BURNER WHILE WE REALLY FIGURE OUT WHAT'S HAPPENING AT THE FEDERAL GOVERNMENT. BECAUSE NONE OF THAT LOOKS GOOD RIGHT NOW. THANK

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

YOU.

>> MAYOR ISHII: THANK YOU. NEXT COMMENT?

>> CITY CLERK: NEXT SPEAKER IS DAVID SHERE.

>> HI. I SHARE CONCERNS A LOT OF PEOPLE HAVE ABOUT TATE TA SECURITY. I DON'T KNOW EXACTLY HOW FLOCK WORKS BUT FOLKS SHOULD UNDERSTAND THAT THERE ARE WAYS TO ENCRYPT DATA, SUCH THAT IT DOES NOT MATTER IF FLOCK HANDS OVER THE DATA TO THE FEDS BECAUSE THEY WOULD BE HANDING THEM GIBBERISH. IT COULD HYPOTHETICALLY WORK SUCH THAT THE DATA IS ENCRYPTED BY ONE KEY THAT FLOCK HAS AND DECRYPTED BY ANOTHER KEY THAT SOMEONE ON CITY STAFF HAS LIKE ON A LITTLE USB DRIVE IN THEIR POCKET AND THERE'S NO WAY TO ACCESS THE DATA A THOUSAND YEARS YOU COULD NOT BREAK THE ENCRYPTION UNLESS YOU HAD THE LITTLE USB KEY IN THE POCKET. I DON'T KNOW IF FLOCK WORKS THAT WAY, IF IT'S AN OPTION. BUT I'M SURE WE WILL TAKE DATA SECURITY VERY SERIOUSLY AND YOU KNOW THERE ARE TECHNICAL SOLUTIONS.

>> MAYOR ISHII: THANK YOU.

>> YEAH, THANK YOU.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT. VERY PRACTICAL.

>> CITY CLERK: NEXT SPEAKER IS ODPA. I THINK THAT'S OUR OFFICE OF DIRECTOR POLICE ACCOUNTABILITY.

>> GOOD EVENING, MADAM MAYOR AND COUNCILMEMBERS. I APPRECIATE THE OPPORTUNITY TO ADDRESS YOU AS THE DIRECTOR OF POLICE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ACCOUNTABILITY. POLICE NOTE THAT THE P.A.B. HAS NOT MET ON THIS. THEY ARE MEETING TOMORROW. THERE WILL BE A DISCUSSION. BUT I WANTED TO FLAG AT THE CORE OF THIS, I THINK WE DO HAVE A PROCESS ISSUE THAT JUST REQUIRES CAREFUL SCRUTINY HERE. WHILE THE CITY HAS ENCOUNTERED SIGNIFICANT IMPLEMENTATION BARRIERS AS YOU HEARD FROM THE CHIEF WITH EDGEWORTH, IT'S NOT SIMPLY ABOUT REPLACING A VENDOR, IT'S ABOUT FUNDAMENTALLY CHANGING THE NATURE OF THE SURVEILLANCE SYSTEM ITSELF. FLOCK HAS CAPABILITIES THAT EDGEWORTH DOESN'T, SO THE CURRENT PROPOSAL, THE NEED TO REPLACE THE VENDOR DUE TO INSTALLATION CHALLENGES AND SELECTION OF NEW VENDOR OFFERS MATERIALLY DIFFERENT SURVEILLANCE MODEL. I KNOW THERE WERE QUESTIONS ABOUT A.I. FACIAL RECOGNITION. BUT THERE ARE OTHER A.I.-DRIVEN ANALYTICS AND LICENSE PLATE RECOGNITION INTEGRATION THAT WASN'T CONTEMPLATED WHEN YOU ACCEPTED BOTH OF THE PROPOSALS FROM THE POLICE DEPARTMENT.

>> MAYOR ISHII: YOUR TIME IS UP. I'M SORRY.

>> OKAY, THANK YOU.

>> CITY CLERK: OKAY, THE NEXT SPEAKER IS ALEX KNOX.

>> GOOD EVENING, THIS IS ALEX KNOX FROM THE TELEGRAPH BUSINESS IMPROVEMENT DISTRICT. I WANT TO THANK B.P.D. FOR FOCUSING ON STRATEGIES TO INCREASE SAFETY. AS WE HAVE SEEN IN BERKELEY AND BEYOND, ATTACKS ON AND AROUND BUSINESSES CAN CLOSE THE DOORS PERMANENTLY AND THREATEN THE SUCCESS OF OUR DOWNTOWNS. WE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

INTERACT WITH B.P.D. REGULARLY AND FREQUENTLY AND TRUST THEIR COMMITMENT TO THE PRINCIPLES OF COMMUNITY POLICING, OPERATING WITH TRANSPARENCY AND HONESTY AS THEY HAVE SHOWN US. THE TELEGRAPH DISTRICT ALSO HAS SOME OF THE BUSIEST AND HIGHEST TRAFFIC SPACES IN THE CITY. WE URGE THE COUNCIL TO ENSURE THAT PUBLIC SAFETY RESOURCES ARE ALWAYS DELIVERED IN AN EQUITABLE AND EFFECTIVE MANNER ACROSS THE CITY. AND THANK YOU FOR YOUR COMMITMENT TO DOING WHAT YOU CAN TO IMPROVE SAFETY IN OUR COMMUNITIES.

>> CITY CLERK: OKAY, THANK YOU. NEXT SPEAKER IS ELLIE. OOH, WAIT. HOLD ON ONE SECOND. ELLIE IS THE NEXT SPEAKER.

>> HELLO, COUNCIL CAN YOU HEAR ME?

>> MAYOR ISHII: HI.

>> I WANT TO SPEAK ON BEHALF OF BERKELEY STUDENT AS A STUDENT MYSELF. I'M A REGULAR ATTENDER OF CITY COUNCIL MEETINGS. THE STUDENTS DON'T FEEL COMFORTABLE WITH THIS POLICY. THIS CAMERA PUTS STUDENTS AT RISK. IT PUTS OUR INTERNATIONAL STUDENTS AT RISK, IT PUTS IMMIGRATION POLICY AT RISK. THIS IS NOT A SECURE SYSTEM. YOU CAN PROMISE THE DATA WILL BE AT RISK AND QUITE FRANKLY THE FEDERAL GOVERNMENT HAS BEEN STEAMROLLING ANY GOVERNMENT THAT TRIES TO STAND IN ITS WAY. THE CITY OF BERKELEY WILL BE NO EXCEPTION. A VOTE TO ENDANGER STUDENTS IN AN ALREADY FRAGILE COMMUNITY THAT EXISTS IN BERKELEY. THANK YOU.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CITY CLERK: ALL RIGHT. NEXT SPEAKER IS STEVE RAVELLETTE.

>> THANK YOU FOR LETTING ME HAVE THE OPPORTUNITY TO SPEAK. I'M THE PRESIDENT OF SAFE FARES? (?) 501(C)(3) WORKING TO MAKE U.C. BERKELEY SAFER FOR STUDENTS. IN LATE OCTOBER 2024, A GUNMAN POINTED A HANDGUN AT SEVERAL U.C. BERKELEY STUDENTS NEAR THE INTERSECTION OF TELEGRAPH AND DURANT. THE POLICE PROCEEDED TO SHOOT ROUNDS, ONE PENETRATED A DORMITORY STRIKING WITH A STUDENT SLEEPING. THEY FLED WHILE SHOOTING FIVE MORE TIMES. BERKELEY INVESTIGATORS UTILIZING THE NEW PUBLIC SAFETY CAMERAS ALONG THE ESCAPE ROUTE WERE ABLE TO IDENTIFY THE SUSPECT AND ARREST HIM IN HIS SAN FRANCISCO HOME DAYS LATER. THEY FOUND THREE A.R. WEAPONS, SEMI AUTOMATIC, THREE REVOLVERS AND 15,000 ROUNDS OF AMMUNITION, INCLUDING KITS TO MAKE GHOST GUNS, ONLY SIX KITS WERE REGISTERED. THIS IS ONE SUCCESSFUL CONCLUSION OF CRIMES THAT HAVE BEEN COMMITTED.

>> MAYOR ISHII: YOUR TIME IS UP. THANK YOU FOR YOUR PUBLIC COMMENT.

>> CITY CLERK: NEXT IS BRUCE BAUER. MR. BAUER, YOU SHOULD BE ABLE TO UNMUTE.

>> CAN YOU HEAR ME NOW?

>> CITY CLERK: YES.

>> I'M BRUCE BAUER, ALSO A MEMBER OF SAFE BEARS, I WANT TO THANK B.P.D. FOR THE INSTALLATION OF THIS SYSTEM AND I WOULD LIKE TO

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ADVOCATE FOR THE CAMERA AT DURANT AND TELEGRAPH. I'M A RETIRED DETECTIVE WITH U.C.P.D. I CAN'T EXPRESS HOW MANY CASES WE COULD HAVE SOLVED WITH SOMETHING LIKE THAT. IT'S JUST A TREMENDOUS PIECE OF TECHNOLOGY. I HOPE IT'S SUCCESSFUL.

>> CITY CLERK: OKAY, THANK YOU. NEXT IS B.S.C. PRESIDENT. B.S.C. PRESIDENT, YOU SHOULD BE ABLE TO UNMUTE. LET'S TRY THAT AGAIN. B.S.C. PRESIDENT? CAN THEY RAISE THEIR HAND ON THE NEW DEVICE?

>> MAYOR ISHII: IS THERE ANOTHER COMMENT WE CAN TAKE.

>> CITY CLERK: YES, THERE'S ONE MORE COMMENTER. THE NAME IS CYN. GO AHEAD. OH THAT'S THE SAME PERSON. OKAY.

>> THANK YOU SO MUCH. YEAH, HI, MY NAME IS CYN. I LIVE ON SOUTH SIDE AND I'M A CAL ALUM. I JUST WANTED TO EXPRESS THAT I DO NOT WANT THIS AND HOPE THAT OUR PUBLIC OFFICIALS CAN RESPECT THAT PUBLIC COMMENT TIME IS OUR TIME, AS THE MEMBERSHIP OF OUR CITY. I THINK ONE OF THE CONCERNS THAT HASN'T REALLY BEEN ADDRESSED APPROPRIATELY IS THE FACT THAT WE KNOW, WE AREN'T COMPLETELY CERTAIN WE CAN TURN OFF THE SOUND ON THESE CAMERAS AND WE SEEM TO NOT REALLY HAVE A PROBLEM WITH THAT. IF NOBODY HERE ON THE SIDE OF FOLKS THAT LIVE HERE FIND THAT TO BE AN APPROPRIATE METHOD. I FOUND THE LEADING QUESTIONS TO NOT BE SUPER HELPFUL FROM OUR REPRESENTATIVES. SO I PLEASE ASK FOR MORE INTENTION BEHIND THIS. THE POORLY TIMED ASPECT OF THIS ENTIRE CONVERSATION IS EXTREMELY DISAPPOINTING. I MYSELF HAVE BEEN HARASSED BY THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BERKELEY POLICE MANY TIMES AND THIS DOESN'T MAKE ME FEEL ANY SAFER. ALSO SPEAKING ON MY OWN BEHALF BUT AS PRESIDENT OF BERKELEY STUDENT CO OPS WHERE WE HAVE TWO CO OPS IN WALKING DISTANCE THIS IS EXTREMELY FRUSTRATING AND DOESN'T MAKE US FEEL SAFE.

>> MAYOR ISHII: THANK YOU FOR YOUR COMMENT.

>> CITY CLERK: WE HAVE ONE MORE COMMENTER, IF YOU WANT TO SPEAK AND YOU ARE ON THE ZOOM, RAISE YOUR HAND NOW, OR THIS IS THE LAST SPEAKER. SPEAKER IS ANAIS SHERGILL.

>> HI, MY NAME IS ANAIS, I'M AN UNDERGRADUATE STUDENT AT U.C. BERKELEY AND ALSO THE A.S.U. LEGISLATIVE AID OF POLICING, SO I MONITOR A LOT OF THE POLICING ISSUES AND ALSO A LIAISON FOR OTHER ORGANIZATIONS ON CAMPUS WHO HAVE POLICING ISSUES. I JUST DON'T REALLY SEE THE NEED FOR THESE SURVEILLANCE CAMERAS AS QUITE HONESTLY WE HAVE U.C.P.D. ON SPRUILL AND BERKELEY P.D. NOT FAR OFF. IT DOESN'T SEEM LIKE A VERY PRODUCTIVE USE OF FUNDS AND I ALSO DON'T SEE HOW USEFUL IT WILL BE FOR DETERRING CRIMES CONSIDERING THE FACT WE PHYSICALLY HAVE TWO POLICE DEPARTMENTS WITHIN PROXIMITY OF SEVERAL AREAS WHERE THEY WANT TO IMPLEMENT CAMERAS. AS LEGISLATIVE AID OF POLICING AND STUDENT WHO IS CONCERNED ABOUT THEIR SAFETY ON CAMPUS, I THINK THIS WOULD NOT BE VERY PRODUCTIVE IMPLEMENTATION. NOT ONLY FISCALLY, BUT ALSO JUST FOR SAFETY WISE FOR THE STUDENTS. AND I COULD VERY WELL SEE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

IT BEING USED FOR MORE HARM THAN GOOD. YEAH, I WOULD VERY GREATLY AS A COMMUNITY MEMBER OPPOSE THIS INITIATIVE.

>> MAYOR ISHII: YOUR TIME IS UP. THANK YOU FOR YOUR PUBLIC COMMENT. I WANT TO GO BACK. I KNOW THAT OUR POLICE ACCOUNTABILITY BOARD, OUR DIRECTOR WAS HERE SPEAKING ON PUBLIC COMMENT. HE WAS ONLY GIVEN THAT ONE MINUTE IN HIS PUBLIC COMMENT. BUT I HEARD HIM MENTION SOMETHING ABOUT PROCESS CONCERNS OR SOMETHING TO THAT EFFECT. I WOULD LIKE TO BRING HIM BACK, IF HE IS STILL HERE TO BE ABLE TO FINISH WHAT HIS COMMENT WAS.

>> CITY CLERK: HANSELL, IF YOU ARE STILL ON, THERE YOU ARE. GO AHEAD.

>> THANK YOU, MADAM MAYOR. I PROMISE I WILL BE QUICK, I'M NOT TRYING TO TAKE UP TIME, I KNOW YOU HAVE A LOT OF DELIBERATION ON THIS ITEM. WHAT MY CONCERN HERE IS B.M.C.299 IT CONTEMPLATES VERY DELIBERATIVE PROCESS. I UNDERSTAND AND RESPECT THE CITY AND POLICE DEPARTMENT'S CONCERNS THAT THERE ARE INSTALLATION ISSUES WITH THE SELECTED VENDOR. I'M NOT TRYING TO RELITIGATE THE CONCERNS ABOUT THE EXTERNAL CAMERA PROGRAM, THAT'S SOMETHING THAT THE P.A.B. WENT BEFORE THE COUNCIL. WHAT I'M CONCERNED IS WE ARE CONFLATING THE NEED FOR THE VENDOR AND A SPECIFIED VENDOR THEY IDENTIFIED ALREADY. I KNOW MADAM MAYOR, YOU ASKED THE CHIEF IF YOU AREN'T SATISFIED THEY COULD POTENTIALLY REJECT IT. BUT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WHY NOT EXPAND OUR SEARCH ON VENDORS TO OTHERS THAT MAY POTENTIALLY COME IN. FLOCK ISN'T THE ONLY VENDOR THAT COULD POTENTIALLY HAVE THE TECHNICAL CAPACITY STILL WITHIN THE CONFINES OF THE USE POLICY YOU ALREADY APPROVED LAST YEAR. SO THOSE ARE SOME OF MY BASIC CONCERNS. THERE IS, I THINK, A SUBSTANTIAL DIFFERENCE BETWEEN THESE TWO VENDORS. AND THE OTHER THING, I THINK THAT WE STILL NEED TO DO MORE ASSESSMENT. I KNOW THE POLICE DEPARTMENT, I WAS THERE FOR THEIR PRESENTATION ON THE ANNUAL REPORT AND I COMMEND SOME OF THE STRATEGIES THEY ARE UTILIZING. BUT WHEN THEY WERE DISCUSSING THEIR FLOCK PROGRAM, ONE THING I THINK IS IMPORTANT THEY DO HAVE ON THERE TRANSPARENCY PORTAL SOME OF THE DATA REGARDING HOW MUCH TIME -- HOW MUCH VEHICLES ARE BEING DETECTED AND IT HAS CAPABILITIES THAT I THINK ARE JUST NOTE WORTHY IN THE LAST 30 DAYS, HALF A MILLION VEHICLES HAVE BEEN DETECTED THROUGH THE VEHICLE, THROUGH THE FLOCK CAMERAS. I ASSUME IF THAT'S THE CAPACITY THAT WE PROBABLY DETECTED OVER A MILLION VEHICLES SINCE THEIR IMPLEMENTATION. SO THOSE ARE THINGS TO THINK ABOUT, THE CAPACITY FOR THIS TECHNOLOGY TO BE ABLE TO DO THIS. AND JUST ONE LAST POINT, WHEN THE P.A.B. DID NOTE, IN THE LITERATURE REVIEW, WE KEPT CITING THE URBAN INSTITUTE REPORT AS PART OF THE CONVERSATION, THE CITY COUNCIL DID. AND THE POINT THAT THE P.A.B. WAS TRYING TO MAKE THERE, THEY WEREN'T ADVOCATING FOR

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CONTINUOUS MONITORING. THEY WERE SAYING THE URBAN INSTITUTE REPORT LITERATURE CITED WAS SAYING EXTERNAL CAMERAS ARE ONLY EFFECTIVE OR MOST EFFECTIVE WHEN THERE'S CONTINUOUS MONITORING WHICH IS SOMETHING THE DEPARTMENT ISN'T DOING BUT NOW FLOCK COULD POTENTIALLY ENHANCE THAT CAPABILITY THROUGH A.I. FEATURES THEY HAVE IN PLACE. SO THOSE ARE THE KIND OF THINGS WE WILL BE DISCUSSING THROUGH THE VETTING PROCESS.

>> MAYOR ISHII: OKAY. THANK YOU. THANKS FOR COMING BACK. I KNOW THAT COUNCILMEMBER HUMBERT -- SORRY, LET ME MAKE SURE, ARE THERE ANY OTHER PUBLIC COMMENTS? I THINK YOU YIELDED YOUR TIME ALREADY, I'M SO SORRY. OKAY. I KNOW THAT COUNCILMEMBER HUMBERT HAS HIS HAND RAISED AND THEN COUNCILMEMBER TREGUB.

>> M. HUMBERT: THANK YOU, MADAM MAYOR. I SUPPORT THIS PROPOSAL BECAUSE I THINK IT REPRESENTS A NECESSARY PIVOT IN OUR STRATEGY FOR DETERRING AND SOLVING CRIME. I ALSO SUPPORT ADDITIONAL AUTHORIZATION FOR THE FOUR LOCATIONS MENTIONED SHOULD FUNDING BECOME AVAILABLE. ASHBY/DOMINGO, -- ASHBY AND SIXTH. A LOT OF ASHBY’S IN THERE. IT WOULD REQUIRE THE INSTALLATION OF NEW ELECTRICAL INFRASTRUCTURE AT A VERY HIGH COST AND IN A MANNER WHICH PG&E WHICH IS KNOWN TO BE DILATORY MIGHT NOT BE ABLE TO IMMEDIATELY ACCOMMODATE. WE ARE ALSO SEEING DIVIDENDS FROM THE INSTALLATION OF THE FLOCK, ALPR'S. I THINK THIS SHOWS THIS APPROACH HAS A GOOD TECHNOLOGICAL FOUNDATION. AND I THINK WE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

HAVE TO ACT ON THIS BECAUSE WE WERE ALREADY STILL DEALING WITH HEIGHT IN CRIME SINCE THE PANDEMIC, BUT NOW WE HAVE HAD ADDITIONAL BRASH SMASH AND GRABS AT OUR BELOVED LOCAL BUSINESSES. I KNOW TELEGRAPH AND DURANT HAS COME UP REPEATEDLY. IT'S A CRITICAL LOCATION, VERY DIFFERENT FROM TELEGRAPH AND DWIGHT, WHICH WAS EXCLUDED LAST TIME, MUCH BUSIER AND IN FACT THE SITE OF MUCH VIOLENT CRIME INCLUDING IN 1922 -- YEAH, THAT'S A LONG TIME AGO. IN 2022 A MURDER, IN OCTOBER OF 2022, THERE WAS A MURDER RIGHT AT THIS INTERSECTION USING A FIREARM. ALL THIS SAID, OF COURSE, I AGREE IT'S VERY IMPORTANT THAT WE SEEK TO GUARD CIVIL LIBERTIES AND MEET THE REQUIREMENTS OF THE SURVEILLANCE TECHNOLOGY AS WE MOVE FORWARD. FOR THIS REASON, I SUPPORT COUNCILMEMBER TREGUB'S ADDITIONAL LANGUAGE, WHICH HE CAN PUT UP ON THE SCREEN TO ENSURE THE PROTECTION OF THIS DATA FROM ACQUISITION AND MISUSE BY I.C.E. AND OTHER AGENCIES OUTSIDE THE CITY OF BERKELEY. THIS MEASURE IS INTENDED TO KEEP OUR RESIDENTS AND VISITORS' SAFE, NOT FOR ANY OTHER PURPOSE. WHEN THIS RETURNS TO US FOR FINAL APPROVAL I THINK IT WILL BE IMPORTANT TO CLOSELY REVIEW THE PROVISIONS RELATED TO CIVIL LIBERTIES AND PREVENTING MISUSE OF ANY CAMERA SYSTEM. BUT AS A GENERAL STEP FORWARD, I SUPPORT THIS PROPOSAL AND WILL BE VOTING TO ADVANCE IT TONIGHT. IN FACT, I WANT TO MAKE A MOTION TO PASS ITEM 11 ON THE ACTION CALENDAR WITH THE ADDITIONAL LANGUAGE TO BE PUT UP ON THE SCREEN

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BY COUNCILMEMBER TREGUB, REGARDING PROTECTION OF DATA AND SPECIFICALLY AUTHORIZING ALL OF THE LOCATIONS MENTIONED IN THE ITEM, INCLUDING THE FOUR ADDITIONAL LOCATIONS MENTIONED, WHICH I LISTED. AND THAT'S MY MOTION.

>> SECOND.

>> M. HUMBERT: PENDING -- GREAT. PENDING SEEING TREGUB IS PUTTING THE EXTRA LANGUAGE UP, WHICH I THINK IS CRITICAL.

>> MAYOR ISHII: SURE. YES, COUNCILMEMBER TREGUB, WILL YOU PLEASE PUT THAT UP ON THE SCREEN AND THEN IT'S YOUR TURN FOR COMMENT. ALTHOUGH, WHILE YOU ARE PUTTING THAT UP, IF YOU DON'T MIND I WOULD LOVE TO GIVE OUR CITY MANAGER AN OPPORTUNITY TO SPEAK AS WELL.

>> CITY MANAGER BUDDENHAGEN: THANK YOU, MADAM MAYOR. I JUST HAVE ONE ALSO SLIGHT MODIFICATION TO THE RESO. SO AFTER THE NOW THEREFORE LET IT BE RESOLVED THE CITY MANAGER IS HERE BY AUTHORIZED TO, I WANT TO ADD IN PURSUANT TO BMC 2.99: THEN THE REST OF THOSE THINGS. KIND OF BELT AND SUSPENDERS BUT TO MAKE IT ABUNDANTLY CLEAR THAT'S WHAT WE HAVE BEEN TALKING ABOUT ALL NIGHT. JUST ADD IT IN THERE.

>> MAYOR ISHII: I THINK THAT CLARIFICATION IS VERY IMPORTANT. THANK YOU FOR BRINGING THAT UP NOW AS WELL. I WILL GO BACK TO YOU, COUNCILMEMBER, IF YOU ARE PREPARED. WOULD YOU MIND JUST MAKING IT A LITTLE BIT BIGGER ON THE SCREEN?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: GO AHEAD WITH YOUR COMMENT.

>> I. TREGUB: THANK YOU. I WILL START OUT BY SAYING I'M GRATEFUL FOR EVERYONE WHO CAME HERE TONIGHT AND SPOKE SO ELOQUENTLY, WHATEVER SIDE YOU SPOKE ON, AS A NATIVE OF UKRAINE, THE DEMOCRATIC PROCESS IS MORE IMPORTANT NOW THAN EVER. I APPRECIATE IT. WE ARE IN TIMES THAT REQUIRE US TO HOLD A MULTITUDE OF TRUTHS. ONE TRUTH IS A COUNTRY THAT IS CAREENING TOWARDS FASCISM. AND THERE ARE LEGITIMATE CONCERNS AND I WILL COME BACK TO THAT BECAUSE THAT IS WHAT HAS PROMPTED MY EFFORT OVER THE LAST SEVERAL DAYS TO CRAFT LANGUAGE THAT ATTEMPTS TO HAVE, AMONG, IF NOT THE STRONGEST LANGUAGE IN THE NATION AROUND DATA PRIVACY. ANOTHER TRUTH IS THE ONE IN MY DISTRICT. AND WHILE I HAVE RECEIVED ELOQUENT COMMENTS ON BOTH SIDES, THERE IS A SIZABLE MAJORITY OF CONSTITUENTS, BOTH THOSE WHO LIVE IN DISTRICT 4 AND THOSE WHO OWN SMALL BUSINESSES IN DISTRICT 4 THAT HAVE PASSIONATELY ARGUED FOR THE PRESENCE OF CAMERAS. WHEN I SPOKE, BECAUSE I TOOK THE TIME TO SPEAK WITH EVERYONE IN THE DISTRICT WHO OPENED THEIR DOOR LAST YEAR. PUBLIC SAFETY KEPT COMING UP AS THE TOP ISSUE. AT THE TIME, I WAS SKEPTICAL AROUND THE PRESENCE OF CERTAIN CAMERAS. BUT AS AN ENGINEER I LIKE DATA, I FOLLOW THE DATA. AND THE DATA IS OVERWHELMING THAT FLOCK CAMERAS DO HELP US COMBAT MANY DIFFERENT TYPES OF CRIMES THAT OTHERWISE WOULD CONTINUE UNABATED. YOU SEE THAT MY DISTRICT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

INCLUDES THE MAJORITY OF THE PROPOSED CAMERA LOCATIONS. THAT IS NO ACCIDENT. BECAUSE PER THE PREVIOUS WORK SESSION, WE KNOW THAT MY DISTRICT ALSO HAS THE HIGHEST NUMBER OF CALLS FOR SERVICE. AND SO, IN ATTEMPTING TO FIND A BALANCE BETWEEN THOSE TWO TRUTHS, I WORKED CLOSELY WITH THE CITY ATTORNEY'S OFFICE AND WITH THE POLICE CHIEF. AND SEVERAL PRIVACY ACTIVISTS ALSO PROVIDED CONSULTATION TO OUR OFFICE ON LANGUAGE. AND I ALSO APPRECIATE COUNCILMEMBER BLACKABY'S PARTNERSHIP ON THIS. SO I WILL --

>> MAYOR ISHII: SORRY, COUNCILMEMBER. WOULD YOU MIND TAKING IT OUT OF THE NIGHTTIME MODE OR SOMETHING SO IT COULD BE VIEWED A LITTLE MORE CLEARLY, AND IF YOU COULD READ IT OUT LOUD TO FOLKS.

>> I. TREGUB: HOW DO I TAKE IT OUT OF NIGHTTIME MODE? I NEED HELP FROM MY FELLOW MILLENNIAL FRIENDS.

>> S. O'KEEFE: I'M GEN X.

>> I. TREGUB: OR GEN X'ERS.

>> S. O'KEEFE: IS IT IN NIGHTTIME MODE? DOES IT DO THAT AUTOMATICALLY?

>> I. TREGUB: I THINK SO.

>> MAYOR ISHII: THAT'S OKAY, I DON'T WANT TO TAKE TOO MUCH TIME, IF IT'S NOT QUICK.

>> I. TREGUB: I WILL READ IT INTO THE RECORD. IF THERE ARE QUESTIONS I COULD READ IT AGAIN. THIS WOULD BE A NEW RESOLVED

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CLAUSE WHICH WOULD SAY BE IT FURTHER RESOLVED THAT FLOCK SAFETY WILL BE DIRECTED TO NOT SHARE INFORMATION, DATA, OR OTHER ASSETS FROM THE EXTERNAL FIXED VIDEO SURVEILLANCE CAMERA PROGRAM WITH ANY PERSONNEL OR AGENCIES OUTSIDE OF THE CITY OF BERKELEY, INCLUDING IN RESPONSE TO AN ADMINISTRATIVE SUBPOENA OR OTHER REQUEST FROM ANOTHER GOVERNMENT AGENCY, UNLESS COMPLIANCE IS REQUIRED BY COURT ORDER, OR OTHER APPROPRIATE DIRECTIVE. VIOLATION OF THIS PROVISION SHALL BE CONSIDERED GROUNDS FOR TERMINATION OF THE CONTRACT. FLOCK SAFETY WILL INFORM THE CITY OF BERKELEY IMMEDIATELY UPON RECEIVING ANY LEGAL OR OTHER ORDERS FROM OTHER JURISDICTIONS. I WILL ADD I HAVE BEEN CONSULTING WITH OTHER JURISDICTIONS INCLUDING THE CITY OF OAKLAND WHICH DOES USE FLOCK CAMERA. THEY HAVE IDENTIFIED NO PRIVACY CONCERNS BECAUSE STATE LAW PROHIBITS THE SHARING OF LICENSE PLATE READER DATA WITH AGENCIES THAT ARE OUTSIDE OF THE STATE OF CALIFORNIA. AND THAT FLOCK IS FAIRLY TRANSPARENT ABOUT THE DATA THEY COLLECT INCLUDING HAVING A PUBLIC-FACING DASHBOARD. NOT THE DATA ITSELF. THERE'S A DASHBOARD. I WANT TO ALSO JUST REMIND THE PUBLIC THAT THIS IS THE FIRST STEP IN WHAT IS GOING TO BE AN INTENSIVE PROCESS FOR GOOD REASON. I WAS ONE OF THE 85% OF THE BERKELEY COMMUNITY THAT SUPPORTED THE FORMATION OF THE POLICE ACCOUNTABILITY BOARD. THIS WILL BE GOING TO THE POLICE ACCOUNTABILITY BOARD. AND THEN IT WILL BE GOING BACK TO COUNCIL

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FOR FINAL DISPOSITION. FINALLY, I WILL NOTE WHILE I'M VERY PASSIONATE ABOUT THE NEEDS IN MY DISTRICT, I'M ALSO VERY DEFERENTIAL TO THE NEEDS OF MY COLLEAGUES ON THE DAIS IN OTHER DISTRICTS. SO TO THE EXTENT THAT SOME OF MY COLLEAGUES MAY HAVE CONCERNS ABOUT CAMERAS BEING IN THEIR DISTRICT, I WOULD BE DEFERENTIAL TOWARDS SUCH A REQUEST TO EXCLUDE CAMERAS FROM THOSE DISTRICTS. THANK YOU.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER LUNAPARRA, I KNOW YOU HAD YOUR HAND UP EARLIER.

>> C. LUNAPARRA: YEAH, THANK YOU. I THINK THE PARLIAMENTARIAN SYSTEM ISN'T WORKING AGAIN. THANK YOU. I KNOW WE ARE BALANCING A LOT HERE AND THAT WE ALL CARE ABOUT PUBLIC SAFETY AND THAT WE ALL CARE ABOUT PRIVACY AND THAT WE CARE ABOUT OUR VULNERABLE RESIDENTS. BUT I WANT TO MAKE IT VERY CLEAR WHAT WE ARE RISKING. AND I WANT TO MAKE IT CLEAR THIS IS A RISK. I HAVE A COUPLE QUESTIONS FOR THE CITY ATTORNEY TO HIGHLIGHT THIS RISK. BUT FIRST I WANT TO TALK A LITTLE BIT ABOUT THE LACK OF ENGAGEMENT WITH THE STUDENT COMMUNITY THAT WE SEE OVER AND OVER AND OVER AGAIN. THIS ITEM WAS WRITTEN IN CONSULTATION WITH BUSINESS DISTRICTS BUT THEY DIDN'T TALK TO A SINGLE STUDENT GROUP. THIS IS REALLY, REALLY CONCERNING. STUDENTS MAKE UP 38% OF OUR CITY'S POPULATION. THAT'S NOT OKAY. I JUST WANT TO MAKE IT VERY CLEAR BECAUSE THIS IS SOMETHING THAT IS REALLY CLOSE TO MY HEART. JUST

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

AS IT WOULD MAKE NO SENSE FOR ME TO CALL COUNCILMEMBER TREGUB'S PARENTS TO HEAR HIS THOUGHTS ON THE ITEM, ONLY CONSULTING A PARENT GROUP OF PEOPLE WHO DON'T LIVE HERE, MOSTLY DON'T LIVE HERE, BUT NOT STUDENTS THEMSELVES IS OFFENSIVE, IT'S INFANTILIZING AND MAKES NO SENSE. I WANT TO MAKE THAT VERY, VERY CLEAR. THAT'S WHAT HAPPENED WITH THIS ITEM. THAT IS WHY WE ARE HEARING SO MANY PEOPLE WHO LIVE AND WORK AND STUDY IN THE AREA OPPOSE THIS CAMERA. THEY WERE NOT CONSULTED IN THE FIRST PLACE. BECAUSE OF U.C. BERKELEY'S NON-VIOLENT ENCAMPMENT, TRUMP TARGETED U.C. BERKELEY AS A TARGET. I WANT TO HIGHLIGHT THE RISK THAT THIS POSES. THE BEST WAY, THE ONLY WAY THAT WE CAN KEEP OUR CITY A SANCTUARY CITY IS BY NOT COLLECTING THIS DATA AT ALL. I WANT TO CLARIFY SOMETHING WITH THE CITY ATTORNEY'S OFFICE. IF THIS DATA IS SUBPOENAED IN COURT AND BY A JUDGE, THE CITY HAS TO RELINQUISH IT, CORRECT?

>> IF THE CITY RECEIVES AN ADMINISTRATIVE SUBPOENA FROM I.C.E., THAT'S DIFFERENT. IF THEY RECEIVE A COURT ORDER ISSUED BY A JUDGE, THEN THERE MAY BE WAYS TO CHALLENGE IT. BUT MOST LIKELY YEAH, THAT WOULD BE LEGALLY REQUIRED FOR US TO COMPLY AT THAT POINT.

>> C. LUNAPARRA: SO I UNDERSTAND THAT EVERYONE WANTS TO MAKE SURE THERE ARE GUARDRAILS IN THIS POLICY. SO THAT WE DON'T, ARE NOT PUTTING PEOPLE IN HARM'S WAY AND I REALLY, REALLY APPRECIATE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THAT WE ARE PUTTING THAT AT THE FOREFRONT OF THIS DISCUSSION. AND AT THE SAME TIME I WANT US TO UNDERSTAND FULLY THAT THIS POLICY DOES NOT COME EVEN WITH INCREASED LANGUAGE DOESN'T COME WITHOUT RISK TO OUR VULNERABLE COMMUNITIES. AND LIKE I SAID EARLIER, I KNOW WE ARE BALANCING A LOT OF THINGS. AND I KNOW WE ARE BALANCING A LOT OF CONSTITUENTS WHO HAVE DIFFERING OPINIONS HOW WE SHOULD ADDRESS PUBLIC SAFETY. AND I COMPLETELY UNDERSTAND THAT AND COMPLETELY UNDERSTAND WHERE PEOPLE ARE COMING FROM. AND I THINK IT'S ALSO OUR RESPONSIBILITY TO MAKE SURE THAT PEOPLE BOTH ARE SAFE AND FEEL SAFE. IT'S BEEN MADE VERY, VERY CLEAR, I THINK MANY TIMES OVER THAT RESIDENTS OF SOUTH SIDE, MAJORITY OF RESIDENTS OF SOUTH SIDE DO NOT FEEL MORE SAFE WITH THESE CAMERAS IN THE DISTRICT. EVEN IF I HAD FULL FAITH THAT THIS DATA COULD NEVER BE SHARED WITH THE FEDERAL GOVERNMENT, WHICH I DON'T, MANY OF MY CONSTITUENTS WOULD BELIEVE IT TO BE TRUE AND PERCEPTION, IN THIS CASE IS REALITY. AND EVEN IF THESE CAMERAS WERE FULLY SAFE FROM I.C.E., MANY OF MY CONSTITUENTS WOULD FREQUENT THIS INTERSECTION LESS OFTEN WHICH MAKES THE INTERSECTION LESS SAFE. IN A PERFECT WORLD THESE CAMERAS MAY KEEP US MORE SAFE, I'M NOT TRYING TO SAY ANYTHING ABOUT OUR POLICE DEPARTMENT. I DON'T THINK OUR POLICE DEPARTMENT IS GOING TO MISUSE THIS BUT THE EXISTENCE OF THIS DATA IN THE FIRST PLACE LEADS TO THE OPPORTUNITY FOR MISUSE. IN ACTUALITY, IT WILL MAKE MY

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CONSTITUENTS LESS SAFE. FOR THAT REASON, I WOULD LIKE TO MAKE A SUBSTITUTE MOTION TO, THE SAME AS THE ORIGINAL MOTION WHILE EXCLUDING TELEGRAPH AND DURANT FROM THE LIST. LIKE I SAID, I HAVE MANY CONCERNS ABOUT THE CAMERA SYSTEM AS A WHOLE. BUT I UNDERSTAND THE COMPLEX ISSUES WE ARE DEALING WITH. I ASK YOU, I PLEAD WITH YOU, THAT WE COULD KEEP, THAT WE COULD ADDRESS PEOPLE'S CONCERNS AS THEY COME. AND ADDRESS PEOPLE'S SITUATIONS AS THEY COME, WHICH ARE DIFFERENT IN DIFFERENT PARTS OF THE CITY. THANK YOU. THAT'S MY MOTION.

>> MAYOR ISHII: SO ACTUALLY, COUNCILMEMBERS BLACKABY AND BARTLETT HAD THEIR HANDS RAISED BEFORE AND THEN COUNCILMEMBER TAPLIN. APOLOGIES FOR THAT.

>> CITY CLERK: MOTION?

>> MAYOR ISHII: SORRY, DOES SOMEONE HAVE A SECOND?

>> I. TREGUB: WHAT'S THE MOTION?

>> C. LUNAPARRA: IT'S THE SAME AS THE PREVIOUS MOTION JUST WITHOUT THE TELEGRAPH AND DURANT LOCATION.

>> I. TREGUB: I'LL SECOND THAT.

>> MAYOR ISHII: ALL RIGHT. SO WE HAVE TWO MOTIONS CURRENTLY ON THE FLOOR. COUNCILMEMBER BLACKABY, COUNCILMEMBER BARTLETT AND THEN COUNCILMEMBER TAPLIN? OH --

>> B. BLACKABY: THANK YOU MADAM MAYOR. I APPRECIATE THE ELOQUENT WORDS FROM COUNCILMEMBER LUNAPARRA AND THE PASSION AND THE CARE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THAT SHE'S GIVEN TO THESE ISSUES. AND I APPRECIATE HER CONCERNS VERY MUCH. SO THANK YOU FOR SPEAKING OUT WITH SUCH ELOQUENCE ON THOSE ISSUES. I WOULD LIKE TO THANK MY COLLEAGUES FOR THIS DISCUSSION AND THANK A GREAT NUMBER OF THE PUBLIC WHO HAVE COME OUT TO TALK, THESE ARE VERY DIFFICULT ISSUES IN TERMS OF THE BALANCING BETWEEN SAFETY AND PRIVACY AND CONCERNS ABOUT FEDERAL GOVERNMENT OVERREACH. SO AGAIN, I APPRECIATE THIS IS A PLACE WHERE WE CAN HAVE THESE SORTS OF CONVERSATIONS IN A CIVIL WAY AND RESPECTFUL WAY, IN A WAY WE CAN TRY TO HEAR EACH OTHER AND LEARN FROM EACH OTHER. THANK YOU. I WILL SAY WHERE I'M COMING OUT ON THIS, IN AN ENVIRONMENT WHERE OUR POLICE DEPARTMENT IS STILL STRIVING FOR FULL STAFFING, AND WE WISH WE COULD HAVE MORE POLICE AND COMMUNITY SAFETY OFFICERS IN PLACES WE WISH THERE WERE A LOT OF THINGS WE COULD DO DIFFERENTLY, BUT I THINK GIVEN THE REALITY WHERE WE ARE AT AND EFFECTIVE USE OF CAMERAS WE HAVE SEEN IN THE RECENT PAST. I DO SUPPORT MOVING FORWARD. I SUPPORT THE USE OF THIS TECHNOLOGY TO KEEP OUR COMMUNITY SAFE. I ALSO WANT TO ACKNOWLEDGE WHAT OTHERS HAVE SAID. THIS IS THE FIRST STEP AND THERE ARE MORE STEPS IN THE PROCESS. THIS IS NOT A FINAL PRODUCT. I SERVED ON THE P.A.B. AND VALUE THE ROLE, INSTITUTION, GOING THROUGH THIS IN A VERY DETAILED WAY IN THE USE POLICY AND ACQUISITION POLICY, SO I SUPPORT MOVING FORWARD WITH THE PROCESS BUT ALSO THERE'S MORE STEPS HERE BEFORE IT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

COMES BACK TO THE COUNCIL FOR FINAL CONSIDERATION. MANY COMMENTERS HAVE RAISED REALLY IMPORTANT POINTS THAT I THINK WE DO NEED TO CONSIDER WHEN IT COMES TO THAT USE POLICY AROUND PRIVACY AND AROUND FEDERAL GOVERNMENT OVERREACH. I THINK WHERE THE DATA IS STORED AND WHETHER IT'S LOCAL OR IN THE CLOUD AS COUNCILMEMBER O'KEEFE MENTIONED, AND OTHERS, I THINK THAT'S WORTHY OF CONSIDERATION. HOW LONG THE DATA IS RETAINED TO ME IS ALSO REALLY IMPORTANT. LIKE YOU KNOW, IT MAY BE THAT IF WE DO HAVE CONCERNS ABOUT WHO MIGHT ACCESS AND UNDER WHAT CONDITIONS WE WOULD BE OBLIGATED TO GIVE ACCESS WE MAY COME UP WITH VERY DIFFERENT DECISIONS ON HOW LONG TO RETAIN DATA BECAUSE WE DON'T WANT TO HOLD ONTO IT FOR LONG PERIODS OF TIME IF IT CAN BE MISUSED. I ALSO APPRECIATE THE CONVERSATION ON ENCRYPTION PROTOCOLS. THIS SHOULD BE A PART OF THE DISCUSSION, HOW FLOCK DOES THE ENCRYPTION AND THE HIGHEST POSSIBLE STANDARD. ONE OTHER THING THAT HASN'T BEEN DISCUSSED I WOULD BE VERY INTERESTED IN, I THINK WE HAVE DONE THIS IN PREVIOUS TECHNOLOGY POLICIES TO MAKE SURE WE BAKE IN FREQUENT LOOK-BACK REPORTS. WE WON'T NECESSARILY OBLIGATE IT OR SET IT NOW. I LOOK FORWARD TO SETTING THAT IN THIS PROCESS, BUT WHETHER IT'S EVERY SIX MONTHS OR EVEN POTENTIALLY MORE FREQUENTLY AS RESOURCES ALLOW, THE EFFECTIVENESS OF THE CAMERAS, THE TRADE-OFFS, THE COSTS THE BENEFITS AROUND EFFECTIVENESS AROUND DETERRING OR SOLVING

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CRIMES, I THINK THOSE REPORTS AND ANALYSIS ON A FREQUENT BASIS BACK TO P.A.B. AND BACK TO THE COUNCIL WOULD ALSO BE VERY IMPORTANT TO MAKE SURE THE CAMERAS ARE DOING WHAT WE EXPECT THEM TO DO AND THEY ARE WORKING PROPERLY. ONE OF THE COMMENTS ON THE CONCERNS ABOUT THOROUGH GOVERNMENT OVERREACH, AGAIN, WITH RESPECT. AND I UNDERSTAND THE CONCERNS, I ALSO THINK THAT IF THE FEDERAL GOVERNMENT, AT SOME POINT WERE TO SEIZE ILLEGALLY DATA THAT IS OWNED BY THE CITY OF BERKELEY, EVEN AS SENSITIVE AS THAT INFORMATION MIGHT BE, WE HAVE MUCH BIGGER PROBLEMS ON OUR HANDS THAN JUST GIVING ACCESS TO THIS DATA. THAT'S DEFCON-1. IF THEY WORK AROUND THE LAW, CIRCUMVENT THE LAW, SEIZE IT ILLEGALLY, YOU CAN BET THAT THE STATE OF CALIFORNIA AND THIS COUNCIL AND THE CITY OF BERKELEY WILL PUSH BACK WITH FULL FORCE. AND I THINK IT WOULD SPARK MORE THAN JUST A DISCUSSION ABOUT THE PARTICULAR USE POLICY. I SHARE THE CONCERN BUT I ALSO THINK IT WOULD RAISE, WE WOULD BE AT DEFCON 1 ON A WHOLE VARIETY OF OTHER ISSUES BESIDES THE PARTICULAR DATA. AND THE LAST PIECE ON THE CONCERNS ABOUT PARTICULAR LOCATIONS OF TECHNOLOGY. I APPRECIATE THE HEART FELT CONCERNS HERE. I DO THINK AS WE GO THROUGH THIS PROCESS, WE NEED TO INCLUDE THE VIEWPOINTS OF STUDENTS, STUDENT ORGANIZATIONS AND WHETHER IT'S WITH THIS, AND ALSO FOR FUTURE DECISIONS LIKE THIS, WE NEED TO DO A BETTER JOB OF THAT, SO I APPRECIATE THAT ISSUE BEING RAISED. BUT I ALSO FEEL WITH RESPECT THIS SHOULD BE A

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

CITYWIDE DECISION. IT SHOULD BE A CITYWIDE PROCESS, SINCE ALL OF OUR RESIDENTS LIVE AND WORK AND TRAVEL ALL OVER THE CITY AND OUTSIDE THE CITY WITH NO RESPECT TO DISTRICT BOUNDARIES. SO WITH RESPECT, I THINK IF THE DECISION IS THIS IS A PLACE WHERE WE THINK THE DATA SHOWS AND OUR BELIEF IS FROM A LAW ENFORCEMENT PERSPECTIVE WE NEED A CAMERA AND IT'S GOOD FOR PUBLIC SAFETY AS A CITY AS A WHOLE, TO ME THAT'S THE STANDARD. BECAUSE I DON'T JUST LIVE AND WORK IN DISTRICT 6, I LIVE AND WORK AND SPEND TIME ALL OVER THE CITY. THAT'S WHERE I'M COMING FROM ON ALL THIS, I APPRECIATE THE WORK WITH COUNCILMEMBER TREGUB ON THE AMENDMENT. I APPRECIATE COUNCILMEMBER HUMBERT OFFERING THE MOTION. AND I WILL BE SUPPORTING THE PRIMARY MOTION. THANK YOU FOR THE TIME.

>> MAYOR ISHII: THANK YOU. COUNCILMEMBER BARTLETT?

>> B. BARTLETT: THANKS SO MUCH, MADAM MAYOR. IT'S BEEN AN INTERESTING DEBATE TONIGHT. ON THE ONE HAND, IN MY DISTRICT WHERE ONE OF THE CAMERAS WILL BE MOVED TO IS THE SITE OF THREE SHOOTINGS OVER TWO MONTHS. AND ANOTHER AREA WITH TREMENDOUS REQUESTS FROM CONSTITUENTS LIVING THERE FOR THE CAMERAS. AND AS TO NIGHT, WE KNOW EARLIER FROM OUR FIRST MEETING, B.P.D. IS JUST REALLY ON THE GOOD FOOT RIGHT NOW. THEY HAVE REALLY SHOWN THEMSELVES TO BE AN EXCELLENT PARTNER WITH THE COMMUNITY, EMBRACING CONSTITUTIONAL POLICING AND THE EQUITABLE ELEMENTS THAT WE FOUGHT FOR, FOR SO MANY YEARS. 50 SOMETHING YEARS,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

REALLY MANIFESTS. I HAVE VERY LITTLE DOUBT THAT B.P.D. WILL HANDLE THIS INFORMATION. HOWEVER, ON THE OTHER HAND, IT IS EXTRAORDINARILY CLEAR TO ME THE FEDERAL GOVERNMENT IS GOING IN A DIRECTION THAT WILL THREATEN OUR CIVIL LIBERTIES, IT'S HAPPENING AT A BREAKNECK CLIP. I HAVE NO DOUBT IN MY MIND, ZERO DOUBT THEY WILL SEIZE WHATEVER DATA IS ON THAT COMPANY'S SERVERS RELATED TO US, WITHOUT A DOUBT. AND SO, THIS PROCESS WILL GO ON AND WILL GO BACK TO THE P.A.B. AND DEVELOP IT. BUT I WOULD LIKE TO SAY FOR THE RECORD. I WANT TO MAKE A MOTION BUT I HAVE LANGUAGE TO ADD TO COUNCILMEMBER TREGUB'S LANGUAGE IN THE CONTRACT. I CAN READ IT OR JUST PUT IT FOR THE RECORD OR TRY TO MAKE A MOTION. I CAN'T ASSESS THE ROOM SINCE I CAN BARELY BREATHE. I CAN JUST READ IT IF YOU WANT TO HEAR IT.

>> MAYOR ISHII: OKAY, SO COUNCILMEMBER BARTLETT, I WOULD LIKE COUNCILMEMBER TREGUB TO PULL UP THE LANGUAGE. AND THEN IF YOU HAVE SOME LANGUAGE YOU ARE PROPOSING, I THINK IT WOULD BE BEST IF YOU SENT IT TO US SO THAT WE COULD READ IT, UNLESS IT'S QUITE SHORT. JUST BECAUSE I WANT TO MAKE SURE WE ARE ALL CLEAR WHAT WE WOULD BE VOTING ON.

>> B. BARTLETT: SURE, LET ME EMAIL IT TO YOU.

>> MAYOR ISHII: IN THE MEANTIME, COUNCILMEMBER TAPLIN?

>> T. TAPLIN: THANK YOU, MADAM MAYOR. I JUST WANT TO SAY A FEW THINGS. THIS IS ALREADY GOING TO THE P.A.B. BUT THE MURDER THAT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

HAPPENED IN '22 WEIGHS HEAVILY ON ME. THOSE OF US WHO WERE HERE WHEN WE ADOPT THE SURVEILLANCE ORDINANCE, IF WE STOOD BY IT THEN, WE SHOULD STAND BY IT NOW. THOSE WHO ADOPTED THE SANCTUARY POLICIES IF WE STOOD BY THEM THEN, WE SHOULD STAND BY THEM NOW. THAT BEING SAID, IS THERE A WAY TO SEVER THE LOCATION AT TELEGRAPH AND DURANT. CAN WE JUST SEVER THAT ONE, MR. CLERK?

>> MAYOR ISHII: I THINK THAT'S THE SECOND MOTION.

>> T. TAPLIN: THERE'S A SUBSTITUTE MOTION I WOULD LIKE TO SEVER. I GUESS THAT'S --

>> [OFF MIC]

>> MAYOR ISHII: ARE YOU VOICING YOUR SUPPORT FOR THE SUBSTITUTE MOTION?

>> T. TAPLIN: I'M VOICING MY SUPPORT FOR THE MAIN MOTION. BUT I WOULD PREFER A SEVERANCE, NO PUN INTENDED.

>> MAYOR ISHII: SEVERANCE OF WHAT?

>> T. TAPLIN: TELEGRAPH AND DURANT.

>> MAYOR ISHII: SO YOU ARE VOICING YOUR SUPPORT FOR THE SUBSTITUTE MOTION, SORRY.

>> T. TAPLIN: THE MAIN MOTION.

>> MAYOR ISHII: FOR THE MAIN MOTION?

>> T. TAPLIN: I'M SUPPORTING THE MAIN MOTION. I AM SUPPORTING HUMBERT'S MOTION.

>> MAYOR ISHII: ALL RIGHT, BUT YOU RECOGNIZE THAT THE MOTION

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THAT WAS MADE BY COUNCILMEMBER LUNAPARRA IS ESSENTIALLY JUST REMOVING THAT INTERSECTION, IS THAT CORRECT, OF TELEGRAPH AND DURANT?

>> C. LUNAPARRA: YEAH, NO OTHER CHANGES.

>> MAYOR ISHII: OKAY. COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: I HAVE A LITTLE SPEECH OF COURSE. I HAVE A QUESTION FOR CITY ATTORNEY FIRST. REGARDING THE JUDICIAL WARRANT SCENARIO. SO TELL ME WHAT WOULD HAPPEN IF, LET'S SAY WE KEEP THE DATA FOR 30 DAYS AND IT'S AUTOMATICALLY DELETED. THEY COME IN THE WARRANT, WE ARE LIKE OH NO, THIS SUCKS, WE HAVE TO GIVE IT TO THEM, UNFORTUNATELY. WE TRY NOT TO BUT WE HAVE TO. CAN THE POLICE CHOOSE TO JUST STOP RECORDING AT THAT MOMENT? LIKE CAN THE FEDERAL GOVERNMENT COMPEL US TO CONTINUE THE SURVEILLANCE? BECAUSE I WOULD THINK THAT WOULD BE A GOOD TIME TO PRESS THE OFF BUTTON ON THE SURVEILLANCE AND THEY ONLY GET 30 DAYS. HOW WOULD THAT WORK?

>> YEAH, I DON'T THINK THE COURT COULD REQUIRE IT TO CONTINUE IT INTO THE FUTURE. BUT AT ANY RATE, RECORDS THAT WE DO HAVE.

>> S. O'KEEFE: UNDERSTAND WE CAN'T DESTROY, THAT'S DESTROYING EVIDENCE. THEY CAN GET 30 DAYS. I GUESS WHAT I'M SAYING IS WE DO HAVE AGENCY, MY UNDERSTANDING IS WE DO HAVE AGENCY IN NOT SUCCUMBING TO THIS FEDERAL SURVEILLANCE STATE THAT NONE OF US WANTS SHOULD THIS HAPPEN. IT WOULD BE A BUMMER IF THEY GOT 30

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DAYS WORTH OF DATA BUT THAT WOULD BE IT, I WOULD THINK. IS IT FAIR TO SAY THAT?

>> CITY MANAGER BUDDENHAGEN: WE CAN TERMINATE THE CONTRACT, WE CAN STOP RECORDING DATA.

>> S. O'KEEFE: DO THEY HAVE TO COME TO US TO GET PERMISSION. CAN THEY JUST DO IT IF THEY WANT.

>> CITY MANAGER BUDDENHAGEN: THEY ARE CONTRACTING WITH US, WE GET TO TELL THEM WHAT WE WANT.

>> S. O'KEEFE: IN TERMS OF OUR RULES IS THERE ANYTHING STOPPING CHIEF LOUIS FROM SAYING OH HELL NO, AND LITERALLY JUST STOPPING THE SOFTWARE FROM RUNNING?

>> CITY MANAGER BUDDENHAGEN: OPERATIONALLY, I DON'T SEE WHY WE COULDN'T DO THAT, UNLESS YOU ARE AWARE OF SOME REASON WE COULDN'T.

>> NO, I TEND TO AGREE. WE AREN'T REQUIRED TO COME TO COUNCIL TO ASK PERMISSION TO TERMINATE THE CONTRACT, ESPECIALLY WITH THE LANGUAGE PROPOSED BY COUNCILMEMBER TREGUB THAT CLEARLY SPELLS OUT THAT WOULD BE AN AUTOMATIC GROUNDS FOR TERMINATION. THAT WOULD BE SOMETHING, OUR VALUES AND COMMUNITY VALUES, COMMUNITY POLICY AND OUR STATE LAW WOULD ASK US TO DO AS WELL, EXPECT US TO DO.

>> S. O'KEEFE: I SUSPECT THAT'S A UNANIMOUS SENTIMENT. THE SCARY SCENARIOS ARE SCARY BUT WE STILL HAVE AGENCY, NO MATTER WHAT.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THAT'S MY BELIEF. SO THAT SAID, HERE IS HOW I FEEL ABOUT THIS. THIS ITEM HAS COME BEFORE US AS PART OF THE PROCESS SET OUT BY THE ORIGINAL OSH RECENT SURVEILLANCE ORDINANCE THAT WAS PASSED, I BELIEVE LAST YEAR, IS THAT RIGHT? IT WAS LESS THAN A YEAR AGO. IT WAS VERY RECENTLY. THREE YEARS? OKAY, WELL ANYWAY, IT WAS PRETTY RECENTLY. THIS IS A LAW THAT WAS PASSED BY THIS COUNCIL, SOME MEMBERS OF THIS CURRENT COUNCIL WERE ON THE COUNCIL THEN. WE OUTLINED THIS POLICY. WE DID. THIS IS THE FIRST STEP IN A PROCESS THAT WAS OUTLINED BY OUR LAW. SO IT SEEMS RIDICULOUS TO ME TO JUST IMMEDIATELY SUBVERT THAT PROCESS THAT WE JUST AGREED TO. THE PROCESS IS CUMBERSOME, I'VE LOOKED INTO IT. WITHOUT VIOLATING THE BROWN ACT I'M WORKING ON AN ITEM THAT WILL MAKE THE PROCESS BETTER AND EASIER. SO WE ARE LOOKING AT CLEANING IT UP, IF ANYONE WANTS TO TALK TO ME ABOUT IT LATER. TWO OF YOU CAN. ANYWAY, I CHECKED, I CAN TELL YOU THAT. I'M INTERESTED IN APPROVING THIS, BUT THIS IS WHAT WE HAVE NOW, THEY HAVE TO COME HERE AND ASK US FOR THESE LOCATIONS AND TECHNOLOGY AND THEN GO OUT AND SEE IF THEY CAN MAKE IT WORK AND THEN COME BACK AND DO THE USE POLICY. I JUST WANT TO SAY, I'M IN FAVOR OF THIS PROCESS BECAUSE WE NEED TO HAVE A PROCESS AND THIS IS STEP ONE. SO I'M SUPPORTING THE MAIN MOTION. I DO HAVE, I WILL JUST SAY IT BECAUSE EVERYONE IS TALKING ABOUT IT. I DO HAVE QUESTIONS ABOUT THE DATA STORAGE AND VULNERABILITY. EVEN THE 30 DAYS. I DO HAVE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THOSE CONCERNS. I WANT TO TALK ABOUT THEM WHEN WE TALK ABOUT IT LATER. I TEACH DATA PRIVACY AT BERKELEY HIGH SCHOOL. I DO KNOW SOMETHING ABOUT THIS. I ACTUALLY DON'T THINK IT'S AS SIMPLE AS THE ENCRYPTION IS SUCH THAT IT WOULD TAKE 100 BILLION YEARS TO CRACK IT. IT'S A LITTLE BIT MORE COMPLICATED THAN THAT. THE ENCRYPTION THING IS NOT QUITE ENOUGH FOR ME. THAT'S JUST A PREVIEW OF THINGS I'M GOING TO TALK ABOUT WHEN THAT COMES FORWARD. BUT THESE LOCATIONS ARE FINE. THIS TECHNOLOGY LOOKS FINE. AND I'M GOING TO SUPPORT THE MAIN MOTION. I ACTUALLY JUST WANT TO SAY ONE MORE THING. HAVE I GONE OVER FIVE MINUTES? NO, OKAY. YOU KNOW, A LOT OF THOSE SPEAKERS WHO CAME TONIGHT WERE READING THEIR COMMENTS OFF OF SMARTPHONES. AND I JUST WANT TO REMIND THE PUBLIC, I BET EVERY SINGLE PERSON IN THIS ROOM HAS A SMARTPHONE. I JUST WANT TO REMIND THE PUBLIC THAT WE ARE ALREADY BEING TRACKED. I REGRET TO INFORM YOU. NOW I KNOW IT'S NOT BY LAW ENFORCEMENT, I KNOW IT'S NOT THE SAME. BUT YOU TALK ABOUT THE EVIL BIG TECH COMPANIES WHO ARE COZYING UP TO TRUMP. THEY CAN ALREADY TRACK YOU. AND I DON'T LIKE IT EITHER. BUT THAT'S THE REALITY WE LIVE IN. I PERSONALLY AM OKAY BEING SURVEILLED BY A GROUP THAT I TRUST WHO IS TRYING TO KEEP ME SAFE WHO ARE NOT COZYING UP TO TRUMP AND LITERALLY JUST WANT TO KEEP US ALL SAFE. I AM PERSONALLY COMFORTABLE WITH THAT. MOST OF MY CONSTITUENTS ARE AND I FEEL VERY COMFORTABLE VOTING YES ON THE MAIN MOTION.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: OKAY, COUNCILMEMBER KESARWANI ?*

>> R. KESARWANI: THANK YOU. THANK YOU, EVERYONE. THANK YOU, COUNCILMEMBER O'KEEFE FOR SAYING WHAT WE'RE ALL ALREADY THINKING IN TERMS OF THE USE OF THE CELL PHONES. I'VE ALWAYS BEEN A SUPPORTER OF USING TECHNOLOGY BECAUSE OUR POLICE OFFICERS CAN'T BE EVERYWHERE ALL THE TIME. AND I THINK COUNCILMEMBER BLACKABY TALKED ABOUT THAT. WE TALKED ABOUT THAT AT OUR 4:00 P.M. MEETING. THE RECRUITMENT WORK WE ARE DOING SO WE CAN HAVE OUR OFFICERS, YOU KNOW, HAVE SHORTER RESPONSE TIMES TO THOSE SERIOUS CALLS. SO I THINK IT IS IMPORTANT FOR US TO USE THESE FLOCK CAMERAS. WE SEE THE EVIDENCE THAT THESE CAMERAS HELP US SOLVE SERIOUS CRIMES WHEN MEMBERS OF OUR COMMUNITY ARE VICTIMIZED. SO I AM IN STRONG SUPPORT. I JUST WANT TO CLARIFY THE 16 LOCATIONS AND THESE FOUR ADDITIONAL LOCATIONS, HOW WERE THOSE SELECTED?

>> BY LOOKING AT DATA AND WHERE CRIMES CONCEIVABLY COULD BE CAPTURED BY CAMERAS OCCUR AT THE GREATEST FREQUENCY.

>> R. KESARWANI: OKAY. AND I APPRECIATE COUNCILMEMBER LUNAPARRA'S POINTS ABOUT THE LOCATION IN HER DISTRICT. I JUST THINK THAT, AND I THINK OTHERS HAVE ALREADY MADE THIS POINT, ONE INTERSECTION ISN'T JUST USED BY A CERTAIN SEGMENT OF THE POPULATION. WE ALL TRAVEL AROUND OUR ENTIRE CITY. WE HAVE PEOPLE COMING FROM OUTSIDE OF OUR CITY TO VISIT AND EVERYBODY WANTS TO HAVE THE COMFORT OF KNOWING IF, GOD FORBID, THEY ARE A VICTIM OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

A SERIOUS CRIME THAT WE HAVE DONE EVERYTHING POSSIBLE TO TRY TO BRING ACCOUNTABILITY FOR THAT CRIME. I THINK WE NEED TO APPROVE ALL OF THE LOCATIONS AND BEGIN THIS VERY CUMBERSOME PROCESS TO ACQUIRE THIS TECHNOLOGY. I ALSO WANT TO SAY THAT IT HAS BEEN AN EXTREMELY SCARY AND STRESSFUL TIME SINCE JANUARY 20TH WITH THIS ADMINISTRATION. IT FEELS LIKE EVERY DAY IT GETS RAMPED UP FURTHER. AND I TOTALLY UNDERSTAND THE FEARS THAT PEOPLE ARE FEELING, IN TERMS OF THE FEDERAL ACCESS TO OUR DATA. I THINK THE SAFEGUARDS, THE LANGUAGE COUNCILMEMBER TREGUB HAS PROPOSED IS GOOD. I WOULD ASK THAT BE SHARED AGAIN. I WAS NOT TRACKING THIS PIECE THAT BECAME SORT OF BECAME OF COUNCILMEMBER O'KEEFE'S QUESTIONING. I DIDN'T REALIZE THIS LANGUAGE, IF I UNDERSTAND NOW CORRECTLY, THAT IT ACTUALLY PROVIDES FOR DISCONTINUING THE CONTRACT IN THE EVENT THAT THE FEDERAL GOVERNMENT IS SEEKING THE DATA. IS THAT CORRECT? OKAY. SO I FEEL VERY GOOD ABOUT THAT. I DIDN'T REALIZE IT WAS STATING THAT. I WILL LOOK AT IT AGAIN. SO I WANT THE COMMUNITY TO KNOW THAT. SO WE WOULD ESSENTIALLY HAVE A PAUSE, AN INDEFINITE PAUSE IF THAT WERE TO OCCUR. SO I THINK THAT'S VERY IMPORTANT. AND THAT DOES GIVE ME A LOT OF COMFORT WITH THIS. WHEN I WAS HEARING THAT CONCERN ABOUT FEDERAL AGENTS SEEKING THIS DATA, I'M ALSO, WE ALSO HAVE TO BALANCE THAT. WITH THE REALITY THAT CRIME DOES HAPPEN IN THIS COMMUNITY, RIGHT? WE ALSO WANT TO KEEP OUR COMMUNITY SAFE AND SO WE HAVE TO SORT OF

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BALANCE THESE RISKS. I THINK THE LANGUAGE FROM COUNCILMEMBER TREGUB DOES THAT EFFECTIVELY, IN MY OPINION. THAT'S ALL I HAVE, AND I'M PREPARED TO SUPPORT THE MAIN MOTION. THANK YOU.

>> MAYOR ISHII: YES, SO COUNCILMEMBER LUNAPARRA, YOU ARE ON MY LIST. AND THEN I'M NOT SURE IF COUNCILMEMBER HUMBERT YOU HAVE YOUR HAND RAISED FROM BEFORE OR IF IT'S A NEW COMMENT. THANK YOU. GO AHEAD, COUNCILMEMBER LUNAPARRA AND THEN COUNCILMEMBER BARTLETT.

>> C. LUNAPARRA: THANK YOU, I HAVE ONE QUICK QUESTION, HOW LONG DO WE KEEP DATA? IS IT 30 DAYS OR IS IT LONGER?

>> OUR CURRENT POLICY IS WE KEEP ALPR DATA 30 DAYS AND FIXED CAMERAS FOR 180 DAYS.

>> C. LUNAPARRA: OKAY, THANK YOU. I'M GLAD WE CLARIFIED THAT. THANKS. I WANT TO PUSH BACK ON SOMETHING THAT WAS SAID EARLIER ABOUT US BEING IN A REALLY DANGEROUS POSITION, THAT THIS WOULD NOT BE THE BIGGEST PROBLEM ON OUR HANDS IF THE FEDERAL ADMINISTRATION WAS GOING PAST YOU KNOW, LEGAL BARRIERS IN OBTAINING THIS DATA ILLEGALLY. I DO WANT TO POINT OUT THAT THE FEDERAL ADMINISTRATION HAS ALREADY BEEN DOING ILLEGAL THINGS. AND SO I DON'T THINK WE ARE NECESSARILY SUPER FAR OFF FROM THE FEDERAL GOVERNMENT ILLEGALLY OBTAINING THIS KIND OF DATA. I ALSO WANT TO SAY WHEN SOMEONE HAS AND USES A SMARTPHONE, LIKE SOMEONE SAID EARLIER, THEY ARE CONSENTING TO BEING SURVEILLED IN THAT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WAY. VERSUS WALKING AROUND ON THE STREET, I MEAN TECHNICALLY IF THERE'S A SIGN THERE, TECHNICALLY THEY ARE ALSO CONSENTING BUT IT'S OBVIOUSLY ENTIRELY DIFFERENT. I ALSO, I UNDERSTAND WHAT PEOPLE ARE SAYING ABOUT WHAT MY COLLEAGUES ARE SAYING ABOUT CRIME, YOU KNOW, EVERYBODY GOES TO EVERY PART OF THE CITY AND CRIME IS NOT SILOED IN DISTRICTS, AND I UNDERSTAND THAT. I ALSO, YOU KNOW, IF YOU WALK AROUND TELEGRAPH AT ANY POINT DURING THE DAY AT ANY DAY, IT IS DISPROPORTIONATELY STUDENTS AND YOUNG PEOPLE THAT ARE THERE. THAT IS JUST A BASIC ASSUMPTION, RIGHT? AND THAT POPULATION IS DISPROPORTIONATELY IMMIGRANT, MUCH MORE LIKELY TO IDENTIFY AS LGBT AS TRANSGENDER, MUCH MORE LIKELY TO BE PART OF AN ACTIVIST GROUP, TO BE PROTESTING. AND I WANT TO HIGHLIGHT WHAT, WE RECEIVED A LETTER FROM THE STUDENT GOVERNMENT LEADERS OVER HALF OF THE SENATORS AND MOST OF THE EXECUTIVES WHO REPRESENT AN ELECTED BODY OF U.C. BERKELEY STUDENTS AND THEY EXPRESSED THE STUDENT BODY, ESPECIALLY THOSE BLACK BROWN, INDIGENOUS OR IMMIGRANTS HAVE OVERWHELMINGLY EXPRESSED OPPOSITION TO THE USE OF SURVEILLANCE CAMERAS FOR PUBLIC SAFETY. MANY FEEL THEY DON'T FEEL THEY ARE SAFER, IN FACT THEY FEEL LESS SECURED. THESE POPULATIONS ALREADY BURDENED BY VIOLENT CONSTITUTIONAL ATTACKS. OUR COMMUNITIES WHETHER POLITICALLY ACTIVE OR NOT ARE DISPROPORTIONATELY IMPACTED BY -- [READING RAPIDLY] I THINK, AND LIKE I SAID EARLIER, I THINK THAT WE ARE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BALANCING A LOT RIGHT NOW. AND I WANT TO JUST MAKE IT VERY, VERY CLEAR THAT THIS INTERSECTION AND THIS AREA AGAIN IS PREDOMINANTLY USED BY STUDENTS AND THE PEOPLE WHO LIVE AROUND IT ARE YOUNG PEOPLE. THE ITEM WE ARE LOOKING AT TONIGHT EXPLICITLY SAYS THAT PART, WHAT WENT INTO THIS DECISION-MAKING PROCESS WAS COLLABORATING WITH COMMUNITY GROUPS. I WANT TO REITERATE MY MOTION IS THE EXACT SAME AS THE MAIN MOTION SIMPLY WITH THIS ONE CAMERA REMOVED. THANK YOU.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER. COUNCILMEMBER BARTLETT? VICE MAYOR BARTLETT. SORRY.

>> B. BARTLETT: THAT'S RIGHT. COUNCILMEMBER TREGUB AGREED TO PROPOSE LANGUAGE. ESSENTIALLY THIS IS THE SORT OF LANGUAGE THAT COMES WITH DURING OUR TALK AND BASICALLY IT ESTABLISHES LIQUIDATED DAMAGES WHICH IS A PEB PENALTY, ENOUGH TO BE A DISINCENTIVE FOR A VENDOR TO SELL US OUT, WHICH GIVES US THE RIGHT TO GET OUT OF THE CONTRACT. THE SECOND PART OF IT CAMERA PROGRAM SHALL BE EXCLUSIVELY OWNED AND CONTROLLED BY THE CITY OF BERKELEY AND SHALL BE STORED IN A SECURE ON PREMISES OR CITY MANAGED STORAGE SYSTEM, NOT IN CLOUD BASED OR THIRD PARTY CONTROLLED ENVIRONMENTS. FLOCK SAVE IS TI SHALL HAVE NO INDEPENDENT ACCESS TO CONTROL OVER, THAT GIVES RISE TO THE DATA PROTECTION ASPECT OF IT. THE CLOUD WILL BE ACCESSED BY THE TRUMP ADMINISTRATION, PROMISE YOU. SO THIS COULD BE SUBJECT TO REVIEW

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

BY LEGAL. BUT I AT LEAST WANT TO MAKE THIS INTENT VERY CLEAR FOR ANYONE LISTENING THAT THIS IS A SERIOUS ISSUE THAT MY OFFICE TAKES SERIOUSLY AS WELL.

>> MAYOR ISHII: THANK YOU, COUNCILMEMBER, OR VICE MAYOR. GOSH, VICE MAYOR BARTLETT. I WILL GET THAT. I'M HOPING OUR CITY ATTORNEY COULD SPEAK TO THIS. I AM VERY CONCERNED ABOUT BRINGING FORWARD LANGUAGE ON SOMETHING THAT IS QUITE SENSITIVE WITHOUT HAVING THEIR REVIEW, OR PERHAPS I SHOULD ASK THE QUESTION HAVE YOU BEEN ABLE TO REVIEW THIS DATA, I'M SORRY, THIS LANGUAGE. I'M SORRY, IT'S ALREADY BEEN A LONG NIGHT.

>> NO, NOT THIS NEW ONE.

>> MAYOR ISHII: I'M SORRY, TO FOLLOW-UP ON THAT, COULD YOU SPEAK AT ALL TO THIS, ANY POTENTIAL CONCERNS?

>> I MEAN, YEAH, IDEALLY WE WOULD TAKE A LOOK AT IT CLOSELY. THERE AREN'T ANY MAJOR LEGAL RED FLAGS, I DON'T KNOW ABOUT OPERATIONALLY, BUT IDEALLY WE WOULD TAKE A LOOK AT IT BEFORE GREEN LIGHTING IT.

>> MAYOR ISHII: MR. CITY MANAGER?

>> CITY MANAGER BUDDENHAGEN: IF THIS IS SOMETHING YOU WANT US TO NEGOTIATE OR DISCUSS WITH THE CONTRACT WITH FLOCK IT WOULD BE FINE AS A DISCUSSION POINT. IF IT'S CODIFIED IN HERE AS IT IS WITHOUT FURTHER LEGAL REVIEW, AND ALSO FROM OPERATIONAL, IT MAY BE A NON-STARTER, BECAUSE FLOCK MAY SAY WE DON'T DO THAT. IT

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WOULD BE BETTER IF WE HAD THE OPPORTUNITY TO TALK TO THEM ABOUT IT.

>> MAYOR ISHII: COULD YOU MAYBE TELL US HOW WE COULD INCLUDE LANGUAGE THAT WOULD CAPTURE THIS, WHILE STILL GIVING YOU THE ABILITY TO HAVE THOSE CONVERSATIONS?

>> CITY MANAGER BUDDENHAGEN: MAYBE SOMETHING TO THE EFFECT, THE CITY SHALL DISCUSS WITH FLOCK THE POTENTIAL FOR... THIS STUFF.

>> MAYOR ISHII: UH-HUH. OKAY.

>> B. BARTLETT: I'LL MAKE THAT MOTION.

>> MAYOR ISHII: OKAY, SO CAN WE HAVE COUNCILMEMBER TREGUB ADJUST THE LANGUAGE SO IT WOULD BE CORRECT, GIVEN WHAT WE JUST DISCUSSED? AND JUST TO CLARIFY, BECAUSE WE HAVE TWO MOTIONS. ARE YOU OFFERING A FRIENDLY AMENDMENT TO COUNCILMEMBER HUMBERT'S MOTION THEN?

>> B. BARTLETT: I THINK IT'S ITS OWN MOTION.

>> MAYOR ISHII: COULD THE CITY MANAGER SPEAK TO THIS.

>> WE ALREADY HAVE TWO MOTIONS ON THE FLOOR, WE COULDN'T ADD A THIRD.

>> MAYOR ISHII: IT WOULD BE A FRIENDLY AMENDMENT THEN. COUNCILMEMBER HUMBERT, DO YOU WANT TO SPEAK TO THAT?

>> M. HUMBERT: YES, I DON'T ACCEPT THAT AS A FRIENDLY AMENDMENT, WITH ALL DUE RESPECT TO THE VICE MAYOR.

>> MAYOR ISHII: I SHOULD SAY COUNCILMEMBER BARTLETT, IF YOU

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

WOULD LIKE, YOU COULD MAKE THIS AS A FRIENDLY AMENDMENT TO COUNCILMEMBER LUNAPARRA'S MOTION AS WELL.

>> B. BARTLETT: OKAY, THIS WOULD BE A FRIENDLY AMENDMENT TO COUNCILMEMBER LUNAPARRA'S MOTION TO REFER THE ABOVE LANGUAGE TO THE CITY TEAM TO DISCUSS WITH THE VENDOR. ANY VENDOR.

>> C. LUNAPARRA: YES. OH WAIT. WITH THE FLOCK SAFETY VENDOR?

>> B. BARTLETT: YES.

>> C. LUNAPARRA: YES, I'LL ACCEPT THAT.

>> MAYOR ISHII: OKAY.

>> B. BARTLETT: THANK YOU.

>> MAYOR ISHII: ALL RIGHT. COUNCILMEMBER HUMBERT, DID YOU HAVE ANOTHER COMMENT YOU WANTED TO MAKE? AND THEN COUNCILMEMBER BLACKABY AND TAPLIN.

>> I'M SORRY TO INTERRUPT. WAS THAT ALSO ACCEPTED BY THE SECONDER?

>> MAYOR ISHII: YES, THANK YOU.

>> I. TREGUB: YEAH, I'M FRIENDLY TO THAT, AS LONG AS WE'RE VERY CLEAR THAT THIS IS A REFERRAL. IT'S NOT PART OF THE AMENDED LANGUAGE FROM BEFORE.

>> MAYOR ISHII: YES, THANK YOU. COUNCILMEMBER HUMBERT, DID YOU HAVE ANOTHER COMMENT? NO, OKAY, COUNCILMEMBER BLACKABY?

>> B. BLACKABY: VERY QUICK, WITH OR WITHOUT THE LANGUAGE WE COULD STILL NEGOTIATE THIS WITH OR WITHOUT THE REFERRAL IN THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

ACQUISITION AGREEMENT AND THE CONTRACT, RIGHT? THIS DOES NOT HAVE TO BE PRESENT TONIGHT TO STILL ACHIEVE THIS GOAL, RIGHT? I JUST WANT TO BE CLEAR ON THAT.

>> CITY MANAGER BUDDENHAGEN: THAT'S CORRECT.

>> B. BLACKABY: OKAY, BECAUSE THERE ARE SOME OPERATIONAL THINGS, I TEND TO THINK, I KNOW THIS IS A REFERRAL. BUT I TEND TO THINK THE LOCAL CONTROL OF DATA IS PROBABLY BETTER BUT I'M NOT 100% SURE. THERE ARE SOME OPERATIONAL THINGS IN THERE, I WOULD JUST BE MORE COMFORTABLE WORKING THAT THROUGH IN THE PROCESS. BECAUSE WE DO HAVE MORE STEPS IN THE PROCESS TO REALLY HAMMER THESE PIECES OUT. THANK YOU.

>> MAYOR ISHII: YES, THANK YOU. COUNCILMEMBER TAPLIN? NO. OKAY. WERE THERE OTHER COMMENTS FROM FOLKS? COUNCILMEMBER O'KEEFE?

>> S. O'KEEFE: I JUST WANT TO SAY PLUS ONE TO WHAT BRENT JUST SAID, COUNCILMEMBER BLACKABY.

>> MAYOR ISHII: OKAY. SO I HAVE SOME COMMENTS MYSELF. I THINK FIRST OF ALL, I KNOW THIS HAPPENED A LONG TIME AGO AT THIS POINT, BUT I WANT TO THANK YOU FOR YOUR PRESENTATION. AND ALSO APPRECIATE MY COLLEAGUES' COMMENTS AND QUESTIONS, I THOUGHT THEY WERE VERY IMPORTANT AND ALSO THE RESPONSES FROM OUR TEAM OVER HERE. I WANT TO MAKE A COMMENT THAT IS VERY IMPORTANT, WE INCLUDE STUDENTS AS WE ARE HAVING THESE CONVERSATIONS ESPECIALLY WE ARE LOOKING AT AN AREA WHERE THERE ARE SO MANY STUDENTS. I

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DEFINITELY CAN UNDERSTAND WHY STUDENTS WOULD BE UPSET NOT BEING INCLUDED IN THESE, MY ASK IS STUDENTS ARE INCLUDED MOVING FORWARD WHEN WE HAVE THESE EDUCATIONAL OPPORTUNITIES, OR OPPORTUNITIES FOR FEEDBACK.

>> YEAH, THANK YOU VERY MUCH. I WANT TO ACKNOWLEDGE THAT COUNCILMEMBER LUNAPARRA HAS GRACIOUSLY OFFERED TO MAKE A LOT OF THOSE CONNECTIONS FOR US, SO LOOKING FORWARD TO THOSE FUTURE COLLABORATIONS.

>> MAYOR ISHII: I APPRECIATE THAT. AND THANK YOU, COUNCILMEMBER FOR BRINGING THAT UP. I THINK YOU ARE A GREAT ADVOCATE FOR YOUR DISTRICT. I ALSO HAVE A LOT OF CONCERNS ABOUT THE WORDING. I THINK WHAT IS MOST IMPORTANT TO ME, I WANT TO SEE A ROBUST SAFETY PLAN FOR THE DATA. INCLUDING INFORMATION ABOUT HACKING, IF THE FEDERAL GOVERNMENT CAN ACCESS IT IN ANY WAY, ENCRYPTION, WHAT DOES THAT LOOK LIKE. WHAT WOULD HAPPEN IF THE DATA IS VIOLATED TO ME IT ISN'T ENOUGH TO SAY THE CONTRACT HAS ENDED. IT'S TOO LATE AT THAT POINT BECAUSE THE DATA WOULD STILL EXIST. AND ONE THING THOUGH, JUST TAKING A STEP BACK THAT I WANT TO COMMENT ON IS THAT I THINK IT'S IMPORTANT WHEN WE ARE TALKING ABOUT CONCERNS OF WHAT THE FEDERAL GOVERNMENT COULD GET THAT WE HAVE SOME HYPOTHETICALS WHAT IT IS WE ARE WORRIED ABOUT THEM GETTING. BECAUSE FOR INSTANCE, IF IT'S JUST VIDEO FOOTAGE OF SOMEONE WALKING DOWN THE STREET AND THEY DON'T GET IT UNTIL A

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

FEW MONTHS LATER AFTER WE FOUGHT THEM IN COURT OR A YEAR LATER IS THAT DATA ACTUALLY GOING TO BE USEFUL IN DEPORTING SOMEONE ANYWAY. I WANT TO MAKE SURE WE ARE REALLY GOING THROUGH THE HYPOTHETICALS SO WE ARE CLEAR WHAT IT IS WE ARE CONCERNED ABOUT. I JUST WANT TO AGAIN REITERATE THAT STOPPING THE RECORDINGS WON'T SOLVE THE PROBLEMS OF THE RECORDINGS BEING USED. HOWEVER I APPRECIATE COUNCILMEMBER O'KEEFE'S LINE OF THINKING. BECAUSE WE DO HAVE A CERTAIN NUMBER OF DAYS THE FOOTAGE IS AVAILABLE. AND IF THE FOOTAGE IS DELETED AND IT TAKES SUCH A LONG TIME FOR THE FEDERAL GOVERNMENT TO ACCESS THAT DATA, THEN THAT COULD ALSO POTENTIALLY SOLVE OUR PROBLEM. I FEEL THERE'S A LOT OF INFORMATION THAT NEEDS TO BE KIND OF GONE THROUGH HERE. I DO REALLY HEAR EVERYONE TRYING TO BALANCE PUBLIC SAFETY AND ALSO THE RIGHTS OF OUR UNDOCUMENTED COMMUNITY, COMMUNITIES OF COLOR, LGBTQ FOLKS, ESPECIALLY THE TRANS COMMUNITY. I APPRECIATE ALL THAT. THERE'S A LOT OF PIECES TO TAKE INTO ACCOUNT HERE, AND I HEAR THE BUSINESS COMMUNITY AND COMMUNITY MEMBERS WHO FEEL THESE CAMERAS WILL BE HELPFUL IN BOTH DETERRING CRIME AND MAKING SURE WE ARE ABLE TO HAVE EVIDENCE WHEN CRIMES OCCUR, THAT WE ARE ABLE TO BRING SOME JUSTICE HERE. SO I AM IN SUPPORT OF THE MAIN MOTION AND I WANT TO JUST BRIEFLY SAY WHY. I THINK THAT IF WE ARE NOT CONFIDENT THAT THIS DATA IS GOING TO BE SAFE ENOUGH FOR DURANT AND TELEGRAPH, THEN WE SHOULDN'T BE CONFIDENT ENOUGH THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

DATA IS ENOUGH FOR THE WHOLE CITY. I WOULD LIKE TO KEEP THE CAMERAS TOGETHER. I'M VERY CONCERNED ABOUT THE DATA PIECE OF THIS, ESPECIALLY AS WE ARE OF COURSE A SANCTUARY CITY, WE HAVE A SANCTUARY CITY TASK FORCE. THIS WOULD BE A HUGE ISSUE FOR ME. I WANT TO MAKE SURE FROM A LEGAL STANDPOINT THAT WE HAVE ALL OF OUR BASES COVERED. SO AS WE GO THROUGH THE PROCESS, I WILL BE ASKING QUESTIONS ABOUT THAT, THAT'S VERY IMPORTANT. WE HAVE TWO MOTIONS, COUNCILMEMBER?

>> C. LUNAPARRA: I HAVE A QUESTION, UNDER OUR SURVEILLANCE ORDINANCE WE KEEP DATA FOR 180 DAYS, YOU SAID, RIGHT? ONLY FOR 180 DAYS?

>> THAT'S OUR CURRENT USE POLICY FOR THE FIXED SURVEILLANCE CAMERAS, YEAH.

>> C. LUNAPARRA: THANK YOU. AND IS THE CONTRACTOR ALSO REQUIRED TO GET RID OF THE DATA AFTER 180 DAYS?

>> YEAH, AND THEY HAVE VERY DETAILED AND ROBUST DELETION PROTOCOLS.

>> C. LUNAPARRA: THANK YOU.

>> MAYOR ISHII: OKAY. SO WE ARE GOING TO TAKE ROLL FOR -- I SEE A HAND UP FROM COUNCILMEMBER BLACKABY.

>> B. BLACKABY: VERY LAST COUNTER, THE ONLY THING STOPPING US FROM 180 DAYS IS OUR OWN DECISION MAKING. IN THE USE POLICY IT COULD BE 30 DAYS, 60 DAYS. IS THAT RIGHT CHIEF AND ARLO?

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> YEAH, THAT'S CORRECT. WE WOULD HAVE TO LOOK AT IT AND BALANCE WHAT WE WANT TO DO TO PROTECT PRIVACY AND CONTAINING TO HOLD DATA TO HAVE EVIDENTIARY VALUE.

>> B. BLACKABY: THANKS.

>> MAYOR ISHII: ABSOLUTELY. I REALIZE IT COULD TAKE TIME SOMETIMES WHICH INFORMATION YOU NEED BY THE TIME YOU GET BACK TO IT IF THE DATA HAS BEEN DELETED IT'S NOT HELPFUL FOR OUR PURPOSES. COUNCILMEMBER HUMBERT?

>> M. HUMBERT: MOVE TO EXTEND TIME.

>> T. TAPLIN: SECOND.

>> MAYOR ISHII: WE HAVE UNTIL 11:00, COUNCILMEMBER. SO I DON'T THINK WE NEED THAT MOTION.

>> M. HUMBERT: I THOUGHT WE HAD UNTIL 10:00. I COULD BE WRONG.

>> MAYOR ISHII: I KNOW WE HAVE BEEN CONCLUDING OUR MEETINGS PRETTY EARLY. YES, WE HAVE UNTIL 11:00.

>> M. HUMBERT: OKAY.

>> MAYOR ISHII: SO IF I COULD HAVE OUR DEPUTY CITY CLERK TAKE ROLL ON COUNCILMEMBER LUNAPARRA'S MOTION, SECONDED BY COUNCILMEMBER TREGUB?

>> ALL RIGHT, ON THE SUBSTITUTE MOTION, COUNCILMEMBER KESARWANI?

>> NO.

>> TAPLIN?

>> NO.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> NO.

>> BLACKABY?

>> NO.

>> LUNAPARRA?

>> ABSTAIN.

>> HUMBERT?

>> YES -- NO, I MEAN, SORRY.

>> I RECORD A NO. MAYOR ISHII?

>> MAYOR ISHII: NO.

>> MOTION FAILS.

>> MAYOR ISHII: OKAY, WE WILL NOW BE TAKING ROLL ON THE ORIGINAL MOTION, WHICH I BELIEVE WAS MADE BY COUNCILMEMBER HUMBERT AND SECONDED BY BLACKABY. AND JUST TO MAKE SURE IT'S CLEAR, THAT DOES NOT INCLUDE THE LANGUAGE FROM COUNCILMEMBER BARTLETT.

>> THAT'S WHAT I HAVE NOTED AS WELL.

>> B.

>> S. O'KEEFE: BUT IT INCLUDES IGOR'S.

>> MAYOR ISHII: COUNCILMEMBER HUMBERT'S LANGUAGE WAS WE USE THE

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

LANGUAGE YOU BROUGHT UP.

>> I. TREGUB: JUST WANTED TO CONFIRM ON THE RECORD. THANK YOU.

>> OKAY, ON THE MAIN MOTION, COUNCILMEMBER KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> TREGUB?

>> AYE.

>> O'KEEFE?

>> YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> NO.

>> HUMBERT?

>> YES.

>> MAYOR ISHII?

>> MAYOR ISHII: YES.

>> MOTION PASSES.

>> MAYOR ISHII: THANK YOU. THANK YOU, EVERYONE. I REALLY

APPRECIATE ALL OF THE COMMENTS AND QUESTIONS. AND THANK YOU

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

AGAIN FOR YOUR PRESENTATION. I KNOW YOU WILL BE CONSIDERING OUR COMMENTS AS YOU MOVE FORWARD IN THE PROCESS. THANK YOU. OKAY. WE NOW HAVE ANOTHER TIME FOR PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA. I JUST WANT TO CHECK IN TO SEE IF WE HAVE ANY. IF IT'S NOT ON THE AGENDA, YOU CAN MAKE A COMMENT.

>> [OFF MIC]

>> MAYOR ISHII: SORRY, WE HAVE A COMMENT THAT'S COMING UP, IT WILL GIVE YOU TIME TO GET THE OTHER PERSON YOU ARE WAITING FOR. THANK YOU.

>> SO IT WAS MENTIONED DURING THE OTHER PUBLIC COMMENT PERIOD BUT NOT ON THE AGENDA THAT CAHOOTS IN EUGENE OREGON IS A NON-POLICE MODEL OF CRISIS RESPONSE, BUT THEY DO PARTNER WITH POLICE, AND THIS IS THE MODEL BERKELEY WAS SUPPOSED TO BE WORKING WITH. THEY DON'T ALWAYS RESPOND BUT THEY ARE IN PARTNERSHIP WITH THE POLICE. THEY HAVE A CENTRAL LINE THAT THE CALLS ALL GO THROUGH. SO THEY GO THROUGH THE POLICE. AND WHAT'S HAPPENED BECAUSE WE REMOVED THAT IN BERKELEY, OUR SCU WAS JUST NOT RESPONDING. AND OFTEN IT WAS, IT FELL UPON THE POLICE AND THE FIRE DEPARTMENT TO DO IT. THERE WAS REALLY NOT SUFFICIENT OVERSIGHT OF THE SCU. THERE WASN'T THE SAME SKILLED DISPATCHERS THAT THE BERKELEY POLICE DEPARTMENT HAS. WHAT CAHOOTS DOES, THEY ACTUALLY ACT IN PARTNERSHIP WITH THEIR POLICE DEPARTMENT. I MENTIONED THE C.I.T. INTERNATIONAL CONFERENCES. I'VE HEARD THEM,

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

THEIR CAHOOTS MODEL AND THE POLICE, AT A C.I.T. INTERNATIONAL CONFERENCE, TOGETHER PRESENTING AS PARTNERS. BUT THEY TRIAGE SO THAT THEY OFTEN DO GO OUT WITHOUT THE POLICE AND A FEW YEARS AGO IT WAS QUOTED AS 16% OF THE TIME THEY REFER TO THE POLICE FOR BACK UP. AND THERE ARE TIMES IT'S APPROPRIATE FOR A CO-RESPONSE. CERTAINLY, WE WOULD NEVER WANT DOMESTIC VIOLENCE TO BE RESPONDED TO BY LAY PEOPLE ALONE. AND THERE ARE TIMES WHEN BERKELEY POLICE DON'T WANT TO GO OUT TO A LOT OF SITUATIONS THAT DON'T REQUIRE THE POLICE. IT'S NOT THAT THEY WANT TO FORCE THEMSELVES INTO THE SITUATION. MY UNDERSTANDING IS STAFF IS LOOKING TOWARDS THE COUNTY CAT MODEL WHICH WILL ACTUALLY BE MORE EFFICIENT AND STILL ALLOW AN APPROPRIATE SITUATIONS FOR NON-POLICE RESPONSE. THANK YOU.

>> MAYOR ISHII: THANK YOU. ANY OTHER PUBLIC COMMENT? ONLINE?

>> CITY CLERK: THANK YOU, MAYOR WE HAVE TWO HANDS RAISED ONLINE. FIRST IS THE CALLER WITH THE NUMBER ENDING IN 211. YOU SHOULD BE ABLE TO SPEAK.

>> I WOULD LIKE TO ADD ANOTHER COMMENT. IN OUR OLD DAYS OF BUSINESS WE AVERAGE 60,000.

>> MAYOR ISHII: THIS IS ACTUALLY PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA. WE JUST FINISHED.

>> THIS IS ABOUT CAMERAS. IT'S VERY IMPORTANT.

>> MAYOR ISHII: I'M SORRY.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> CAMERAS ARE VERY IMPORTANT.

>> CITY CLERK: ANYBODY WHO HAS ALREADY SPOKEN AT THE BEGINNING OF THE MEETING ISN'T ABLE TO SPEAK AGAIN DURING THIS PORTION OF PUBLIC COMMENT.

>> MAYOR ISHII: THANK YOU VERY MUCH FOR CLARIFYING THAT.

>> ALL RIGHT, WE WILL GO TO THE NEXT HAND RAISED. BRIANNA MCGUIRE.

>> THANK YOU FOR THE OPPORTUNITY TO GIVE PUBLIC COMMENT. MINE IS BRIEF AND LIGHTLY ORTHOGONAL, A PIECE ON THE AGENDA BUT NOT TOTALLY RELATED. IN THE 2024 HAZARD MITIGATION PLAN THERE'S A SECTION ON READINESS, THE FIRST IS COMMUNITY RESILIENCE CENTER PROGRAM. I WANT TO POINT OUT THE PROGRAM NO LONGER HAS A CITY WEBSITE PAGE. THERE ARE STILL LINKS REFERENCING THE COMMUNITY RESILIENCE CENTER PROGRAM THROUGHOUT THE BERKELEY CITY WEBSITE BUT THOSE LINKS ARE ALL DEAD, WHICH MEANS THERE'S NO LONGER A LIST OF C.R.C.'S AVAILABLE TO THOSE SEEKING THEM. I WANT TO POINT OUT 2024 WAS THE HOTTEST YEAR ON RECORD. IT'S IMPORTANT WE GET INFORMATION TO THE COMMUNITY ON THINGS LIKE COOLING CENTERS. I WANT TO RAISE THAT CONCERN TO PLEASE RESTORE INFORMATION ABOUT COMMUNITY RESILIENCE CENTERS ON THE CITY WEBSITE. THANK YOU.

>> MAYOR ISHII: THANK YOU. THANK YOU SO MUCH FOR THAT INFORMATION. I'M SURE WE WILL TAKE NOTE OF THAT AS WELL.

>> THAT WAS OUR LAST RAISED HAND ON ZOOM.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII: SORRY, THAT WAS OUR LAST RAISED HAND? I THINK THAT CONCLUDES OUR PUBLIC COMMENT FOR ITEMS NOT LISTED ON THE AGENDA. IS THERE A MOTION TO ADJOURN?

>> MOTION TO ADJOURN.

>> SECOND.

>> MAYOR ISHII: CAN YOU TAKE THE ROLL PLEASE?

>> YES, TO ADJOURN, KESARWANI?

>> YES.

>> TAPLIN?

>> YES.

>> BARTLETT?

>> YES.

>> THANK YOU. TREGUB?

>> NO, JUST KIDDING. AYE.

>> DUDE.

>> O'KEEFE?

>> DUDE. YES.

>> BLACKABY?

>> YES.

>> LUNAPARRA?

>> YES.

>> HUMBERT?

>> YES.

Unofficial Text File

This information provided by a Certified Realtime Reporter. The City of Berkeley cannot certify the following text since we did not create it.

>> MAYOR ISHII?

>> MAYOR ISHII: YES. THANK YOU, EVERYONE. THE MEETING IS NOW ADJOURNED. I'LL COME SPEAK WITH YOU, I KNOW YOU DIDN'T GET A CHANCE TO SPEAK. THANK YOU. [ADJOURNED 10:05 P.M.]

Unofficial Text File